

DEMOCRATIC REPUBLIC OF THE CONGO:

Escalating displacement in North Kivu despite ceasefire agreement

A profile of the internal displacement situation

30 September, 2008

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

Based on its monitoring and data collection activities, the Centre advocates for durable solutions to the plight of the internally displaced in line with international standards.

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OVERVIEW

Escalating displacement in North Kivu despite ceasefire agreement

Fighting between Congolese armed forces and dissident troops and militias, as well as widespread human rights violations committed by all groups, has caused the displacement of at least 150,000 people in eastern Democratic Republic of the Congo (DRC) from January to July 2008, mostly in North Kivu province. As a result, at least 1.25 million people were displaced in DRC as of the end of June, two-thirds of them in North Kivu Province. Many more have been displaced since, including at least 100,000 in North Kivu at the end of August. IDPs in North Kivu have been victims of grave human rights abuses committed by combatants from all the factions and by other civilians. In addition, many of them have not received assistance from international agencies, whose access has been blocked by the insecurity. While people displaced in DRC in previous years found refuge with relatives, friends and strangers, more and more are now resorting to camps and spontaneous settlements, as the resident population's capacity to cope with the influx has declined.

Since the mid-1990s, millions of Congolese have fled their homes to escape fighting between rebel groups and the national government, in a complex conflict which has also involved neighbouring states. Some 5.4 million people are estimated to have died as a result of the conflict, and the accompanying pervasive human rights abuses have included the killing of civilians, widespread sexual violence against women and child recruitment. There has also been widespread looting and burning of IDP possessions, destruction of healthcare facilities and use of civilian facilities for military purposes.

Displacement peaked in 2003, with an estimated 3.4 million people forced from their homes, most of them in the eastern provinces of North and South Kivu, and in Ituri District. Despite an agreement signed in Goma between the government and various factions in January 2008, displacement in North Kivu is in September 2008 at its highest level since the official end of the war in 2003. No specific framework or national policy addresses the rights of IDPs or returning IDPs, as provided by the Guiding Principles on Internal Displacement.

Background of displacement and recent developments

Between 1996 and 1997, and again between 1998 and 2003, the Democratic Republic of the Congo (DRC) suffered two major wars, in which millions died and large-scale displacement occurred. A number of rebel groups, more or less closely linked to neighbouring states such as Uganda and Rwanda, competed to control large areas of eastern DRC. Civilians bore the brunt of the violence, often being targeted for ethnic or political reasons. Displacement peaked in 2003, with an estimated 3.4 million people forced from their homes, most of them in the east of the country. In mid-2003, a power-sharing transitional government was set up following the withdrawal of foreign armies, but militias continued to cause massive displacement in the east. In 2006, millions of voters elected Joseph Kabila as President in the country's first multi-candidate vote in over 45 years. The majority of IDPs were reportedly unable to vote due to insecurity, or because they had lost their electoral cards during their flight or had them confiscated by armed men (OCHA, 15 August 2006; NRC, April 2006). Congolese electoral authorities announced in mid-2008 that the electoral register would be updated to take into account internally displaced people (IDPs) and returning refugees, to allow them to vote in the 2009 local elections (UNSC, 3 July 2008).

The 17,000 peacekeepers of the UN Mission in the Democratic Republic of Congo (MONUC), who are authorised to use all necessary means to protect civilians under imminent threat of physical violence (Chapter VII of the UN Charter), play a crucial role in providing security in the country. About 85 per cent of them are deployed in eastern DRC (UN News, 25 May 2007). MONUC is also tasked with monitoring compliance with the arms embargo imposed by the UN Security Council on armed groups operating in eastern DRC. Nonetheless, weapons continue to be channelled to various armed groups in DRC.

The continued presence of foreign and domestic armed groups remains the biggest threat to the population. The response of the Congolese government to this challenge has been the integration into the army of thousands of troops from various factions through a process known as “*brassage*”, as well as the disarmament and repatriation of foreign armed groups. Overall, the integration process has been marred by corruption and by conflicts between soldiers, often reflecting local ethnic divisions, particularly in North and South Kivu. Failings in the disarmament and demobilisation programme have resulted in an undisciplined national army, which has taken on the characteristics of the rebel groups it was supposed to be absorbing. Ill-equipped, unpaid and unfed Congolese soldiers are often in no position to defend themselves or any civilian in their care against armed groups, and often also perpetrate violations. The government must complete the *brassage* process with the support of the international community if the security of civilians is to improve.

Peace initiatives have had mixed results over the past year. A deal between the Congolese army and Tutsi rebels led by dissident general Laurent Nkunda collapsed in August 2007, leaving Nkunda in a stronger military and political position than prior to the agreement (HRW, 23 October 2007).

In November 2007, the governments of DRC and Rwanda signed the Nairobi Communiqué, which laid down the provisions for dealing with a Rwandan Hutu rebel group, the Democratic Liberation Forces of Rwanda (*Forces démocratiques pour la libération du Rwanda* - FDLR) in eastern DRC. Since then, every month, some 60 combatants have voluntarily surrendered their weapons, but thousands more keep on fighting (MONUC, 4 August 2008).

In January 2008, the government signed a ceasefire agreement in Goma with 22 armed groups, including Nkunda's National Congress for the Defence of the People (*Congrès national pour la défense du peuple* - CNDP) and Mai Mai local militia groups operating in North and South Kivu. The armed groups committed to a ceasefire to be monitored by MONUC; to undergo disarmament, demobilisation and *brassage*; and to facilitate the return of refugees and IDPs (Act of Engagement, 23 January 2008). The Congolese government also set up the Amani Programme to coordinate peace efforts in the region. While the level of violence subsequently decreased, the ceasefire has been repeatedly violated, and particularly since the end of August, increasing the number of people displaced (Reuters, 25 June 2008; UN News Service, 8 September 2008). Furthermore, the parties to the agreement have made little progress in implementing their human rights commitments, as the killing and rape of civilians have reportedly continued at a horrifying rate in North Kivu (Congo Advocacy Coalition, 29 July 2008; HRW, 21 July 2008). During his visit to eastern DRC, the Representative of the Secretary-General on the human rights of IDPs noted that while the ceasefire agreement potentially offered genuine opportunities for stabilising the country, its process of implementation appeared complex and difficult (HRC, 16 May 2008).

New displacement and return movements

The UN estimates that at least 1.25 million people are displaced in DRC, two-thirds of them in North Kivu Province (OCHA, 31 July 2008). At least 150,000 fled their homes between the

January signing of the Goma agreement and July 2008 (Congo Advocacy Coalition, 29 July 2008). An estimated 100,000 more fled a wave of violence in North Kivu at the end of August 2008, and further thousands have fled to neighbouring countries.

Most IDPs in eastern DRC have been displaced several times and live with host communities or hide in forests. Since 2007, communities have been increasingly unable to cope with the influx of people, and IDPs have had to build makeshift settlements or find refuge in dilapidated buildings (RI, 21 May 2008). At least 20 spontaneous IDP sites sprang up and 11 IDP camps managed by international NGOs under the coordination of UNHCR were established in 2007 and 2008. IDPs have also found refuge in churches and schools (IRIN, 28 May 2008). Spontaneous sites are generally unsafe and badly structured, and are usually located in insecure areas where displaced women and children are extremely vulnerable to abuses including rape and forced recruitment (RI, 21 May 2008, *Break the routine on humanitarian assistance*). They are also generally built on private land, which can cause disputes with the land owner (OCHA, 31 March 2008, *Focus humanitaire*).

In 2007, 1.5 million IDPs were estimated to have returned to their places of origin in eastern DRC (OCHA, 15 January 2008). More people seemed to benefit from assistance in 2007 than in previous years. Still, outstanding needs have remained enormous, as fighting and looting have led to a complete breakdown of services, and returning IDPs have often found health centres, schools and their houses destroyed. Private land and property disputes have been identified as a major obstacle to return, and as a potential source of renewed conflict in the east (UNHCR, 13 February 2007). Humanitarian agencies have struggled to assist both IDPs and returnees in North Kivu, and IDPs and returning IDPs were reported to need urgent food assistance in mid-2008 (OCHA, 15 August 2008; IRIN, 6 August 2008).

Patterns of displacement and return by region

North Kivu: Attacks by militia groups and intense combat between the army and the CNDP displaced more than 500,000 people in North Kivu between December 2006 and May 2008 (OCHA, 16 July 2008). At the end of August 2008, some of the worst fighting since the January agreement, between the Congolese armed forces and the CNDP, caused the displacement of at least 100,000 people (UN News Service, 1 September 2008; OCHA, 1 September 2008). In mid-2008, people fled clashes between the Congolese army and the FDLR. Most IDPs in North Kivu do not feel sufficiently protected to return to their villages, despite the dire living conditions they are facing in displacement (IRIN, 26 March 2008).

South Kivu: The situation is relatively stable and displacement numbers relatively low as compared to North Kivu. Since mid-2007, the main causes of displacement have been the confrontations taking place in the neighbouring province of North Kivu between the Congolese army and Mai Mai militias, as well as abuses committed by other armed groups. From April to June 2008, some 20,000 people were able to return home (OCHA, 31 July 2008).

Ituri and Orientale: The situation is relatively stable and displacement numbers relatively low as compared to North Kivu. At the beginning of 2008, civilians fled confrontations between militias and the Congolese army (ICG, 13 May 2008). In mid-2008, members of the Lord's Resistance Army (LRA) destroyed fields and pillaged villages, causing villagers to flee to the nearby forest (MONUC, 18 June 2008). Nonetheless, the security situation has improved markedly over the last years following the demobilisation of most armed groups, allowing the return of a million IDPs since October 2005 (OCHA, 16 July 2008). Many IDPs are trying to recover land where displaced people or others had settled during their absence, causing strong tensions throughout Ituri (ICG, 13 May 2008).

Physical security

The protection of the displaced and other civilians in eastern DRC is an urgent concern. The Congolese army, as well as armed militias, have continued to commit human rights violations and abuses in the Kivus, including killing, rape, sexual exploitation, abduction, forcible conscription of children, looting, plundering of crops, illegal taxation and general harassment of civilians. According to the Office of the UN High Commissioner for Refugees (UNHCR), IDPs in North Kivu have been victims of grave human rights abuses by all the factions engaged in fighting and by other civilians (IRIN, 8 May 2007).

Insecurity in camps has been increasingly reported. In June 2008, the FDLR attacked two IDP camps in North Kivu, and exchanges of gunfire between the group and Congolese soldiers put IDPs in grave danger (IRIN, 5 June 2008). At least six people were killed and 20 injured, and several international NGOs suspended their operations in the area (OCHA, 5 June 2008). IDPs in camps around Goma, the provincial capital of North Kivu, have also reported numerous killings and death threats, particularly by demobilised fighters, as well as abduction and rape inside and outside the camps (Oxfam, September 2008).

Despite all initiatives undertaken to counter sexual violence, rape continues to be widespread throughout the country, with the majority of reports in some areas from internally displaced women. Government soldiers and rebel fighters have committed widespread sexual violence, to attack the fundamental values of the community, to scare the civilian population into submission, to punish them for allegedly supporting enemy forces or to provide gratification for the fighters (HRW, 7 March 2005; AI, 26 October 2004). Thousands of women have also been abducted and kept as slaves in the forces' camps to provide sexual, domestic and agricultural services. Cases of rapes committed by civilians have increased over the past years as well (UNICEF, 24 June 2008). The adoption of two laws on sexual violence in July 2006 has made no difference, due to the weakness of the judicial system and the lack of protection for rape victims. Over the past years, several international peacekeepers stationed in eastern DRC have also been investigated for engaging in sexual exploitation and abuse (UNSG, 15 August 2008).

According to the UN Special Representative on Children in Armed Conflict, 54,000 victims of sexual violence were identified from 2004 to March 2007, of which 16 per cent were children (DPI, 16 March 2007). In September 2008, Oxfam asserted that women were less safe than the previous year (Oxfam, September 2008). According to UNICEF, over 1,000 women and girls are raped per month in eastern DRC (UNICEF, 24 June 2008). A third of reported cases were in North Kivu in 2008, the majority of them among internally displaced women (UNSC, 3 July 2008). These reports are likely to represent only the tip of the iceberg, with many sexual violence survivors ashamed or unable to come forward to seek help. Sexual violence against men and boys is also believed to be prevalent in North and South Kivu, but is rarely reported by the victims (Oxfam, September 2008).

Some 3,000 displaced and other children are still in armed forces and groups in eastern DRC, and recruitment continued as of July 2008 (MONUC, 24 July 2008). The UN Secretary-General reported in his annual report on children in armed conflict to the UN Security Council that children were recruited from IDP camps in North Kivu by the CNDP at the end of 2007 (UNGA, 21 December 2008).

Widespread impunity for crimes has fuelled the violence, while the national government has failed to take steps to protect the population by addressing the structural weaknesses of the judicial system to break the culture of impunity. Despite the extent of serious human rights violations, the UN Human Rights Council in Geneva decided in March 2008 not to renew the mandate of the Independent Expert on the situation of human rights in DRC, established in 2004.

The illegal exploitation of natural resources including gold, coltan and diamonds, and the smuggling of goods and weapons, have contributed to the insecurity. In Lubero territory in North Kivu for example, the FDLR was reported to regularly force the civilian population to act as slave porters, causing many to flee their villages (MONUC, 19 March 2007).

In July and again in September 2008 the Congo Advocacy Coalition, bringing together international and national humanitarian and human rights NGOs, called on the international community to put further pressure on armed groups and the Congolese government to make real their promises to protect civilians (Congo Advocacy Coalition, 29 July 2008; 26 September 2008).

Humanitarian conditions

The vast majority of IDPs and returnees lack access to basic infrastructure (health centres, schools and roads), potable water, food, seeds, tools, clothes and straw to build houses. In 2007 and 2008, malnutrition rates have risen in North Kivu, as IDPs have lacked access to assistance and to their fields due to ongoing fighting. Many missed planting and harvesting seasons. In June 2008, food rations to 45,000 IDPs in four camps close to Goma had to be cut by half, as the World Food Programme struggled to supply food to the massive influx of IDPs in a context of global price rises, funding limitations and breakdown of distribution channels (NRC, 13 June 2008; WFP, 13 May 2008).

According to a survey by the International Rescue Committee, an estimated 5.4 million people died in DRC from August 1998 to April 2007 due to social and economic disturbances caused by conflict, the majority of them of infectious diseases, malnutrition, and neonatal and pregnancy-related conditions. Children accounted for 47 per cent of deaths, even though they constituted only 19 per cent of the total population (IRC, 11 January 2008). With healthcare structures collapsing, displaced people are particularly vulnerable to infectious diseases such as cholera, measles, bubonic plague, due to their precarious living conditions and lack of access to clean drinking water (OCHA, 23 May 2008). In North Kivu, cholera epidemics broke out in 2007 and 2008 in IDP camps around Goma and areas hosting many IDPs (IRIN, 20 May 2008; OCHA, 2 November 2007). Displaced people are also exposed to HIV infection, as they usually lack the means to protect themselves and do not have information about its transmission (WHO, 31 May 2006; UNHCR/IDD, January 2006).

Humanitarian access

Humanitarian access in eastern DRC remains increasingly and significantly restricted, due to military operations against armed groups and related attacks on civilians by members of the army and militias, as well as the harassment of humanitarian workers (UNSC, 2 April 2008). In North Kivu, tens of thousands of IDPs were in desperate need of protection and assistance in mid-2008, as insecurity and poor roads prevented humanitarian agencies reaching them (ICRC, 30 May 2008). Other factors hampering the delivery of support to displaced people and returnees include the sheer size of the country, the absence of roads and the high degree of geographical dispersal of IDPs. Humanitarian NGOs also have to pay additional fees and taxes to various government agencies (OCHA, 15 August 2008).

National and international responses

Measures by the central government and provincial authorities have so far done little to meet the needs of IDPs in displacement and those returning home. Nominally, the Ministry for Solidarity and Humanitarian Affairs has the primary national responsibility to respond to the needs of IDPs,

while provincial governors are responsible to organise the protection and assistance for IDPs (HRC, 16 May 2008). The Pact on Security, Stability and Development in Africa's Great Lakes region, which DRC has ratified, came into force in June 2008 and so the government is under an obligation to incorporate the Guiding Principles on Internal Displacement into national law. The Pact includes Protocols on the Protection and Assistance to IDPs and on the Property Rights of Returning Populations (IDMC/IRRI, 18 September 2008; International Conference on the Great Lakes Region, 15 December 2006). During his first visit to DRC in February 2008, the Representative of the UN Secretary-General on the human rights of IDPs called upon the government to speedily enact a legislative framework for the protection of IDPs, and urged the international community to support this endeavour (HRC, 16 May 2008).

In 2006, the UN adopted the "cluster" approach in DRC, aimed at making relief efforts more systematic and predictable. Each cluster includes UN agencies and international NGOs, which coordinate their actions in a specific sector. According to an evaluation by UNHCR, clusters have enabled humanitarian organisations to better coordinate their interventions to the benefit of IDPs in DRC (UNHCR, 28 September 2007). The Protection Cluster, led by UNHCR and MONUC, has become central to the response to internal displacement, particularly in North Kivu. However, some observers have questioned the prominent role of MONUC, and its potential impact on the Cluster's ability to advocate independently (HRC, 16 May 2008). The other cluster of particular relevance for returning IDPs is the Reintegration and Community Recovery Cluster led by UNHCR and UNDP, but as of September 2008 it has not been very active, according to actors on the ground.

UN agencies, national and international NGOs and the International Committee of the Red Cross (ICRC) are providing emergency assistance to people recently displaced in eastern DRC, as well as transport assistance and return packages to returning IDPs. UNICEF also accompanies the return of IDPs in eastern DRC through the Programme of Expanded Assistance to Returns (PEAR).

There is increasing recognition of the need to support communities hosting IDPs. A Rapid Response Mechanism (RRM) managed by UNICEF and OCHA supports vulnerable communities hosting large numbers of displaced families, by providing emergency assistance for three months. Humanitarian agencies in North Kivu have also developed a draft strategy to assist IDPs and their host families, in order to support them more effectively (OCHA, 16 July 2008; UNICEF/CARE, 27 April 2008).

With the activation of the cluster approach in 2006, UNHCR took on enhanced responsibilities for protection and early recovery (UNHCR, 28 September 2007). In 2007 UNHCR launched a camp coordination and camp management (CCCM) coordination group which manage 13 IDP sites in North Kivu (UNHCR, 9 June 2008). In July 2008, the agency also resumed the assisted return of displaced Congolese to their homes in Ituri seven months after suspending the operation for security reasons (UNHCR, 21 July 2008).

In order to strengthen the response to the crisis in DRC, the humanitarian community has requested \$736 million through its 2008 Humanitarian Action Plan (HAP) (OCHA, 16 July 2008). Two of the main objectives of the plan are to protect and assist IDPs, and to facilitate return and reintegration. The main funding source for this plan is a multi-donor mechanism called the "Pooled Fund". DRC is also the country receiving the largest amount of money from the Central Emergency Response Fund (CERF), through its grants for under-funded emergencies. Nonetheless, as of September 2008, the HAP was less than 50 per cent funded.

(September 2008)

RÉSUMÉ DU PROFIL EN FRANÇAIS

République démocratique du Congo: le nombre de retours dépasse le nombre de nouveaux déplacements dans l'Est

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Malgré le succès des élections organisées au cours du second semestre 2006 et l'amélioration globale du niveau de stabilité, plus d'un million de personnes demeuraient déplacées dans l'Est de la République démocratique du Congo (RDC) en mars 2007. Les opérations menées par les forces armées pour désarmer les milices, ainsi que les violations des droits de l'homme commises tant par ces forces que par les milices, ont continué de provoquer des déplacements fréquents dans les provinces de l'Est. De manière générale, l'ampleur et l'intensité du conflit ont néanmoins considérablement diminué ces dernières années et les personnes qui rentrent chez elles sont beaucoup plus nombreuses que celles qui fuient. A leur retour, les personnes déplacées à l'intérieur de leur propre pays (« personnes déplacées » ou « déplacés ») retrouvent cependant souvent leurs villages totalement détruits et la plupart d'entre elles reçoivent peu ou pas d'assistance pour reconstruire leur vie. Selon le HCR, il existe un besoin urgent de mettre en place une stratégie nationale qui mette en lumière les droits des déplacés et des réfugiés qui rentrent et qui facilite leur réintégration.

Depuis le milieu des années 1990, des millions de Congolais ont fui leurs foyers pour échapper aux combats entre les groupes rebelles et le gouvernement national dans un conflit complexe impliquant également les Etats voisins. On estime à près de quatre millions le nombre de victimes du conflit, lequel a entraîné des violations massives des droits de l'homme, notamment des meurtres de civils, des violences sexuelles répétées à l'encontre des femmes déplacées et autres, le recrutement d'enfants, le pillage et l'incendie des biens des déplacés. Les déplacements ont connu leur point culminant en 2003, environ 3.4 millions de personnes ayant été contraintes de fuir leurs foyers, principalement dans l'Est.

Origines des déplacements et évolutions récentes

En 1996, puis de nouveau entre 1998 et 2003, la RDC a connu deux guerres importantes, entraînant des millions de victimes et des déplacements à grande échelle. Un certain nombre de groupes rebelles, plus ou moins liés à des puissances étrangères telles que l'Ouganda et le Rwanda, ont rivalisé pour contrôler d'importantes zones de l'Est de la RDC. Les civils ont été les plus grandes victimes de la violence, souvent ciblés pour des motifs ethniques ou politiques. Les déplacements ont connu leur point culminant en 2003, environ 3.4 millions de personnes ayant été contraintes de fuir leurs foyers, la plupart d'entre elles dans l'Est du pays. L'organisation International Rescue Committee estime que 3.9 millions de personnes sont mortes des conséquences de la dernière guerre (IRC, 6 janvier 2006).

Mi-2003, un gouvernement de transition et de partage des pouvoirs a été mis en place suite au retrait des armées étrangères. Composé d'anciennes factions ennemies se disputant souvent ouvertement, le gouvernement national n'a pas été capable de rétablir la sécurité dans l'Est de la RDC, où des milices locales ont continué de provoquer des déplacements massifs. En 2006, des millions d'électeurs ont participé aux premières élections multipartites organisées dans le pays depuis plus de 45 ans, afin de remplacer le gouvernement de transition. La majorité des personnes déplacées n'auraient pas été en mesure de voter en raison de l'insécurité, de la perte

de leurs cartes électorales pendant leur fuite ou de leur confiscation par des hommes armés (OCHA, 15 août 2006; NRC, avril 2006).

Environ 1 000 soldats de l'UE et plus de 17 000 membres de forces de maintien de la paix des Nations Unies ont assuré la protection des élections, lesquelles ont été remportées par Joseph Kabila. Autorisée à employer tous les moyens nécessaires pour protéger les civils confrontés à une menace imminente de violence physique (« Chapitre VII » de la Charte des Nations Unies), la MONUC – Mission de l'Organisation des Nations Unies en République démocratique du Congo – joue un rôle crucial pour garantir la sécurité dans le pays. Elle est également chargée de contrôler le respect de l'embargo sur les armes imposé par le Conseil de sécurité des Nations Unies aux groupes armés qui opèrent dans l'Est de la RDC. En juillet 2006, le Conseil de sécurité a étendu le champ d'application des sanctions possibles en RDC aux individus commettant de graves violations du droit international – y compris des déplacements forcés – impliquant le fait de cibler des enfants dans des situations de conflit armé (Conseil de sécurité des Nations Unies, 31 juillet 2006). En dépit de l'embargo, les armes continuent d'être acheminées vers divers mouvements armés en RDC à partir des pays voisins.

Une ombre apparaît au tableau dans la mesure où le principal candidat déchu, Jean-Pierre Bemba, s'est éclipsé du pays en avril 2007, après de violents affrontements dans la capitale Kinshasa entre ses militants armés et les forces de sécurité.

La nécessité d'intégrer plus de 78 000 soldats issus de différentes factions combattantes (dans un processus intitulé « brassage ») et de désarmer et rapatrier les groupes armés étrangers représente un défi majeur pour le gouvernement congolais (MONUC, 8 mars 2007). Tant que la réforme de l'armée ne sera pas achevée, la RDC connaîtra au mieux une paix fragile (AI, 19 janvier 2007). Le processus d'intégration a été gâché par la corruption et par les conflits entre soldats, qui reflètent souvent les divisions ethniques locales, en particulier dans le Nord et le Sud Kivu (ActionAid, 17 novembre 2006). Les défaillances du programme de désarmement et de démobilisation, géré par la commission congolaise CONADER, ont conduit à la constitution d'une armée nationale indisciplinée, empruntant les caractéristiques des mouvements rebelles qu'elle était censée intégrer (CFR, 16 février 2007). Les soldats congolais, mal équipés, non rémunérés et mal nourris, sont souvent dans l'incapacité de se défendre eux-mêmes – ni aucun civil sous leur protection – contre les groupes armés. En outre, ils continuent de harceler les civils et d'extorquer leurs biens (MONUC, 8 mars 2007). Par conséquent, des milliers de personnes fuient chaque mois leurs foyers dans l'Est de la RDC, en raison des attaques des groupes armés tels que les milices locales, les Forces armées rwandaises hutues de libération, les factions Mai Mai, ainsi que les opérations de l'armée congolaise contre ces groupes et les violations commises par l'armée à l'encontre des civils. En 2006, plus de 500 000 personnes ont fui leurs foyers dans l'Est de la RDC (OCHA, 30 novembre 2006).

Nouveaux mouvements de déplacement et de retour

Les Nations Unies ont estimé que plus d'un million de personnes demeuraient déplacées en RDC en mars 2007 (OCHA, avril 2007). Plus de la moitié d'entre elles se trouvent dans le Nord Kivu, suivi de l'Ituri, du Sud Kivu et du Katanga. La plupart des déplacés dans l'Est de la RDC vivent dans des communautés d'accueil ou se cachent dans des forêts. Suite aux afflux massifs de personnes, des camps de déplacés ont également été installés.

Déplacements par région: principaux acteurs et modes

Nord Kivu: les combats entre factions armées rivales, les attaques par les rebelles hutus rwandais et les milices Mai Mai, ainsi que les violations commises par les forces armées congolaises à l'encontre de la population, ont continué de provoquer des déplacements. Quelque 100 000 personnes étaient déplacées dans la province avant les élections nationales de 2006.

113 000 autres ont fui leurs foyers fin 2006, suite à des affrontements entre les soldats proches du Général dissident Laurent Nkunda et d'autres soldats dans des zones à proximité de la principale ville de Goma (OCHA, 15 août 2006; MONUC, 8 mars 2007). Au cours des mois suivants, des brigades composées d'anciennes milices tutsies fidèles à Nkunda ont été déployées dans la province plutôt que d'être envoyées dans d'autres régions et intégrées à d'autres soldats (processus de « mixage »), ce qui a conduit à davantage d'insécurité et à des déplacements massifs (AFP, 7 avril 2007). En janvier 2007, des troupes congolaises ainsi que des combattants Mai Mai se sont rendus coupables de pillages et d'autres violations, provoquant des déplacements massifs dans les zones de combats (MONUC, 20 février 2007). En février et mars 2007, des affrontements entre l'armée congolaise et le mouvement rebelle hutu des Forces démocratiques de Libération du Rwanda (FDLR) ont provoqué le déplacement d'au moins 25 000 villageois (DPA, 23 février 2007; IRIN, 14 mars 2007).

Ituri: les civils ont continué de fuir les attaques des milices, ainsi que les opérations de l'armée congolaise et de la MONUC contre ces milices. Quelque 150 000 personnes ont trouvé refuge mi-2006 dans des camps comme celui de Gety et au sein de familles d'accueil, dans un mouvement décrit comme le plus important déplacement dans la région en plus de deux ans (OCHA, 15 août 2006; PAM, 25 juillet 2006). En 2007, des dizaines de milliers de villageois ont fui vers la forêt, après l'incendie de leurs villages par les troupes congolaises, dans le contexte d'opérations armées contre les milices locales (MONUC, 19 mars 2007).

Sud Kivu: de grandes parties du Sud Kivu sont contrôlées par les milices hutues rwandaises, provoquant encore des déplacements internes dans la province (MONUC, 8 mars 2007; IRIN, 13 avril 2007). Les combats entre troupes gouvernementales, certaines fidèles à un colonel dissident, ont également causé des milliers de déplacements début 2007 (IRIN, 2 février 2007).

Katanga: en 2006, plus de 130 000 personnes étaient temporairement déplacées en raison des combats entre les Mai Mai et les troupes congolaises. Beaucoup d'entre elles ont souffert de la destruction de leurs maisons et de l'incendie de leurs récoltes (ECHO, 14 février 2007). Plus tard dans l'année, des attaques des Mai Mai ont provoqué le déplacement de dizaines de milliers de personnes dans le nord de la province (OCHA, 31 août 2006, "situation humanitaire"; OCHA, 15 août 2006).

De manière générale, l'ampleur et l'intensité du conflit ont malgré tout considérablement diminué et il y a beaucoup plus de personnes qui rentrent chez elles que de personnes qui fuient leurs foyers (ECHO, 14 février 2007). Presque 500 000 personnes déplacées sont rentrées dans leurs lieux d'origine en 2006 (UNHCR, 13 février 2007). Il semble cependant exister une réelle insuffisance en termes de réponse aux besoins urgents de retour et de réintégration des personnes déplacées en RDC, du fait surtout du manque de financements. La majorité des déplacés qui rentrent ne reçoivent pas d'assistance, en dépit du fait que les combats et les pillages ont conduit à un effondrement total des services, et les déplacés retrouvent souvent les centres de santé, les écoles et leurs maisons détruits à leur retour. De même, les litiges liés à la terre et aux droits de propriété constituent un obstacle essentiel au retour et une source potentielle de nouveau conflit dans l'Est (UNHCR, 13 février 2007).

Sécurité physique

La protection des déplacés et des autres civils reste une préoccupation grave dans l'Est de la RDC. Le personnel militaire congolais, indiscipliné et non rémunéré, ainsi que la police nationale, sont devenus la principale menace pour les civils, car ils commettraient des viols et des enlèvements de déplacés, terroriseraient les fermiers, voleraient du bétail et pilleraient les plantations locales (MONUC, 8 mars 2007; ICG, 9 janvier 2006). En septembre 2006, il semblerait que neuf personnes déplacées, considérées initialement comme enlevées, figuraient

parmi au moins 32 civils exécutés sommairement par des soldats gouvernementaux en Ituri (MONUC, 30 novembre 2006). Selon la MONUC, l'armée congolaise, de même que les milices armées, sont responsables de l'aggravation des violations des droits de l'homme au Nord et Sud Kivu en 2007 (MONUC, 20 février 2007).

Les groupes armés commettent de graves violations des droits de l'homme, notamment assassinats, viols, exploitation sexuelle, enlèvements, enrôlements forcés d'enfants, pillages, vols de récoltes, taxations illégales et harcèlement général des civils. L'exploitation illégale des ressources naturelles (or, coltan et diamants) et le trafic de biens et d'armes ne font que renforcer la violence. Début 2007, par exemple, plusieurs milliers de personnes de la province du Kasai Oriental ont fui leurs villages, ravagés par les flammes suite à un conflit lié à une mine de diamants située dans la région (OCHA, 27 février 2007). Dans le territoire de Lubero au Nord Kivu, les milices hutues rwandaises contraignent régulièrement la population civile à transporter des minéraux exploités pendant une à deux semaines d'affilée, forçant de nombreuses personnes à fuir leurs villages (MONUC, 19 mars 2007).

Malgré toutes les initiatives prises pour combattre la violence sexuelle et l'adoption de deux lois relatives à la violence sexuelle en juillet 2006, le viol continue de sévir dans l'ensemble du pays (MONUC, 8 mars 2007). Les soldats et les combattants rebelles commettent des actes de violence sexuelle dans le contexte des combats, pour s'en prendre aux valeurs fondamentales de la communauté, terroriser la population civile pour la soumettre, la punir pour le soutien prétendument apporté aux forces ennemies ou pour accorder une gratification aux combattants (HRW, 7 mars 2005; AI, 26 octobre 2004). Les forces gouvernementales apparaissent comme les principaux auteurs d'abus sexuels (OCHA, 31 mars 2007). Des milliers de femmes ont également été enlevées et maintenues en esclavage dans les camps des forces armées pour fournir des services sexuels, domestiques et agricoles (International Alert & al., 2005). Selon le Représentant spécial des Nations Unies pour les enfants dans les conflits armés, 54 000 victimes de violence sexuelle ont été identifiées depuis 2004, dont 16 % d'enfants (DPI, 16 mars 2007). Cela ne représente probablement que la partie visible de l'iceberg, de nombreuses victimes de violence sexuelle ayant honte de demander de l'aide, ou se sentant incapables de le faire pour d'autres raisons (UNICEF, 24 juillet 2006). Au Sud Kivu, près de 4 000 femmes déplacées auraient été violées en quelques mois en 2006 (IRIN, 2 août 2006). En Ituri, les camps de déplacés, situés souvent à proximité de camps militaires, sont principalement peuplés de femmes et d'enfants qui deviennent facilement les victimes de viol de la part des soldats (MONUC, 8 mars 2007). Des hommes et des garçons ont également subi des agressions sexuelles de la part de combattants (HRW, 7 mars 2005).

De nombreux enfants déplacés ont été contraints de rejoindre les rangs des groupes armés, et des milliers d'entre eux sont encore dans des milices. En juin 2006, le Secrétaire général des Nations Unies a informé le Conseil de sécurité que des violations à l'encontre des enfants avaient encore lieu en RDC, pour la plupart en toute impunité, notamment le recrutement et l'emploi d'enfants dans les forces et les groupes armés, les enlèvements, la violence sexuelle, les assassinats et les mutilations d'enfants, ainsi que les attaques dirigées contre les écoles (Conseil de sécurité des Nations Unies, 13 juin 2006). Le recrutement d'enfants soldats par les milices a été dénoncé par les observateurs locaux et internationaux – notamment par le Représentant spécial des Nations Unies pour les enfants dans les conflits armés – comme un phénomène persistant en 2007, en particulier au Nord Kivu (MONUC, 14 février 2007; DPI, 16 mars 2007). En octobre 2006, Amnesty International signalait que quelque 11 000 enfants se trouvaient toujours dans les forces ou groupes armés, ou n'étaient pas intégrés dans le programme de démobilisation (AI, 11 octobre 2006).

Situation humanitaire

Selon une évaluation complète réalisée par le PAM et la FAO, les déplacés dans l'Est de la RDC souffrent généralement de l'insécurité alimentaire. En effet, la plupart des personnes ne peuvent pas accéder à leurs champs tant qu'elles sont déplacées, et retrouvent leurs récoltes, leurs réserves et leurs outils pillés à leur retour. Au sein de cette population, les ménages dirigés par des femmes seraient les plus vulnérables (PAM, 31 octobre 2006). Dans les camps en Ituri, au moins 10 personnes déplacées – des enfants pour la plupart – mourraient chaque jour en 2006 en raison des conditions sanitaires déplorables et des pénuries alimentaires. Les agressions perpétrées par les groupes armés contre les travailleurs humanitaires dans la région empêchaient la fourniture des services de base et des vivres (IRIN, 1 septembre 2006; RI, 25 août 2006).

La grande majorité des déplacés et des rapatriés n'ont pas accès aux infrastructures de base (centres de santé, écoles et routes), à l'eau potable, à la nourriture, à des vêtements et à de la paille pour construire des maisons. Avec l'effondrement des structures de soins de santé en RDC, les personnes déplacées sont particulièrement vulnérables aux maladies infectieuses. 1 250 personnes meurent quotidiennement en RDC, en plus de celles qui mourraient sans les effets liés au conflit. Plus de 70 % de ces décès sont dus à des maladies faciles à prévenir et à soigner (IRC, 6 janvier 2006).

Des épidémies de choléra, de rougeole, de peste bubonique et d'autres maladies se sont déclarées parmi les personnes déplacées en Ituri, Nord et Sud Kivu, Katanga et Maniema en 2006, en raison de leurs conditions de vie précaires et du manque d'accès à une eau potable saine (MONUC, 5 mars 2007; IFRC, 5 septembre 2006). La malaria reste la cause numéro un de mortalité en RDC. Les déplacés sont également exposés au VIH/SIDA, dans la mesure où ils manquent généralement de moyens de protection et ne disposent pas d'information sur la transmission de cette maladie (OMS, 31 mai 2006). Ils sont susceptibles d'être même plus exposés au VIH que le reste de la population en RDC, mais davantage d'informations et de données sont nécessaires avant de pouvoir tirer des conclusions (UNHCR/IDD, janvier 2006).

Accès humanitaire

En 2006 et début 2007, l'accès aux personnes déplacées et aux autres populations vulnérables dans l'Est de la RDC s'est amélioré dans plusieurs zones. Mais dans certaines parties des Kivus, du Katanga et en Ituri, l'accès demeurait difficile, en raison des opérations militaires menées contre des groupes armés incontrôlés et des attaques connexes des milices et des soldats congolais indisciplinés en direction des civils. Les groupes armés ne cessent d'attaquer, de piller et de prendre en otage le personnel humanitaire, faisant de cette région l'une des plus dangereuses pour les acteurs humanitaires. Au Nord Kivu, depuis le déploiement de « brigades mixtes » en 2007, au moins cinq véhicules humanitaires ont été attaqués et certaines zones de la province sont devenues inaccessibles en raison de l'insécurité. Les autres facteurs entravant la réponse aux besoins des déplacés et des rapatriés comprennent la simple taille du pays, l'absence de routes et le degré élevé de dispersion géographique des personnes déplacées. Le PAM a dû recourir à des largages de vivres et à des ponts aériens pour atteindre les personnes déplacées dans certaines zones du Katanga, Maniema et Sud Kivu où les transports terrestres et ferroviaires n'existent quasiment pas (IRIN, 6 avril 2006; WFP, 26 septembre 2006).

Réponse nationale et Internationale

Au niveau provincial et national, le gouvernement congolais a jusqu'à présent joué un rôle limité dans la réponse aux besoins des personnes déplacées et de celles qui rentrent (RI, 17 octobre 2006). En principe, le Ministère de la solidarité et des affaires humanitaires a la responsabilité première de la réponse aux besoins des déplacés. Les observateurs locaux affirment cependant

que les Ministères de l'intérieur et de la défense sont également impliqués dans la protection des personnes déplacées et de celles qui rentrent, mais leur rôle semble loin d'être clair en pratique. Selon le HCR, il existe un besoin urgent de mettre en place un cadre ou une stratégie nationale de gestion des déplacements qui mette en lumière les droits de déplacés et des réfugiés qui rentrent et qui facilite leur réintégration (UNHCR, 13 février 2007).

Les agences des Nations Unies, les ONG nationales et internationales et le Comité international de la Croix Rouge (CICR) apportent une aide d'urgence aux personnes déplacées ainsi qu'une aide logistique et des colis de retour à celles qui rentrent. En février 2007, le HCR a lancé un appel à hauteur de 15 millions de dollars pour mettre en œuvre des mécanismes de protection et de surveillance dans les zones de déplacement et de retour et instaurer des systèmes d'alerte précoce et des activités de prévention. Lorsque la situation sécuritaire le permettra, le HCR soutiendra également la mise en place de mécanismes de règlement des litiges fonciers et immobiliers, fournira une aide humanitaire aux déplacés qui rentrent et encouragera la coexistence interethnique (UNHCR, 13 février 2007). Dans le même temps, le HCR prévoit d'aider quelque 100 000 réfugiés congolais à rentrer, sur un total de 400 000 (UNHCR, février 2007). Au Nord Kivu, le Conseil norvégien pour les réfugiés réalise un projet innovant liant la reconstruction rapide des infrastructures des villages et la création d'emploi pour les déplacés qui rentrent à des mesures visant à les protéger contre la violence dans une région encore instable (RI, 17 octobre 2006). Les patrouilles de la MONUC dans les régions d'origine des personnes déplacées leur ont donné suffisamment confiance pour quitter leurs camps provisoires et reconstruire leur vie dans leurs villages (OXFAM, 16 février 2007).

En 2006, la RDC a été sélectionnée parmi les pays pilotes pour expérimenter la nouvelle approche « cluster » des Nations Unies qui vise à renforcer la responsabilité et la prévisibilité en désignant des organisations chefs de file par secteur humanitaire. Chaque cluster comprend des agences des Nations Unies et des ONG internationales qui coordonnent leurs actions dans un secteur donné. Les clusters les plus pertinents pour les déplacés en RDC sont celui sur la protection piloté par le HCR et celui sur le redressement précoce piloté par le HCR et le PNUD qui met l'accent sur le retour et la réintégration. Selon l'OCHA, le cluster protection a été l'un des plus actifs en RDC, par exemple en matière de collaboration avec la MONUC pour infléchir les décisions de l'armée visant à contraindre les déplacés à rentrer chez eux ou en matière de réalisation de formations sur les Principes directeurs relatifs au déplacement de personnes à l'intérieur de leur propre pays, les principes humanitaires et la violence sexuelle à l'attention des troupes congolaises. Le cluster « retour et réintégration », mis en place en mai 2006, a réalisé une cartographie des programmes onusiens et non onusiens en matière de réintégration, de post-conflit et de réduction de la pauvreté afin d'identifier les lacunes (OCHA, 9 mars 2007). Un Mécanisme de réponse rapide, géré par l'UNICEF et l'OCHA, a également apporté une aide d'urgence à quelque 500 000 personnes déplacées en 2006 (OCHA, 21 juillet 2006).

Afin de renforcer la réponse à la crise en RDC, la communauté humanitaire a sollicité plus de 686 millions de dollars à travers son Plan d'action humanitaire 2007 pour la RDC. L'un des principaux objectifs de ce plan est de soutenir le retour à l'autosuffisance pour les déplacés et les réfugiés (OCHA, 30 novembre 2006). La principale source de financement de ce plan est un mécanisme appelé le « Fonds commun », un fonds humanitaire rassemblant plusieurs donateurs. La RDC est le pays qui reçoit le plus d'argent – 36.6 millions de dollars sur 85 millions pour le premier semestre 2007 – du Fonds central de réponse d'urgence, au titre de ses subventions pour les urgences dotées de fonds insuffisants (OCHA, 7 février 2007). Selon les observateurs locaux, il est trop tôt pour savoir si l'approche « cluster » et les nouveaux mécanismes de financement ont eu un impact pour les déplacés et les autres personnes vulnérables.

CAUSES AND BACKGROUND

Political developments

DRC political developments- Chronology: 1870-2008

MSF, 19 Nov 2002, p.64:

"1870s: Commissioned by King Leopold II of Belgium, the explorer H.M Stanley establishes the King's authority in the Congo basin.

1884-85: Leopold's claim on the Congo is formalized at the Berlin Conference. The "Congo Free State" was created as a personal fiefdom of the Belgian Crown.

1908: The Congo becomes a Belgian colony.

1960: The Congo becomes an independent state, with Patrice Lumumba as Prime Minister and Joseph Kasavubu as President.

1961: Lumumba is murdered, reportedly with US and Belgian complicity.

1965: President Kasavubu is ousted by General Mobutu, army chief of staff.

1990: Mobutu announces multiparty democracy but keeps significant powers.

1991: Anti-Mobutu sentiments explode in mass rioting and looting by unpaid soldiers in Kinshasa.

1992: Riots and looting by unpaid soldiers in Goma, Kisangani, Kolwesi; ethnic tensions rise between the Hunde, Nyanga and Nande and the Banyarwanda in North Kivu.

1993: Ethnic strife between the local populations and the Banyarwanda breaks out in Masisi area. The coup in Burundi against new Hutu President Melchior Ndadaye results in the arrival of some 80,000 Burundian refugees in Zaire.

1994: Genocide of the Tutsis in Rwanda. Following the Tutsi led counter offensive, one million refugees, mainly Hutus, cross the border with Zaire.

1995: Renewal of the ethnic war in Masisi.

1996: Revolt of the Zairian Tutsis "Banyamulenge" in South Kivu; the ADFL's (Alliance of Democratic Forces for the Liberation of Congo-Zaire) "Liberation" war led by Laurent-Désiré Kabila begins from the east."

HRW, 2 June 2005:

"In 1996 Rwandan and Ugandan forces invaded the Congo, ousted long-time ruler Mobutu Sese Seko, and installed Laurent Desiré Kabila in power."

MSF, 19 Nov 2002, p.64:

"1997: Mobutu is ousted by the ADFL forces and flees in exile to Morocco.

1998: Congolese rebel forces, backed by Rwanda and Uganda, start attacking Kabila's forces and conquer the east of the country. Angola, Namibia and Zimbabwe come to Kabila's aid and push the rebels back from Kinshasa."

HRW, 2 June 2005:

"In July 1998 Kabila tried to expel the Rwandan troops, but they and the Ugandan forces instead engaged Kabila's government in the second Congo war, one that eventually drew in Zimbabwe, Angola, Namibia (supporting Kabila) and Burundi (allied with the Rwandans and Ugandans). Often termed as Africa's first world war, the conflict resulted in the deaths of 3.5 million people, the great majority in eastern DRC. Many victims were displaced people who died from exposure, hunger, or lack of medical assistance."

MSF, 19 Nov 2002, p.64:

"1999: First confrontation of Rwandan and Ugandan troops in Kisangani. Signature of a cease-fire agreement [in Lusaka] by all six of the countries involved in the conflict; MONUC observers are deployed in the DRC.

2000: Six-day war between Rwanda and Uganda in Kisangani.

2001: President Kabila is shot dead by one of his bodyguards; his son Joseph takes over.

2002: Eruption of volcano Nyiragongo in Goma. Accord signed between Presidents Kabila and Kagame of Rwanda committing Rwandan to withdraw its troops from the DRC and Kinshasa to address Rwanda's security concerns in the DRC."

HRW, 2 June 2005:

"Through continued international pressure, the national government and major rebel movements eventually signed a power-sharing agreement at Sun City in April 2002 that allowed for the establishment of the Global and All Inclusive Peace Agreement which set up the transitional government in June 2003. Despite this agreement and other bilateral and regional security agreements, insecurity continued in large parts of eastern Congo.

Based on IRIN, 5 January 2004:

2003 *On 1 April, In Sun City, South Africa, DRC government and rebel groups unanimously endorsed a transitional constitution to govern DRC for two years. They also endorsed the global agreement signed in Pretoria on 17 December 2002. Transitional government named by Kabila on June 30*

Based on IRIN, 4 January 2005:

2004 *In May, fighting breaks out in the eastern town of Bukavu, between soldiers loyal to the Kinshasa government and renegade soldiers of a former Rwandan-backed rebel group. Expert panel on the Illegal Exploitation of Natural Resources and Other Forms of Wealth in DRC then accuses the Rwandan government of supporting Congolese dissidents. In October, the International Criminal Court and the DRC sign an accord allowing the prosecutor to begin investigations into war crimes and crimes against humanity committed in the country.*

Based on Christian Aid, 20 December 2005:

2005 *In December, Congolese voters approve a new constitution providing for a decentralized political system, limiting the president to two five-year terms, and guaranteeing women half the seats in government.*

2006 *President Joseph Kabila was re-elected president in October 2006, after two rounds of elections. Ex-rebel chief Jean-Pierre Bemba came in second.*

MONUC, 16 November 2006:

“Mr. Kabila only won a majority in five out of the eleven DRC provinces, with a huge Kabila vote in Katanga and a poor voting turnout in Kinshasa, a Bemba stronghold, giving him a decisive victory.”

2007

CFR, 16 February 2007:

“The Democratic Republic of Congo (DRC) successfully held elections in 2006, but government institutions remain weak, and outbreaks of violence continue in the country's eastern provinces. Ambassador William Swing, UN envoy in the DRC, told a recent Brookings Institution meeting: ‘The challenges ahead therefore may be greater than those of the just completed transition.’”

HRW, 23 October 2007:

“The people of the eastern Democratic Republic of Congo, buffeted by years of war, endured more armed conflict and related violations of international law in 2006 and 2007. [...] Hundreds of thousands of people have been displaced from their homes in the past 10 months. Abusive forces have not been disarmed, but on the contrary have consolidated their authority.”

UNSC, 11 July 2007:

“In the Kivus, however, local armed groups, including the supporters of Nkunda and the Mayi-Mayi, as well as foreign armed groups, such as FDLR, continued to destabilize the region and commit atrocities against local populations.”

See also:

The Economist, 6 September 2007, Congo, Will it blow up all over again? A renewal of fighting in eastern Congo could tear the country apart once more [[Internet](#)]

Reuters, 11 November 2007:

“Congo has reached a deal with Rwanda to forcibly disarm Rwandan Hutu rebels on its soil in an effort to reduce tensions with its central African neighbour, a joint statement said on Sunday.[...]”

The government of Democratic Republic of Congo commits to launch military operations as a matter of urgency to dismantle the ex-FAR Interahamwe as a genocidal military organisation in the DRC,” the countries said in a joint statement.

The agreement followed a meeting in Nairobi between the Congolese and Rwandan foreign ministers.”

2008

In January 2008, warring parties in North and South Kivu agreed on a ceasefire, and committed to find a solution to their conflict; a mechanism called the « Amani Programme”, ensures the follow up of the January agreement (Reuters, 25 June 2008).

For the agreement, see DRC, Acte d'Engagement, 23 January 2008, in Goma [[Internet](#)]

MONUC Peacekeeping mission works to bring security to eastern DRC (1999-2008)

- Some 17,000 troops currently deployed, about 85 per cent of them in the north-east (2007)
- Redeployment of troops from Ituri and other regions to troubled Kivus (2008)
- MONUC had to transform itself from a ceasefire observation mission to one that handles a multitude of other tasks in support of the transition
- UNSC has imposed a mandatory arms embargo on the provinces of North and South Kivu and the Ituri region of the eastern DRC, but according to Amnesty International and the

International Crisis Group, reports of arms and related deliveries continued despite the embargo

- MONUC played a crucial role in providing security in DRC and assisting DRC with its successful elections
- Following the elections, MONUC developed a strategy of five lines to protect the civilian population
- MONUC has been facing many challenges after the national elections (2007)
- Reinforcement of MONUC mobile teams in eastern DRC in the second half of 2007

ICG, 19 October 2005:

"The UN Mission's mandate has expanded greatly since its inception in 1999, from ceasefire observation to include now:

- support of the transitional government;
- assistance in security sector reform;
- disarmament, demobilisation and reintegration (DDR) of armed groups;
- aid in re-establishing a state based on the rule of law;
- monitoring of the arms embargo;
- protection of civilians in imminent danger; and
- election support.

These political and military tasks have proven extremely difficult to fulfil, especially since MONUC is often forced to work through a weak and factious transitional government and army. It has also been plagued by insufficient troop numbers, inadequate equipment and an ambiguous concept of military operations, and its reputation has suffered from a sexual abuse scandal in 2004.[...]

Even in the areas of the Congo where MONUC has had the resources to act, it has often failed to protect civilians, most obviously during the May 2002 massacre in Kisangani, the fighting in Bunia in 2003, and the mutiny in Bukavu in May 2004. Its inaction was mainly due to the reluctance of troop-contributing countries to put their soldiers in danger and a lack of clarity in the concept of operations that led the mission to react to rather than anticipate and prevent trouble. In the Kivus, MONUC has been cautious due to the terrain and FDLR strength.

In 2005 MONUC began to interpret its mandate more robustly in Ituri, carrying out aggressive cordon and search operations, demilitarising zones, and killing over 100 militiamen."

OXFAM, 16 February 2007:

"The United Nations Organization Mission in the Democratic Republic of Congo (MONUC) has supported the Congolese government in the political transition process. It deserves the praise it has received for assisting DRC with its successful elections and other recent achievements.

The importance of the electoral process should not overshadow the crucial role that MONUC has played in providing security in DRC. Through its military presence and operations MONUC has been able to restore stability to large parts of the war-torn country, thereby reducing incidents of organised violence against civilians and increasing humanitarian access and economic activities.

There is little doubt that, without a substantial and effective MONUC presence, this relative stabilisation of the security situation could quickly unravel and threaten the wider region as well. MONUC officials, humanitarian actors, and civilians who have been affected by violence are warning the international community of the catastrophic humanitarian consequences that a premature scaling back of MONUC presence could induce.[...]

Until the Congolese government can eliminate the threats posed by its security forces, other armed groups, and recently demobilised combatants, MONUC will need to remain in DRC, using its presence to protect civilians from immediate threats and creating a stable environment in which longer-term reforms can take place.[...]

In all of DRC's provinces, MONUC has gained control over and secured major towns and cities. In addition, MONUC's military presence and logistical capacity has significantly increased humanitarian access (and also economic opportunities) to previously insecure or remote rural areas (for example along the Rwindi–Rutshuru road in North Kivu, the Bunia–Kasenyi road in Ituri and the main Bunia–Beni and Bunia–Mahagi commercial routes).

The presence of MONUC troops has reduced incidents of organised violence against the civilian populations. Especially in Ituri, MONUC's operations against militia groups (for example around Mahagi) have succeeded in disarming the majority of combatants and allowing large parts of the population to return to their normal lives. 'When MONUC arrived, the militias left', explained displaced people in Djugu."

UNSC, 2 April 2008:

"MONUC has significantly increased its military presence in the Kivus and expanded its coverage of operational areas in support of the Goma and Nairobi processes. By April 2008, MONUC military will have redeployed some 2,000 additional personnel to North Kivu and approximately 850 additional troops to South Kivu. MONUC has deployed mobile operating bases to expand its presence in areas where FDLR is undermining legitimate authority and exploiting both local populations and natural resources. While redeploying military assets from Ituri or other parts of the Democratic Republic of the Congo to the Kivus, MONUC is deeply conscious of the need to avoid creating security vacuums, which might jeopardize important progress towards peace and stability elsewhere in the country."

ICG, 19 October 2005:

"In July 2003, the UN Security Council adopted Resolution 1493, which imposed an embargo against illicit arms trafficking in the Congo and authorised MONUC to monitor points of entry into the country. Resolution 1565, adopted on 1 October 2004, gave MONUC the authority to conduct unannounced inspections and seize arms and any other material related to violation of the embargo. An overstretched MONUC has failed to implement this mandate forcefully. While the primary responsibility for enforcement of the arms embargo lies with the Congolese government, it currently lacks the willingness and ability to take this on. The insufficiently staffed and poorly resourced Panel of Experts is unable to monitor the arms embargo properly, and the Security Council Sanctions Committee has yet to recommend sanctions against the list of targeted individuals submitted to it by the Panel."

AI, 5 July 2005:

"Yet, before and after the imposition of the UN embargo, reports of arms and related deliveries continued. International arms flows into the region have corresponded to the clandestine supply of military aid by powerful forces in the DRC, Rwanda, and Uganda to their competing client armed groups and militia in eastern DRC who practice banditry and show little or no respect for human rights."

Role of MONUC post-elections

HRW, 23 October 2007:

"MONUC had to redefine its role after the election to take account of the newly elected government. This process was particularly complicated in eastern Congo where Nkunda's troops, officially part of the Congolese army, were engaged in military operations against the army, and where the FDLR was said to be a negative force to be eliminated, yet sometimes benefited from the tacit support of Congolese army soldiers. While trying to negotiate the political complexities of this situation, MONUC was also facing reports of corruption in its own ranks, both in Ituri and in

North Kivu, where MONUC soldiers had reportedly traded military information to the FDLR and other armed groups in return for gold.”

MONUC, 6 September 2007:

“On 28 August [2007], MONUC reinforced its company of blue helmets in Masisi, and an additional Mobile Operating Base (MOB) was installed in Mushake on 29 August. On the whole, six MOBs are currently active in North-Kivu at Kishero, Mirangi, Rwindi, Nyamilima, Nyanzale and Mushake. In addition, MONUC’s brigade intervened three times to encourage a cease fire. MONUC helicopters were used to support the displacement of FARDC soldiers towards Masisi, to evacuate the casualties of Katale, and the staff of non governmental organisations. All MONUC’s military means, including MI-25combat helicopters, are constantly monitoring the area.

In all of eastern DRC, MONUC has a total of 18 MOBs active in Ituri, Katanga and in North and South Kivu.”

UN News, 25 May 2007:

“The northeast has long been the most unstable region in the vast DRC, and about 85 per cent of the more than 17,000 peacekeepers and military observers in the UN Organization Mission in the DRC (MONUC) are deployed in that part of the country.”

MONUC, 2 May 2007:

“MONUC Civil Affairs Section has developed a strategy of five lines to protect the civilian population. It consists of continuing identification missions for the displacement zones and for the needs of concerned people; mobilizing MONUC military resources to help the humanitarian organizations have safe access to the concerned persons; jointly planning the deployment of Mobile Operating Bases (MOB); constantly exchanging information between MONUC and the humanitarian community; and finally sensitizing the military authorities on international human rights respect and the distinction between combatants and non combatants.”

See also:

UNSC, 21 Dec 07, Security Council extends mandate of Democratic Republic of Congo mission until 31 December 2008, unanimously adopting resolution 1794 (2007) [[Internet](#)]

See also: UNSC, 31 March 2008, Security Council extends arms embargo concerning Democratic Republic of Congo until 31 December, unanimously adopting resolution 1807 (2008) [[Internet](#)]

Refugees International (RI), 6 Feb 2007, DR Congo: Security council must take steps to protect civilians [[Internet](#)]

ActionAid, 17 Nov 2006, DR Congo: MONUC - DDRRR, DRR, Military and Rule of Law Reform - Reducing Violence against Women [[Internet](#)]

The [home page of MONUC](#) contains links to recent UN documents on DRC

First democratic national elections after 45 years (2006-2007)

- Relatively peaceful elections in July and October 2006 were followed by violence in North Kivu
- Around 1,000 EU troops and more than 17,000 U.N. peacekeepers protected first democratic elections in over 40 years

- Transition process accompanied by the UN, and in particular the Comité International d'accompagnement de la transition (CIAT)
- In March 2007, opposition leader Jean-Pierre Bemba sought refuge at the South African Embassy in Kinshasa, after refusing to integrate its guards into the national army

ICG, 31 October 2007:

"The three-year transition period, which began with the signing of the Sun City peace agreement in South Africa in 2003, significantly improved the security situation in most parts of the country, creating conditions for peaceful elections in July and October 2006. However, tensions remained high in the East. While some progress was reported in Ituri district, and relative stability prevailed in South Kivu province, Kabila's victory was followed in North Kivu by violence on a scale and intensity not seen since the height of the war in 2000."

Reuters, 20 July 2006:

"The transition process in the DRC was accompanied by the United Nations, and in particular the Comité International d'accompagnement de la transition (CIAT), made up of permanent members of the UN Security Council, MONUC, the European Union, the African Union and other concerned countries such as South Africa, Belgium, Angola, and Gabon."

"The EU has sent some 1,000 soldiers to the Democratic Republic of Congo, meant to act as a deterrent against anyone disrupting or challenging the result of the elections."

[...]

The EU force has a four-month mission, starting the first day of voting, but will only intervene if the Congolese police and army, as well as the U.N. are unable to control violence."

ICG, 2 April 2007:

"Violence erupted in Kinshasa as opposition leader Jean-Pierre Bemba rejected 15 March [2007] ultimatum to integrate guards into national army. Reports of up to 600 killed in ensuing clashes 22-23 March, in which Angolan troops reportedly bolstered Kabila's forces. European diplomats condemned "premature use of force" before all paths of negotiation exhausted. Bemba, accused of treason, sought refuge at South African embassy and may leave for exile in Portugal. New government under PM Antoine Gizenga emphasised program to tackle corruption, increase transparency and reform security services. Security in east remained volatile. Local "mixage" integration process between dissident commander Laurent Nkunda and national army continued slowly. 5 integrated brigades now partially formed. Nkunda's demands for high-ranking positions, amnesty and return of Tutsi refugees remain unmet. Operations launched by Nkunda's troops against Rwandan FDLR rebels in North Kivu resulted in attacks against local population, killing 15. In Ituri, rebel leader Peter Karim sent 300 troops into integration camps. 4,000 remain in bush triggering MONUC threat to resume operations. Several Mai-Mai groups in North and South Kivu also agreed to join integration process."

See also

International Crisis Group (ICG), 5 July 2007, Congo: Consolidating the Peace [[Internet](#)]

International Crisis Group (ICG), 9 Jan 2007, DR Congo: Staying engaged after the elections [[Internet](#)]

MONUC, 6 Feb 2007 New DRC government announced [[Internet](#)]

The challenge of demobilisation of Congolese and foreign combatants (2003-2008)

- In November 2004, a law regulating and organizing the unified army (FARDC) came into force
- Despite the fact that 46,000 combatants (out of a total of approximately 130,000) have been integrated into a new national army, it has become clear that the Congolese Army is in no position to defend itself – or any civilian in its care – against militia warlords, foreign rebels, local defence forces, or any other armed actors (Feb 07)
- Conflict between military units has been most frequent in North and South Kivu where divisions between soldiers often reflect local ethnic divisions
- In North Kivu, many crimes are blamed on the “mixed army brigades of regular army soldiers and former rebels led by deposed Congolese Tutsi general Laurent Nkunda (April 2007)
- According to UN Secretary-General's report, FARDC remains fragile because of weak command and control; high levels of corruption; poor operational planning and tactical skills; poor administrative and logistical capacity to oversee the deployment, payment, sustenance and equipping of troops; very limited training capacity; and questionable loyalty on the part of some troops (March 07)
- Non-payment to former soldiers has led to frequent outbreaks of violence at the disarmament centres, and delays in the demobilization process have prompted demonstrations in protest at the slow pace of reintegration (2006-2007)
- Negotiations between the Congolese army and the three remaining rebel groups in Ituri led to the signing of a “Comprehensive Agreement for Peace in Ituri”, but clashes resumed at the end of 2006
- Failure of limited integration of fighters called mixage in the Kivus
- UN SG Ban Ki-moon, who visited the DRC in January 2007, stressed the need to create “a professional, well-paid and well-equipped army and police”
- DRC government presented a new program of security reform in July 2007
- Nairobi communiqué in November 2007 by the governments of the DRC and Rwanda laid down the provisions concerning the presence of Rwandan armed groups in the DRC
- New government master plan presented in February 2008 for the training of existing brigades, and to complete DDR does not convince international partners
- Through its Resolution 1804 from 13 March 2008, the UNSC demanded that all Rwandan armed groups, including FDLR, ex-FAR/Interahamwe, operating in the eastern DRC lay down their arms
- 524 foreign combatants and their dependents were repatriated to their countries of origin from January to June 2008

AI, 19 January 2007:

“On 12 November 2004 a law regulating and organizing the unified army (FARDC) came into force. Article 45 of the *Loi portant organisation générale de la défense et des forces armées*, Law on the General Organization of Defence and the Armed Forces, recognized the key national military entities to take part in the process of integration into the FARDC. These entities include the *Forces Armées Congolaises* (FAC), the former government army; the armed groups the *Rassemblement Congolais pour la Démocratie* (RCD), Congolese Rally for Democracy-Goma, the *Mouvement de Libération du Congo* (MLC), Congo Liberation Movement, the *Rassemblement Congolais pour la Démocratie/Mouvement de Libération* (RCD/ML), Congolese Rally for Democracy/Liberation Movement, the *Rassemblement Congolais pour la Démocratie/National*, Congolese Rally for Democracy/National, and the *Mayi-Mayi* “Patriotic Resistance” fighters. Also included were the ex-*Forces Armées Zairoises* (ex-FAZ), the government army of former President Mobutu, the ‘Tigers’ (*les Tigres*) and other military and paramilitary groups determined

by the government. These last included the armed groups of Ituri and the Mayi-Mayi armed groups operating in Katanga province.”

Romkema, June 2007:

“The GoDRC has not been systematically pursuing the repatriation of foreign AGs and has left this issue largely to MONUC since 2002.”

UNSC, 2 April 2008:

“Progress in security sector reform has been modest, with little progress being made towards achieving the overall security sector reform benchmark. The Government convened a long-awaited round table on security sector reform in Kinshasa on 25 and 26 February [2008], gathering some 200 participants, including international and national experts. The meeting was organized around four committees, on armed forces, justice, police and cross-cutting issues. The round table provided an important opportunity for the Government of the Democratic Republic of the Congo to present its approach to security sector reform to international partners.

Discussions during the meeting focused on the Government’s presentation of a new master plan for army reform and a road map based on four pillars involving three overlapping phases spanning 12 years. The short-term phase, from 2008 to 2010, is based on (a) the training and deployment of 12 battalions of a rapid reaction force drawn from elements yet to undergo *brassage*, as well as from the 18 existing integrated brigades; (b) the establishment of the legal framework necessary for army reform; and (c) the completion of the transitional disarmament, demobilization and reintegration and army integration programmes. International partners observed that the plan presented at the round table did not adequately address the overall structure and management of the defence sector. The Government maintains that army reform is solely a national prerogative, to be dealt with through national decision-making and action.”

MONUC, 14 May 2008:

“Through its Resolution 1804 on the situation in the Great Lakes region, adopted unanimously on 13 March 2008, the UN Security Council demanded that all Rwandan armed groups, including FDLR, ex-FAR/Interahamwe, operating in the eastern DRC lay down their arms, and present themselves without any further delay or preconditions to Congolese authorities and MONUC for their disarmament, demobilization, repatriation, resettlement and reintegration.

It also demanded that the Rwandan arms groups stop recruiting and using children, release all children associated with them, and put an end to gender-based violence, particularly rape and other forms of sexual abuse, and all other forms of violence, and stressed the need for those responsible to be brought to justice.”

UNSC Resolution 1804, 13 March 2008 [[Internet](#)]

OXFAM, 16 February 2007:

“Despite the fact that 46,000 combatants (out of a total of approximately 130,000) have already been integrated into a new national army, it has become clear that the FARDC (Forces Armées de la République Démocratique du Congo) is in no position to defend itself – or any civilian in its care – against militia warlords, foreign rebels, local defence forces, or any other armed actors. Attacks on government forces in North Kivu in November 2006 have served as a timely reminder that, without full support from MONUC, the Congolese army is completely incapable of preventing attempts to seize major population centres such as Goma.

Underpaid, underfed, ill-equipped and badly led, FARDC soldiers in all of the eastern provinces remain the single biggest cause of insecurity in DRC, responsible for committing more than 80 per cent of all human-rights abuses against civilians. Similar accusations of abuse are also

levelled against other arms of the security forces (including police) and 'demobilised' ex-combatants who continue to rely on violence as a means of survival."

CFR, 16 February 2007:

"UN Secretary-General Ban Ki-moon, who visited the country in January [2007], stressed the need to create "a professional, well-paid and well-equipped army and police (BBC).[...]"

Successful army reform is contingent on the success of disarmament, demobilization, and reintegration (DDR), a program to dismantle Congolese rebel groups, either by turning their ranks into civilians or integrating them into the national army. But failings in the DDR program, administered by the national commission CONADER (French), have resulted in an unprofessional and undisciplined national army that has taken on the characteristics of the rebel groups it has coopted, rather than reforming them.

Critics say the DDR program lacks independent verification of disarmament, fails to communicate to ex-combatants about the demobilization process, and is not sufficiently linked to security sector reform. CONADER's director of information says disarmament was suspended at the end of 2006 due to lack of funds, and there are 150,000 people waiting to be demobilized. Former fighters declining to join the national army often have difficulty supporting themselves even after reintegration programs."

HRW, 23 October 2007 :

"Donors recognize that reform of the armed forces is essential to assuring stability in Congo and hence pushed the Congolese government to come up with a program of security sector reform. Presented by the government on July 12, the plan included completion of disarmament and demobilization and formation of an integrated army to serve as a defense force as well as an organized work force for reconstruction; creation of a rapid reaction force of five to six brigades to replace MONUC by 2009; and creation by 2011 of a main defense force to defend the country's borders. Donors welcomed the government plans but voiced skepticism that the goals could be achieved in the timeframe set out."

In the Kivus :

HRW, 23 October 2007 :

"In early 2006 and again in August and November 2006, Nkunda's troops fought against soldiers of the national army, making plain their continued autonomy and refusal to enter the integrated force under the brassage arrangement. In an effort to avoid further military operations, Congolese army soldiers and Nkunda reached a compromise at the end of December 2006 involving a form of limited integration called mixage. This compromise collapsed by mid-2007, leaving Nkunda in a far stronger position militarily and politically than he had been at the end of 2006. The failure of the attempt at a political solution also undermined the efforts of national authorities to reassert administrative control in the region, and increased ethnic tensions.[...]"

In many cases Nkunda's troops operated, post-mixage, nominally as part of the national army in the same regions where they were previously known as renegade soldiers. And in many of these places, some of the same soldiers who committed serious human rights violations [...] were supposed to be providing security to residents.[...]"

Reflecting the failure of mixage to bring Nkunda's forces under control, in August 2007 Lieut. Gen. Kayembe Mbandakulu Tshisuma, now chief of staff of the Congolese army, announced at a press conference that all soldiers must go to brassage.[...]"

It is claimed that hundreds of those once under Nkunda's command left the units to which they had been assigned under mixage and rejoined Nkunda's forces once fighting resumed between Nkunda and Congolese army troops in August 2007."

In Ituri :

MONUC, 4 June 2008:

"In Ituri, dissidents belonging to the Nationalists and Integrationists Front (FNI) and the Ituri Patriotic Resistance Front (FRPI) surrendered with their weapons to MONUC forces."

On the Repatriation of foreign armed groups in the DRC

MONUC, 4 June 2008:

"In May 2008, 137 people comprising 82 armed foreign combatants, along with 55 dependents were repatriated within the framework of Disarmament, Demobilization, Repatriation, Reinsertion and Reintegration (DDRRR) programme to their countries of origin, namely Rwanda, Uganda and Burundi.

That brings to 524 the total repatriated by MONUC's DDRRR division in 2008."

MONUC, 26 May 2008:

"Alan Doss, head of MONUC and Special Representative of the UN Secretary General in the DRC, made his first visit to Kisangani, capital of Orientale province, since his appointment to the mission in January 2008.

Mr. Doss was greeted at Kisangani international airport by the provincial administrative authorities, as well as Mr. Ivan Timnev, director of the MONUC Kisangani office.

Mr. Doss immediately went to the Conference on the implementation of the engagements of the joint Nairobi communique, the official statement signed on 9 November [2007] last in Kenya by the governments of the DRC and Rwanda, which laid down the provisions concerning the presence of Rwandan armed groups in the DRC.

See also

UNSC mission report to the DRC:

UNSC, 15 Jul 2008 Report of the Security Council mission to Djibouti (on Somalia), the Sudan, Chad, the Democratic Republic of the Congo and Côte d'Ivoire, 31 May to 10 June 2008 (S/2008/460) [[Internet](#)]

Armed conflict brings further instability in 2007-2008

- Horrific attacks on civilians increased following political agreements that were supposed to bring these abuses to a halt
- Agreement following fighting in August 2007 between Congolese army troops and renegade soldiers under former general Laurent Nkunda, unravelled rapidly
- In January 2008, warring parties in North and South Kivu agreed on a ceasefire, and committed to find a solution to their conflict; a mechanism called the « Amani Programme», ensures the follow up of the January agreement
- According to Human Rights Watch, the killing and rape of civilians in North Kivu continued at a horrifying rate despite the signing of the January agreement (July 2008)

OCHA, 16 July 2008:

« L'année 2008 a débuté sur une note positive en République Démocratique du Congo. Sous la conduite du Gouvernement, les diverses parties armées au conflit dans le Nord-Kivu et le Sud-Kivu se sont rassemblées dans un but commun: chercher une solution pacifique aux violences et aux déplacements qui ont plongé ces deux provinces dans la tourmente depuis plus d'une décennie. Suite à la Conférence de Goma sur la paix, la sécurité et le développement dans les Kivus, tenue en janvier 2008, on observe une baisse générale du niveau de violence dans les Kivus en comparaison avec les six derniers mois de 2007, et des retours ont été enregistrés dans les deux provinces. Dans le contexte du « Programme Amani » – programme chargé d'assurer le suivi de la Conférence des Kivus - les acteurs humanitaires s'emploient à promouvoir des conditions favorables à des solutions durables pour les personnes déplacées internes et au relèvement après des années de conflit. »

Reuters Foundation, 25 June 2008:

"In January [2008], Congo's government signed a ceasefire deal and peace road map with Tutsi rebels and local Mai Mai militia groups in the eastern border provinces of North and South Kivu. But five months on, the process aimed at ending more than a decade of fighting is plagued by daily ceasefire violations.

U.N. peacekeeping mission head Alan Doss blamed disputes between rival rebel delegations and regular boycotts by members of technical commissions responsible for implementing the deal for holding up progress.

"It is indispensable that the parties remain once and for all at the table and that they stop repeatedly paralysing the process by suspending their participation," Doss told a weekly peace conference.

"As long as the (process) does not translate into concrete and visible acts, more than a million vulnerable people remain hostages of a volatile security situation and cannot return home to rebuild their lives," he said."

UNSC, 2 April 2008:

"The statements committed the armed groups to (a) accepting a ceasefire, to be monitored by MONUC; (b) agreeing that all militias should undergo disarmament, demobilization and reintegration or brassage; and (c) facilitating the return of refugees and internally displaced persons."

IRIN, 29 January 2008:

"The agreement also provides for the return of DRC refugees living in neighbouring countries under the supervision of a tripartite committee of the UN's Refugee Agency (UNHCR), the DRC government and countries of asylum - Burundi, Rwanda, Uganda and Tanzania.

The return and resettlement of internally displaced people to their villages would be overseen by the UN Office for the Coordination of Humanitarian Affairs (OCHA), the UN Mission in Congo (MONUC) and other humanitarian organisations."

HRW, 21 July 2008:

"The killing and rape of civilians in the eastern province of North Kivu in the Democratic Republic of Congo continues at a horrifying rate despite the signing of a peace accord six months ago, Human Rights Watch said today. The agreement was supposed to stop such attacks."

International Criminal Court has jurisdiction to investigate crimes committed in DRC (2003-2007)

- In March 2006, an Ituri warlord was brought to The Hague to face charges brought by the ICC; the ICC confirmed the charges against him in January 2007
- In October 2007, the Congolese authorities surrendered and transferred Germain Katanga, alleged commander of the Force de résistance patriotique en Ituri to the ICC

ICG, 26 August 2004, p.18:

"After initially indicating in July 2003 that it might investigate the situation in Ituri, the International Criminal Court (ICC) formally announced on 23 June 2004 that it would commence its first investigation into crimes committed in the DRC since 1 July 2002. This was preceded by a letter of referral from President Kabila in March 2004. ICG [International Crisis Group] welcomes this development. Ituri is the proper locale for the court's debut for a number of reasons. There are a number of individuals there who have been directly involved in the deaths of approximately 5,000 people since July 2002 (and another 55,000 since 1999). The main perpetrators are the leaders of the still active armed groups. Their prosecution would not only advance justice but would also be a significant deterrent."

ICC, 16 July 2003:

"The Office of the Prosecutor has selected the situation in Ituri, Democratic Republic of Congo, as the most urgent situation to be followed. The Prosecutor himself and selected staff are analysing the information available and will request additional information on the occurrence of crimes and assess the ability of the State to deal with them.[...]

The report on the latest of four Security Council missions to the Democratic Republic of Congo, issued on 16 June 2003, described the occurrence of gross violations of human rights in the eastern part of the country, including murder, mass rape, large-scale displacement of civilians, the use of child soldiers and even, reportedly, cases of ritual cannibalism. These crimes could constitute genocide, crimes against humanity or war crimes, and could thus, fall within the jurisdiction of the International Criminal Court."

IRIN, 8 October 2004:

"The International Criminal Court (ICC) and the Democratic Republic of the Congo (DRC) signed an accord on Wednesday allowing the court to begin investigations into war crimes and crimes against humanity committed within the country.[...]

The court is due to be properly established in the country by the beginning of 2005."

IWPR, 27 July 2006:

"Thomas Lubanga Dyilo, leader of a Hema militia named the Union of Congolese Patriots, UPC, was arrested and placed in custody by the DRC authorities following the killing and mutilation in February 2005 of nine Bangladesh soldiers who were serving in United Nations peacekeeping force in Ituri.

ICC, which had been asked by the government to investigate the situation in eastern Congo, issued an arrest warrant for Lubanga in February 2006, and he was transferred to ICC custody and sent to The Hague the following month. [...]

ICC prosecutors are preparing charges of crimes against humanity and war crimes against the 45-year-old DRC rebel commander. These will include the accusation that his forces conscripted children under the age of 15 to fight in combat. The ICC's Argentinean chief prosecutor, Luis

Moreno-Ocampo, alleges that Lubanga has trained children as young as seven to become guerrilla soldiers.”

UNSC, 20 March 2007:

“In a landmark step towards fighting impunity, on 29 January [2007] the International Criminal Court confirmed the charges against former militia leader Thomas Lubanga for war crimes committed in Ituri during 2002 and 2003.”

ICC, 18 October 2007:

“On 17 October 2007, the Congolese authorities surrendered and transferred Mr Germain Katanga, a Congolese national and alleged commander of the Force de résistance patriotique en Ituri [Patriotic Resistance Force in Ituri] (“FRPI”), to the International Criminal Court (ICC). Mr Katanga, also known as “Simba”, is alleged to have committed six war crimes and three crimes against humanity in the territory of Ituri, in the Democratic Republic of the Congo (“the DRC”).”

See also: African Faith-based Communities, Advancing Justice & Reconciliation in Relation to the ICC [[Internet](#)]

North Kivu: a strategic province marred by violence (2005-2008)

- North-Kivu is currently the stage on which national political and military antagonisms are being played out
- In 2006-2007, Laurent Nkunda, the dissident former RCD-G military commander who has repeatedly attempted to destabilize North and South Kivu provinces, launched several attacks in North Kivu
- Mai Mai operating in the territory of Beni committed acts of looting and extortion, arbitrary arrest, illegal detentions and abductions, resulting in a massive displacement of the local population
- At the end of August 2008, clashes between the Congolese armed forces and the CNDP were some of the first fighting since the January agreement

AI, 28 September 2005:

“North-Kivu is among the most strategic of the DRC's provinces, situated on the DRC's border with Uganda and Rwanda, whose security concerns, as well as economic and political interests, have twice tipped the DRC into disastrous armed conflicts since 1996. The province contains the intersecting zones of control of different, largely ethnic-based, Congolese armed political groups, each sponsored at one time or another by the three governments and their national armies. The province is home to a mix of ethnic groups with historically troubled relations, focused particularly on the issue of land tenure. North-Kivu also is of prime economic importance, with lucrative customs revenues from the Uganda and Rwanda border-crossings, substantial mineral deposits and valuable agricultural and cattle-rearing concerns.[...]

[...]

NORTH-KIVU: POWER, LAND AND ETHNICITY

North-Kivu province comprises six territories and the provincial capital, Goma. Beni and Lubero territories, often referred to as the grand nord; lie in the north of the province, Walikale territory to the west; and grouped around Goma the three territories of Masisi, Rutshuru and Nyiragongo, collectively referred to as the petit nord.

The major ethnic groups in North-Kivu are the Hunde, the Nande, the Nyanga and Banyarwanda, with smaller populations of other ethnic groups, such as the Tembo. Goma has a mixed ethnic population. The Banyarwanda form the majority of the population in Masisi, Rutshuru and Nyiragongo territories. The remainder of the population in these territories is primarily Hunde or Nande. The territory of Walikale, in the west of the province, is shared primarily between the Nyanga and Hunde, with only a small Banyarwanda population. The Nande predominate in Beni and Lubero territories.

“North-Kivu’s Banyarwanda communities

The presence of populations of Rwandan descent in North-Kivu predates 1910 when parts of Kivu were ceded to the Belgian Congo (present day DRC) from the German-ruled Ruanda-Urundi (present day Rwanda and Burundi). Between 1937 and the mid-1950s, the Belgian colonial administration transferred hundreds of thousands of Rwandans (Ruanda-Urundi being by then under Belgian rule) to the Congo, primarily to Masisi and Rutshuru territories. This resettlement was designed partly to ease demographic pressures in densely-populated Rwanda, but mainly to provide a ready workforce for large colonial agricultural and mining concerns in North-Kivu. Significant numbers of Rwandan migrants also came to Congo to seek land in the then relatively sparsely populated east of the country.

Between 1959 and 1963 several thousand Rwandan families, mainly Tutsi, settled in Congo fleeing pre- and post-independence insecurity in Rwanda. Other Rwandan, again mainly Tutsi, families sought refuge from persecution by the Hutu-dominated government and its supporters in Rwanda during subsequent years. In July 1994, the aftermath of the genocide in Rwanda and the victory of the Tutsi-led RPF over the then Hutu Rwandan government, led to the flight of over a million Rwandan Hutu refugees to eastern Zaire. The influx had a profoundly destabilizing effect on the region: much of the Hunde population was displaced and almost all the Tutsi population was forced to flee to Rwanda by violence perpetrated by elements among the Rwandan Hutu refugee and the Congolese Hutu populations. Many Tutsi were later encouraged to return to DRC in the course of RCD-Goma rule in the Kivus.

In August 1996 the Rwandan RPF government helped to form and gave their support to the AFDL (Alliance of Democratic Forces for the Liberation of Congo), a coalition of Zairian armed groups led by Laurent-Désiré Kabila and opposed to the Mobutu government. In September 1996, Rwandan government (Rwandan Patriotic Army, RPA) and AFDL forces invaded the Kivus, to eliminate Rwandan Hutu combatants, their bases and their known or suspected supporters. The RPA and the AFDL massacred tens of thousands of unarmed Hutu refugees and Congolese civilians in the process and also forced hundreds of thousands of Hutu refugees to return to Rwanda, while many more were scattered into the forests of Zaire, in appalling humanitarian circumstances.

c. Contradictory nationality laws

The question of the nationality of the Banyarwanda population has been a divisive issue in post-independence Congo, affecting the rights of members of these groups to hold land and political office, and thus impacting on the tenure of political and economic power in the east. In the course of the last 40 years, Congolese nationality laws have been amended four times, sometimes to the disadvantage of the Banyarwanda who have periodically been stripped of their entitlement to Congolese nationality. By and large, these changes have been driven by the competing political and economic interests of the leaders of the various ethnic groups.[...]

In November 2004, after a hotly contested passage through the DRC’s Parliament, a new nationality law was promulgated which confers the right to Congolese nationality on all people –

and their descendants - who were resident in the DRC on or before 30 June 1960, the date of independence. Dual nationality is not permitted under the law.

Although this new law should put an end to debate about the status of the Banyarwanda – the majority of whom were present in the territory of DRC before June 1960 - the status of the Banyarwanda in the Kivus, and of Tutsi especially, remains precarious. The practical impact of the new law will be limited until much more has been done to calm strained ethnic relations in the Kivus, particularly in the context of forthcoming national elections where eligibility to vote is a key issue dividing the communities in North-Kivu [...].”

ICG, 30 March 2005:

“Beginning in February 2004, dissidents from the former rebel movement Rassemblement Congolais pour la Démocratie-Goma (RCD-G) sparked clashes in the Kivu provinces of the eastern Congo. These were the result of disagreement within the transitional government over power-sharing in the army and the administration but the conflict was exacerbated by the interference of Rwanda, which sent troops across the border in November 2004, claiming to pursue the Hutu extremist FDLR. The resulting fighting displaced over 100,000 civilians and pushed the transition to the brink of collapse.”

Swiss Peace Foundation, 30 June 2006:

“In late-January [2006], Laurent Nkunda, the dissident former RCD-G military commander who has repeatedly attempted to destabilize North and South Kivu provinces, launched a new attack in the North Kivu territory of Rutshuru. Supported by elements of the 83rd brigade who had been boycotting the military integration process, Nkunda and his men captured several towns in the area for several weeks after clashing with the fifth integrated brigade of the FARDC which had committed human rights abuses against the Kinyarwanda speaking population in the area. MONUC stepped in to assist the FARDC in recapturing the towns, and a group of 1,800 troops subsequently abandoned Nkunda, leading to the retreat of his forces to the territory of Masisi. However, the fighting displaced several thousand people and stoked tensions between Kinyarwanda speakers and the other members of the local communities, in particular the Nande community of North Kivu. Meanwhile, in March the fifth brigade was replaced by the second integrated brigade that is assisted by MONUC forces.

- The bulk of Nkunda’s forces are Banyamulenge (ethnic Tutsi), and they are widely believed to have backing from Rwanda, which continues to seek influence in the region. Although there have not been any major incidents since then, the situation remains potentially explosive. Nkunda remains at large in spite of a longstanding warrant for his arrest, and there are still many troops who remain loyal to him and continue to boycott the military integration programme. It is very likely that Nkunda will launch a renewed attempt at destabilizing the region either in the period leading up to the elections or immediately thereafter. The RCDG will lose most of its power in the province as a result of the elections, and Nkunda and his backers – he has close links to Eugene Serufuli, the RCD-G’s governor of North Kivu province - may choose to reclaim control through military means. Even if Nkunda does not do so, the new provincial leadership will be faced with the presence in the province of dissident soldiers who are opposed to the new government. North Kivu is therefore expected to remain unstable for some time to come.”

IRIN, 15 October 2007:

“Along with Nkunda’s National Congress for the People’s Defense and the Congolese army, the Hutu Democratic Front for the Liberation of Rwanda and Mayi Mayi militia groups, which are organised along community lines, operate in the region.

Nkunda’s rebellion began in December 2006, causing an estimated 370,000 people to flee their homes amid clashes between dissident and regular troops.”

IRIN, 8 October 2007:

"Observers say ethnic tensions in the region have only grown since Nkunda's most recent campaign in August [2007].

'One situation that we are witnessing over the last month is that we have more and more ethnic-based population movement,' Lavand'Homme told IRIN. 'This is worrying because it means that within the community, there is deeper destabilisation of inter-ethnic living and this could become more serious if peace is not restored quickly enough.'

HRW, 23 October 2007:

"Instead of bringing much needed security to the province, the deployment of the mixed brigades led to a further deterioration of the security and human rights situation as they contested control over local populations with the FDLR. As Bravo brigade moved north and east in Rutshuru territory, its forces kidnapped and killed civilians accused of collaborating with the FDLR. The FDLR retaliated against communities that had accepted control of the mixed brigades, even attacking those people with whom they had previously cohabited relatively peacefully....]

The newly elected governor of North Kivu, Julien Paluku (from the Nande ethnic group, the largest in the province), made one small step towards resolving the local crisis by setting up a small administrative unit under his own supervision to deal with ethnic tensions. Beyond that, he saw the problem as one that the national government must resolve."

OCHA, 31 March 2008:

"The province of North Kivu remains the most problematic area in the DRC due to persistent hostilities. Following the intensification of conflict in the province at the end of 2007, which affected the entire *Petit Nord* (mainly Masisi and Rutshuru territories), the Conference of Peace, Security and Development for North Kivu and South Kivu brought a relative halt to the fighting in the first quarter of 2008. The cease fire declared in January 2008 during the conference brought most belligerents to the negotiation table. This positive development impacted the humanitarian community positively as it allowed for increased access throughout the province and in particular to areas previously inaccessible.

Nevertheless, skirmishes between various armed factions continued to take place in Masisi and Rutshuru. By the end of March, approximately 100 cease-fire violations were recorded by MONUC. These caused further waves of displacement in the affected areas. Furthermore, a new factor came into play in April 2008 with the deployment of FARDC forces to various FDLR controlled areas, in the frame of the "Nairobi Communiqué", and the subsequent confrontations that occurred between them. The FDLR did not participate in the Goma peace Conference. Tensions are expected to increase as further FARDC deployments take place across the province, including in areas such as Beni, Walikale and Lubero that have been relatively calm for the last year."

IRIN, 20 May 2008:

"The fighting pits the Congolese army and the Congrès national pour la défense du peuple (CNDP), a rebel group led by renegade army commander Laurent Nkunda, who claims to be defending the rights of the Tutsi in the country. The other armed groups include the Patriotes résistants congolais (Pareco - of the Hunde ethnic community) and Rwandan Hutu rebels of the Forces démocratiques pour la libération du Rwanda (FDLR), largely accused of being responsible for the 1994 genocide in Rwanda.

CNDP and Pareco are signatories to the latest ceasefire agreed with the government in January in Goma. However, since then, they have violated the peace deal and have yet to be integrated into the army."

IRIN 28 May 2008:

“Most of the latest clashes in North Kivu, in May and late April [2008], have pitted the Congolese army against the Forces Démocratique de la Libération du Rwanda (FDLR), a Hutu armed group of about 6,000, founded by fugitive perpetrators of Rwanda's genocide in 1994.

The DRC government and several armed groups in North Kivu province signed a ceasefire in January, but the truce has been repeatedly violated, increasing the number of displaced.”

UN News Service:

“Alan Doss, the top United Nations official in the Democratic Republic of the Congo (DRC), says calm has returned to Rutshuru in the country's volatile North Kivu province following last week's clashes between Government forces and armed rebel groups.

Mr. Doss, who is also head of the UN peacekeeping mission in the DRC – known as MONUC – conducted a joint mission to the area on Sunday, along with the country's Defence Minister, Tshikez Diemu, to assess security in the wake of the fighting.

The clashes that broke out on 28 August [2008] between the Congolese Armed Forces (FARDC) and the National Congress for People's Defense, known by its French acronym CNDP, was some of the worst fighting since a peace deal was signed by the parties in January [2008].

See also:

MONUC, 19 Jun 2008, RD Congo : Nord Kivu - Plusieurs violations du cessez-le-feu [[Internet](http://www.monuc.org/News.aspx?newsID=17624)]
<http://www.monuc.org/News.aspx?newsID=17624>

For a detailed account of political developments in North Kivu in 2006-2007, please see:

ICG, 31 October 2007, Congo: Bringing Peace to North Kivu, Africa Report N°133 – 31 October 2007 [[Internet](#)]

South Kivu: spillover from North Kivu (2007)

- Continued displacement due to FDLR militia, but relative improvement of security towards the end of the year (2007)

ICG, 5 July 2007:

“The mismanagement of the process in North Kivu had an immediate ripple effect in South Kivu. The Ubwari peninsula, the Ruzizi plain and the Minembwe Haut Plateau are the most frequent flashpoints. Both ex-Mayi-Mayi and ex-ANC Banyamulenge dissidents⁸⁸ are now using the *mixage* example and the Nkunda threat to renege on commitments to army integration and DDR. In reality, these militias want to preserve their economic and military fiefdoms but poor treatment and ethnic discrimination in the FARDC are also among the reasons for their opposition to integration. Additionally, some commanders give Kinshasa politicians kickbacks in return for protection, undermining the army's already feeble authority. Although Nkunda claims some of these groups are under his command, the militias are for the most part local phenomena.

The Rasta in particular, a splinter group from the FDLR which absorbed a large section of the former Mudundu 40 Mayi-Mayi group, loot, rape and kidnap civilians for ransom. They carry out systematic reprisals against civilians whenever they are under military pressure from MONUC or the army. Several villages on the southern fringes of the Kahuzi-Biega National Park in South Kivu have suffered from these attacks, which have little political significance but remain one of the most dramatic legacies of the war.”

AFP, 3 October 2007:

"The UN mission in the Democratic Republic of Congo (MONUC) on Wednesday noted a "clear improvement" in security in the eastern Sud-Kivu region, where the army has been fighting Rwandan Hutu rebels for more than 13 years.

MONUC "noted a clear improvement in security conditions on the Kanyola-Budodo-Nyamarege axis," more than 50 kilometres (30 miles) southwest of the provincial capital of Bukavu, military spokesman commander Gabriel de Broses told a news conference.

He attributed the improvement to operations by the Congolese army against rebel groups made up of local militias and Rwandan Hutu rebels in the Mugaba Forest.

The chiefly Hutu Democratic Forces for the Liberation of Rwanda are seen as a major source of instability in the region, bordering Uganda and Rwanda."

IRIN, 3 August 2007:

"OCHA's Traore said: 'There was a lot of hope in the [2006] elections but the polls did not address the main political issue in the east, this is the FDLR,' he said. 'The government needs to address the FDLR problem because it is the main cause of humanitarian problems in the east.'"

OCHA, 31 July 2007:

"In south Kivu, the situation in the province remains unstable with continued FDLR attacks and the effects of the military operation in north Kivu. Significant population movements as a result of attacks on civilians have been recorded particularly in the territory of Kalehe that borders north Kivu."

Role of Congolese Tutsi in the Kivus (2007)

- Marginalising of Tutsi community after 2006 elections

HRW, 23 October 2007:

"Congolese who speak Kinyarwanda (Rwandophones) represent less than five percent of the population of Congo and live largely in the two eastern provinces of North and South Kivu. Congolese Tutsi are a small part of the larger group of Rwandophones, numbering several hundred thousand and constituting between one and two percent of the total Congolese population of some 60 million. In South Kivu, Tutsi are known locally as Banyamulenge, but this term does not apply to Tutsi living in North Kivu.

The rapid rise of Tutsi to national political prominence in the 1990s followed by a sharp decline in their power, as well as the anti-Tutsi hostilities accompanying the process, form the essential context of the current political and military crisis in eastern Congo."

ICG, 31 October 2007:

"In the run-up to national and provincial elections, the situation began to deteriorate. The political balance shifted away from the Rwandan-backed Congolese Rally for Democracy (RCD) and its Tutsi and Hutu supporters towards the once marginalised Nande, Hunde and Nyanga communities allied to Kabila. The latter groups started jockeying for positions and pushing for redistribution of economic privileges. These developments caused the Tutsi community to fear marginalisation and reprisals for the crimes committed by the RCD army, the Armée Nationale Congolaise (ANC), and its allies during the war. While Hutu leaders could rely on a large group in the provincial parliament and a rapprochement with Kabila, Tutsi businessmen and RCD founder-members felt isolated and soon became more interested in Nkunda's insurgency as a potential source of leverage to defend their economic assets and deter acts of revenge."

See also:

IRIN, 6 August 2007, RDC: Les Banyamulenges cherchent une solution politique aux tensions [\[Internet\]](#)

Insecurity caused by continuous attacks by Hema and Lendu militias in Ituri District (1999-2008)

- Conflict between the Hema and Lendu has previously occurred in 1972, 1985 and 1996
- According to MONUC, conflict in 1998 was sparked by land dispute between ethnic Hema and Lendu escalated conflict since mid-December 1999
- More than 60,000 people were killed, 50,000 houses burnt and 500,000 people got displaced in DR Congo's Ituri region between 1999 and September 2002
- Use of modern weapons such as Kalashnikov instead of traditional weapons
- Exploitation of natural resources fuels violence in Ituri
- Since then significant progress has been made, mainly thanks to international community's determined commitment to disarming local armed groups
- Nearly five years after disarmament began, militia groups are still active in certain areas of the district and neither Congolese troops nor MONUC seem able today to force these groups to put down their weapon (May 08)

Struggle to keep control over rich Ituri region

HRW, 31 October 2002:

"Ituri province, created in 1999 out of part of Orientale province, is rich in gold, timber, and coltan (colombo-tantalite, a precious mineral). In addition it produces substantial amounts of coffee. Because of its location near Lake Albert and the Ugandan frontier, Ituri is a locus of trans-border trade that offers lucrative opportunities for transporting and taxing goods.

Several groups rebelling against the Kinshasa government have fought each other and splintered within themselves as they struggled to get and keep control over this wealthy region. The conflicts over political preeminence and control of resources have taken place increasingly along ethnic lines and have spilled over to encompass groups not originally touched by these hostilities. Thus a long standing rivalry between Hema and Lendu over the control of land and access to fishing rights now brings violence to various groups -- like the Nande, Gegere, Bira, and Alur -- said to be associated with one or the other of the original contenders. The conflict first involved some 40 percent of the local population -- roughly the numbers of Hema and Lendu -- but now brings devastation to far greater numbers. With the increase in attacks and victims on both sides, the level of fear has risen, making it easier for leaders to mobilize people for violence, supposedly as a measure of self-defense."

HRW, 8 November 2006:

"Ituri is one of the richest areas in the Congo with deposits of gold, diamonds, oil and timber. It is also home to 18 different ethnic groups, with the Hema/Gegere and Lendu/Ngiti communities representing about 40 percent of the inhabitants. Ethnic identity assumed growing importance after a local land dispute in 1999 between the Hema and Lendu was exacerbated by the occupying Ugandan army and national rebel groups who wanted to expand their power base. The broader war in the Congo and the availability of political and military support from external actors -- notably Uganda and Rwanda -- fuelled the growth of armed political groups based on ethnic loyalties. Chief among these were the Hema-dominated Union of Congolese Patriots (UPC), the Lendu-dominated Front for National Integration (FNI), the southern Hema-dominated Party for

Unity and Safeguarding of the Integrity of Congo (PUSIC), and the mixed People's Armed Forces of Congo (FAPC)."

PANA, 26 December 2002:

"More than 60,000 people were killed, 50,000 houses burnt and 500,000 people got displaced in DR Congo's Ituri region between 1999 and September 2002, a reliable source at the UN Observer Mission in the country (MONUC) here said.

AFP, 9 June 2002:

"Where as before conflicts between the Hema and Lendu ethnic groups were resolved with traditional weapons now they are using Kalashnikov assault rifles. Even worse, the Hema, like the Lendu are both running training camps where hundreds of recruits trained in how to use modern arms."

AI, 19 January 2007:

"The north-eastern district of Ituri, symptomatic of the situation in eastern DRC as a whole, is a region devastated by war. It experienced many serious bouts of inter-ethnic violence that caused the death of tens of thousands of civilians and forced hundreds of thousands of people to flee their homes and take refuge in insecure camps for internally displaced persons (IDPs).

Armed group attacks in Ituri often targeted "opposing" ethnic communities and included women and children as active participants in the violence. The proliferation of ethnic and community-based armed groups in Ituri is the result of the vacuum created by the collapse of state authority in the region since the beginning of the war."

ICG, 13 May 2008:

"In June 2003, on the eve of the establishment of a transitional government, Ituri¹ was on the verge of genocide. As a result of the disappearance of the State, the economic crisis, the manipulation of intercommunity tensions by the occupying Ugandan forces and the growing rivalry between Kampala, Kinshasa and Kigali for control of the region, violence over land disputes and increasingly marked divisions between communities degenerated into open inter-ethnic war between the Lendu and Hema populations. In four years the conflict killed more than 50,000 people and forced more than 500,000 to leave their homes. More structured militia groups were created within the Lendu and Hema communities (themselves divided into several sub-groups), each claiming that they were fighting for the survival of "their" people. In 2003 Ituri had no fewer than six armed groups and a total number of militia members estimated to be between 20,000 and 25,000.

Since then significant progress has been made, mainly thanks to international community's determined commitment to disarming local armed groups. Military and sensitisation operations by MONUC, and investigations by the International Criminal Court (ICC) have progressively reduced these groups' margin for manoeuvre and a process of disarmament has begun. Coupled with the dialogue initiated by the Congolese authorities late in the day with the remaining militia chiefs and a rapprochement between Kinshasa and Kampala, there has been a significant drop in violence and the number of combatants in Ituri's various militias.

As Ituri's armed groups had not signed the Sun City Agreement, the district did not follow the peace process used in the rest of the country. Although some attempts were made to initiate dialogue with the armed groups and various communities, there has never been a real long-term comprehensive political strategy to return peace to this peripheral region of the DRC. Rather, a series of initiatives have progressively led to a return of calm but without properly resolving the problem of insecurity in the region or the inherent causes of the conflict. Nearly five years after disarmament began, militia groups are still active in certain areas of the district and neither the Democratic Republic of the Congo Armed Forces (FARDC) nor MONUC troops (some of whom

have been redeployed in North Kivu province) seem able today to force these groups to put down their weapons. The disarming of communities has still not been seriously considered.”

See also:

IRIN, 22 August 2008, DR Congo: Tensions still rife in Ituri despite progress in DDR [[Internet](#)]

IRIN, 8 July 2008, DRC: Pacifying Ituri - Achievements and challenges ahead [[Internet](#)]

Katanga Province: improvement of security in 2008 (2006-2008)

- Three conflicts: tensions between southerners and northerners, between outsiders and natives, and between Mai-Mai militias and the national army
- Fighting between the Congolese army and Mayi Mayi militias who killed, raped, pillaged, burned villages to the ground and displaced some 220,000 people in 2005 and 2006

UNHCR, 11 August 2008:

“Not so long ago central Katanga province was known as the “triangle of death” because of fighting between the Congolese army and Mayi Mayi militias who killed, raped, pillaged, burned villages to the ground and displaced some 220,000 people in 2005 and 2006.

Today it's a different story, thanks to the reintegration and rehabilitation efforts of UNHCR and its partners.”

ICG, 9 January 2006:

“Katanga province is one of the most violent yet neglected regions of the Democratic Republic of the Congo. Most of its problems are the same as those that are systemic in the rest of the country but it needs urgent attention because it is both the heartland of national politics and the nation's most mineral-rich province, a potential economic dynamo whose mines once produced 50 per cent to 80 per cent of the national budget. [...]

The home province of President Joseph Kabila and many other senior Kinshasa politicians is divided by three conflicts: tensions between southerners and northerners, between outsiders and natives, and between Mai-Mai militias and the national army.

The north-south competition has become pronounced since Laurent Kabila, a northerner and father of the current president, Joseph Kabila, seized power by overthrowing the Mobutu dictatorship in 1997. The south is one of the most mineral-rich areas of the continent, whose copper and cobalt deposits have prompted Katangan politicians – mainly northerners – to cultivate personal networks in the local security forces to protect their interests and threaten their rivals. These officials are resented by southerners, who feel excluded from the wealth of the province. This rivalry has triggered violence. In October 2004, for example, the army killed over 70 civilians while suppressing a rebellion by a ramshackle militia in the mining town of Kilwa. In May 2005, officials alleged a secession plot in Lubumbashi and arrested south Katangan politicians and military officers. Both operations appear to have been prompted by Kinshasa politicians eager to protect their mining interests and to squash opposition.

The election campaign has reignited conflict between native Katangans and immigrants from Kasai province. Under Belgian rule, many Luba from Kasai came to run the mining companies and state administration, creating tensions manipulated by politicians, who in 1992-1993 organised militias to ethnically cleanse the province. More than 5,000 Luba were killed. The Union of Congolese Nationalists and Federalists party (UNAFEC), which is run by some of the

same figures who led the violence in the early 1990s, is using its youth gangs to intimidate its opposition, who are often Luba. Leaders of the party's youth wing have called for "necklacing" opponents with burning tyres.

The violence in the remote areas of northern Katanga is tightly linked to actors in Kinshasa. During the war, Laurent Kabila created Mai-Mai militias in the region to stem the advance of Rwandan-backed rebels. These militias, bolstered by arms from officials in Kinshasa as recently as 2004, have not been integrated into the national army and are fighting each other and the army over poaching and taxation rights."

ICG, 5 July 2007:

"Until early 2006 and the deployment of MONUC's Katanga brigade, the security and humanitarian situation was precarious for civilians caught between roaming Mayi-Mayi and undisciplined, non-integrated army troops. Mayi-Mayi leaders like Tshindja Tshindja and Bakanda Bakoka left the bush with financial incentives and promises of forgiveness. Others such as Makabe kept a low profile and started farming but kept their troops and weapons. In late 2005, FARDC launched an operation aimed at undermining the major Mayi-Mayi group still operational in Central Katanga, under the command of a mystic leader, Gedeon. It broke the group's communication system but failed to catch Gedeon and caused massive civilian displacements in appalling conditions.

MONUC's deployment and mediation in Mitwaba in April-May 2006 was instrumental in prompting Gedeon to surrender and most of his followers to demobilise. This signalled other groups scattered around Upemba, Pweto and Dubie that the war was over.[...]

The current calm, troubled only by repeated violent protests of disgruntled, demobilised Mayi-Mayi groups in Kamina and Kalemie against CONADER or UN agencies, may [...] only be a lull. With weapons and ammunition still hidden in the bush, political divisions among the Balubakat over spoils and local government, the lack of political will at the national and provincial levels to prosecute key leaders⁹⁴ and promote dialogue and grass-roots reconciliation, resumed violence in the province cannot be ruled out."

MONUC, 27 November 2003:

"Insecurity [...]"

The problems between the Mai Mai and the FAC can be traced to Laurent-Désiré Kabila's call to arms in 1998, and the perception among the Mai Mai that while they were defending Lubumbashi and Kamina from Rwandan-backed RCD forces, FAC soldiers were looting their villages and abusing their families. As a result, most Mai Mai today don't trust the FAC, and feel they haven't been properly compensated for their efforts to defend Kabila Sr. They claim to be ready to turn in their weapons to the international community, but not to the local authorities.

Ethnic tension

During the last decade, Katanga has been the scene of violent ethnic clashes. In 1992 and 1993, Kasaians were victims of ethnic cleansing by the Mobutu regime in retaliation for the election of Etienne Tshisekedi as prime minister. The Governor of Katanga, Gabriel Kyungu, was encouraged to persecute people from Kasai province. Katangans themselves became involved, enticed by the promise of Kasai-held jobs at the Gecamines, the country's largest state-owned mining company. According to MONUC's human rights section, thousands of Kasaians were killed and over 500,000 sequestered in inhuman conditions before being evacuated by humanitarian organizations to Kasai, where most of them had never set foot before. Although

tension has decreased in the past few years, there is a risk of flare-up especially during the pre-elections period when ethnicity may be exploited for political gain.”

Overview of armed groups

Overview of armies and groups involved in eastern DRC (2006-2008)

For a comprehensive studies on armed groups operating in the DRC, please see:

International Peace Information Service (IPIS), Mapping conflict motives: eastern DRC. by Steven Spittaels & Filip Hildert, 4 March 2008 [[Internet](#)]

For a comprehensive study on armed groups operating in the DRC, please see:

Hans Romkema, June 2007, “Opportunities and Constraints for the Disarmament & Repatriation of Foreign Armed Groups in the Democratic Republic of Congo, The Cases of the FDLR, FNL, and ADF/NALU,” [[Internet](#)]

Congolese Armed Groups:

FARDC, Forces Armées de la République Démocratique du Congo

IPIS, 4 March 2008:

“Because of the war situation there is a large FARDC presence in the Kivu provinces. In North-Kivu alone, units of 10 different FARDC Brigades have been deployed.[...]”

FARDC soldiers are involved in a considerable number of human rights violations throughout the region. [...] The FARDC are especially notorious for their direct and indirect involvement in the illegal traffic of mineral resources and other goods.[...]

Although there have been a few reports on military confrontations between the FARDC and the FDLR or the FARDC and Mayi-Mayi groups, in general the three ‘armies’ tend to cooperate in the fight against the forces of Laurent Nkunda.[...]

Especially the cooperation between the FARDC and the FDLR is a sensitive issue both partners will deny in public. However, in private and to people they trust, FDLR representatives will confirm the cooperation. The FDLR receive weapons from the FARDC.”

National Congress for the People's Defense (CNDP)

IPIS, 4 March 2008:

“The ‘National Congress for the Defence of the People’ (CNDP) is a politico-military movement under the presidency of Laurent Nkundabatware, better known as General Nkunda. It is a recent movement that was launched by Nkunda during the 2006 elections. The CNDP started out as a movement claiming to protect the interests of all Rwandophones in the Eastern DRC. Initially many Congolese Hutus joined the CNDP ranks. However, the attempt to forge a Rwandophone coalition failed and in the meantime, the CNDP has stopped presenting itself in this manner. It is now generally recognised that Nkunda and his movement serve the interests of (at least a part of)

the Tutsi minority in the Kivus. Nkunda even tries to create a certain paranoia among the Tutsi population in North-Kivu. In his speeches, leaflets and other political communication he constantly refers to past violence against the Tutsis and the imminence of genocide. In its political manifesto of December 2006⁷ the CNDP has formulated 8 principal objectives.

The most important are:

- putting an end to the presence of foreign armed groups on Congolese soil (with a strong emphasis on the 'Forces Démocratiques de Libération du Rwanda', FDLR)
- the return of the Congolese refugees abroad
- an independent investigation into the war crimes committed on Congolese soil between 1998 and 2004.
- an alternative integration process for the 'Forces Armées de la République Démocratique du Congo' (FARDC) (different from the current 'brassage' process)
- the federalisation of the DRC.[...]

The CNDP occupies two zones in the 'Petit Nord' area of North-Kivu: the grazing lands of eastern Masisi/western Rutshuru and the hilly region in eastern Rutshuru where the borders of the DRC, Uganda and Rwanda meet. The CNDP headquarters are situated in the former zone in the village of

Kitchanga. Within the territory under his control Nkunda has set up a parallel administrative structure. He controls the police force and the intelligence service. In September 2007 close to 1 million people paid taxes to him."

Wikipedia, 2007:

Nkunda is a "[F]ormer General in the Armed Forces of the Democratic Republic of Congo (DRC) and is the current leader of a rebel faction operating in the province of Nord-Kivu, sympathetic to Congolese Tutsis and the Tutsi-dominated government of neighbouring Rwanda. Nkunda, who commands former troops of the 81st and 83rd DRC Army Brigades, has been indicted for war crimes in September 2005 and is under investigation by the International Criminal Court.

[...]

Later in 2004, Nkunda's forces began clashing with the DRC army in Sud-Kivu and by May 2004, occupied Bukavu where he was accused of committing war crimes. Nkunda claimed he was attempting to prevent genocide against Tutsis in the region, a claim rejected by MONUC, and denied the claim that he was following orders from Rwanda. Following UN negotiations which secured the withdrawal of Nkunda's troops from Bukavu back to the Masisi forests, part of his army split, and led by Colonel Jules Mutebusi left for Rwanda. About 150,000 Kinyarwanda-speaking people (Nkunda's own language) were reported to have fled from Sud-Kivu to Nord-Kivu in fear of reprisal attacks by DRC army.[...]

During both the first and second rounds of the contested and violent 2006 general election, Nkunda had said that he will respect the results. On November 25, however, nearly a day before the Supreme Court ruled that Joseph Kabila had won the presidential election's second round, Nkunda's forces undertook a sizable offensive in Sake against the DRC army 11th Brigade, also clashing with MONUC peacekeepers."

AI, 10 September 2007:

"An international warrant for the arrest of Laurent Nkunda was issued nearly two years ago -- if it had been acted on, we might not be seeing the terrible violations we are seeing today," said van der Borgh. 'There must now be clear international, DRC and Rwandan government commitment and collaboration to bring him to justice.'"

Rwanda's perception of Nkunda:

Reuters, 10 September 2007:

"[Rwandan President] Kagame made clear he believed Nkunda should be viewed differently to the FDLR, which he called 'guilty of genocide'.

'This man Nkunda, like him or not, and whatever mistakes you could hold him accountable for, has some political grievances that are legitimate,' he said."

Mai-Mai militias

International Alert & al., 2005, p.20:

For many Congolese, the idea of Maï Maï is linked to a state of mind: the determination to take up arms against the presence and domination of foreigners on Congolese soil. The Maï Maï are regarded by a large proportion of the population as groups of resistance fighters opposing the occupation,²⁷ and some Maï Maï commanders do present themselves as symbols of Congolese resistance.[...]

One of the cornerstones of the Maï Maï movements is, in a reflection of the 'Simba' [lions in Kiswahili] of the 'muléliste' rebellion of the 1960s, the use of magical religious practices which basically consist of initiation and immunisation rites, and specific prohibitions. These practices have the dual function of protecting the combatants on the battlefield and enhancing discipline and the internal cohesion of the group.[...]

These movements are by their nature highly diversified and very unstable. Many of them were set up spontaneously around a leadership which had no previous political experience. The ups and downs, the risks inherent in fighting, the internal conflicts, the constant splits and regrouping that these movements experience mean that their structures and their methods are constantly called into question. This results in a lack of cohesion within the groups and in opportunism on the part of many Maï Maï fighters who, while presenting themselves as symbols of the resistance, kill, pillage, rape, seize local people's property, and engage in the illegal exploitation of resources."

IPIS, 4 March 2008:

"The bulk of the Mayi-Mayi groups in the Kivus are active in North-Kivu. Besides some smaller groups, the main Mayi-Mayi force in the area is the Coalition of Patriotic Congolese Resistants. PARECO is an alliance of several Mayi-Mayi groups. The leadership of the coalition is in the hands of the ill-reputed Colonel La Fontaine of the Nande ethnicity.[...]

PARECO vehemently opposes the return of the Tutsi refugees to the territories of Masisi and Rutshuru.[...]

Since its inception PARECO has grown rapidly into a significant force. According to their own sources, their numbers amount to approximately 3500 fighters but this seems unlikely. Their armed forces are organised in 4 sectors. In those areas where they are militarily weak they cooperate with the FDLR. They have a good working relationship and together they have launched several military operations against Nkunda. PARECO generates an income from mining and other commercial activities. They buy weapons from the FARDC."

See also :

United Nations Office for the Coordination of Humanitarian Affairs - Integrated Regional Information Networks (IRIN), 16 Mar 2006,

DR Congo: From protection to insurgency - history of the Mayi-Mayi [Internet]

In Ituri

UNSC, 2 April 2008:

“However, FNI and FRPI splinter groups that refused to disarm continued to create insecurity, primarily in Djugu and Irumu territories. Political efforts to obtain their surrender, together with military pressure, have largely neutralized remnant FNI dissidents operating in Lalo and the Katanga forest areas. On 31 January [2008], Konzinziko Chabaniekoli surrendered, which leaves only two dissident FNI leaders — “Majors” Freddy and Arith — at large, along very few combatants. FNI now poses a criminal, rather than a credible military threat.”

Foreign armies and groups

Rwandan Army

International Alert & al., 2005, p.19:

“Until its official withdrawal from the east of the DRC in September–October 2002, the Rwandan army retained a strong presence there. It was obliged to withdraw its troops under pressure from the international community, notably the United States of America, but Rwanda nevertheless reorganised itself, restructuring the military arm of the RCD-Goma and creating a rapid intervention force which could be redeployed in eastern Congo if necessary. Before their withdrawal, it was estimated that the Rwandan troops numbered between 25,000 and 35,000.

Rwanda cites security considerations as the justification for its presence in the DRC; i.e. the need to protect its borders from Rwandan Hutu rebels operating in North and South Kivus under the banner of the Forces Démocratiques de Libération du Rwanda (FDLR), numbering between 15,000 and 20,000 men.”

Rwandan Hutu militias - Forces Démocratiques de la Libération du Rwanda (FDLR)

IPIS, 4 March 2008:

« Currently the ‘Forces Démocratiques de Libération du Rwanda’ (FDLR) are the largest armed group present in the Kivu provinces. They are a politico-military movement that originates from ex-FAR (‘Forces Armées Rwandaises’) soldiers, ex-Interahamwe militiamen and Hutu civilians who fled the offensive of the ‘Rwandan Patriotic Front’ (RPF) in neighbouring Rwanda in 1994. The FDLR are the successor of the ‘Armée de Libération du Rwanda’ (ALiR), which is in turn the successor of the ‘Rassemblement pour le Retour des Réfugiés et la Démocratie au Rwanda’ (RDR). The composition of the FDLR today is different from the composition of the RDR initiators in 1995. Whereas a powerful core group of the FDLR movement still consists of Hutus involved in the 1994 genocide, the large majority is innocent. Many of them are youngsters who were only children at the time of the Rwandese genocide. The exact number of FDLR members with a genocidal past is the subject of some heavy debate [...]”

Romkema, June 2007:

“The FDLR was created relatively recently - in 2003 in the Congolese city of Lubumbashi. The FDLR is in essence a continuation of its immediate predecessor, the ALIR (I and II) and, like the ALIR, rooted in the various structures that were created among and by the Rwandan refugees and combatants who fled the country in the aftermath of the 1994 genocide. The FDLR leadership is still dominated by leaders of the former Rwandan army, and politicians from the regime that ruled Rwanda before and during the genocide. However, the FDLR has also integrated several individuals, mostly younger men, from the Rwandese refugee community in the DRC, who had no personal implication in the genocide.”

ICG, 5 July 2007:

“The other major armed group in the Kivus, the FDLR, steadily declined during the transition, hurt by desertions and the cutting of its supply line. It has some 6,000 soldiers – half its 2001 strength – around 4,500 of whom are fit to fight. Many have married Congolese and spend some time as farmers and petty traders. The group relies on taxing mines, trade routes and markets for limited

revenue, and deserters say morale is low. The FDLR has split into two major groups, one of approximately 1,000 combatants led by Colonel Musare and the main force led by General Mudacumura. While Musare has been linked to the Rally for Unity and Democracy (RUD), a Rwandan opposition party, neither wing has much political or military clout.”

HRW, 23 October 2007:

“The FDLR controlled a significant part of the territory of both North and South Kivu as of late 2006, but diminished somewhat in the early months of 2007 as Nkunda expanded his zone of dominance and pushed the FDLR further towards the west. According to one analyst, the FDLR controlled some 20 percent of the Kivus and exercised influence over 30 to 40 percent more. His data generally reflected the situation prior to Nkunda’s expansion in early 2007 and showed also that the FDLR controlled more territory in South Kivu than in North Kivu. While Nkunda controlled the richer and more populated areas of Masisi and Rutshuru, the FDLR has its greatest strength in the less peopled areas of Walikale.”

MONUC, 4 August 2008:

“67 Rwandan combatants of a dissenting faction of the Democratic Forces for the Liberation of Rwanda (FDLR), surrendered their weapons, on 31 July 2008 in Kasiki, approximately 200 kms north of Goma, capital of North Kivu province in eastern DRC. They surrendered in the presence of a Congolese government delegation led by the DRC Minister of Foreign Affairs, Mr. Mbusa Nyamwisi, as well as “Task Force” representatives of the follow up group of the Nairobi Communiqué. [...]

However MONUC observes with regret that many combatants continue to be manipulated by certain leaders who prevent their free participation in the process of disarmament, demobilization and return to Rwanda.”

For more information on the FDLR, see Marina Rafti, South Kivu: a Sanctuary for the Rebellion of the Democratic Forces for the Liberation of Rwanda, Institute of Development Policy and Management, University of Antwerp [[Internet](#)]

The Forces Nationales de Libération (FNL)

Romkema, June 2007:

“The FNL is the oldest existing rebel movement in Burundi and, indeed, in the Great Lakes Region as a whole. It was created in 1980 by Burundian Hutu exiles in Rwanda and Tanzania, who were inspired by the developments in Rwanda, where the country’s administration and army were entirely controlled by the majority Hutu ethnic group since 1959. The political objectives of the FNL have largely remained the same in the course of its existence: Burundi should be ruled by the majority ethnic group and the rural population should benefit from a large share of the country’s resources. According to the FNL, the vast majority of Burundi’s poor are Hutu and the rural Hutu population is exploited by the wealthier and predominantly urban (Tutsi) population.[...]”

Currently, the FNL probably has just over 1,000 combatants, and certainly no more than 3,000. Of these, it is estimated that at any given time around 300 are present in the Ruzizi Plains area of the DRC’s South Kivu province.”

UNSC, 22 May 2006:

“Concerning the handful of FNL elements still remaining in the Democratic Republic of the Congo, the Congolese armed forces have identified a small group, numbering in the low hundreds, of alleged FNL combatants encamped on the Ubwari Peninsula in South Kivu.”

Ugandan Armed Groups

Lord Resistance Army (LRA)

IWPR, 24 June 2008:

"After two years of relative quiet, and as peace talks with Uganda continued in Juba, South Sudan, the LRA went on the rampage in the remote region where the park is located, with a campaign of looting, abduction and killing.

In a major extended raid, rebel forces left the Garamba park at the beginning of February and crossed first into South Sudan and then into the neighbouring Central African Republic, where the rebels kidnapped more than 100 people and pillaged the town of Obo before returning to their base camp in DRC.

Along the way, the group used captured civilians to act as porters for looted goods. Some of the captives were then pressed into service, forced to undergo military training to boost the ranks of a group that has survived over many years by abducting and forcibly conscripting civilians including children.

Recent reports suggest the situation is about to intensify. United Nations sources say units of the DRC army could begin arriving by the end of June in Dungu, the area's main town, located less than 100 kilometres from the Garamba park. Their mission would be to keep the LRA forces in check, if not drive them out of the park altogether.

Such a move could, however, herald a protracted war against the LRA, which currently numbers about 700 seasoned guerrilla fighters with a cult-like devotion to their leader Joseph Kony, making them one of sub-Saharan Africa's most feared militias."

ADF/NALU**Romkema, June 2007:**

The ADF and NALU are two different but closely aligned Ugandan rebel movements, operating largely from the Grand Nord area of North Kivu province and from the bordering Ituri District, both in the DRC. It is mainly the ADF that continues to launch military operations against the GoU, though it is only capable of sporadic small scale operations on Ugandan territory. The ADF was created in 1996 from the remnants of other rebel groups linked to Islamic extremist groups in Uganda. The NALU was created in the late 1980s and also aims to overthrow the current GoU. The NALU originated from a region where local Bakonjo tribesmen have fought for local autonomy and political influence for decades, and is an amalgam of several older locally rooted rebel groups.

[...]

It is generally believed that the ADF/NALU forces are today no longer militarily significant – they are estimated to number no more than 900 fighters who are not very well trained or equipped, and of whom around 60% are Congolese nationals. These forces are more focused on defending their lucrative business interests in the DRC than on achieving their political objectives in Uganda."

Main causes of displacement

Plunder of natural resources by warring parties continues to be major factor causing displacement (1998-2007)

- In May 2001, UN report on exploitation of natural resources accused foreign armed forces and Congolese fighters of using DRC's natural resources to fuel the conflict

- In Oct 2002, the final version of the UN report stated that due to elite criminal networks, the illegal exploitation of DRC's resources would continue, despite the withdrawal of foreign armed forces
- NGOs stress that the UN must address the role of multinational corporations in war (Oct 03)
- Various NGO reports show the central role of natural resources, such as coltan and diamonds, in the conflict
- The UN failed to follow up on the UN panel's reports recommendations, and those responsible for the illegal exploitation of the resources have not been held responsible (June 2005)
- Several thousand people fled their villages in Kasai Oriental province, which were burned down following a conflict linked to a diamond mine in the area (February 2007)
- In Lubero territory in North Kivu, civilians reportedly fled their villages, as Rwandan Hutu militia reportedly regularly forces the civilian population to carry exploited minerals for one to two weeks at the time (March 2007)
- As of the end of 2007, the illegal exploitation of natural resources continued unabated

Brookings Institution-University of Bern Project on Internal Displacement, 26 August 2005, p.5:

"In the DRC [...], the distinction between conflict and development-induced displacement has been blurred as civilians have been displaced to make way for resource extraction, which in turn has fueled the war and further displacement."

ISN, 27 July 2006:

"The DRC has 10 percent of the world's copper, two-thirds of its coltan, as well as gold, diamonds, uranium, zinc, among others - and a river system that could electrify all of Africa."

ICG, 31 October 2007:

"The illegal exploitation of natural resources continued unabated as all communities armed, animated by deep mutual resentments over land security, mass human rights abuses during the war and control of natural resources."

HRW, 2 June 2005, p.14, p.23:

"In 2000, the U. N. Security Council expressed concern that Congo's natural resources such as gold, diamonds and other minerals were fuelling the deadly war. They appointed a panel of experts to look into the matter who published four separate reports between April 2001 and October 2003. In these series of reports, the U.N. panel of experts reported that Rwandan, Ugandan, and Zimbabwean army officers as well as members of the Congolese elite were growing rich from the wealth of the Congo. They showed how extraction of these resources helped fund armed groups, thus fueling the war. They further documented how the minerals of the Congo were fed into the networks of international commerce. The panel concluded in its report of October 2002 that the withdrawal of foreign armies would not end the resource exploitation because the elites had created a self-financing war economy.

In 2002, following heavy international pressure, in part because of the U.N. panel reports, both the Rwandan and Ugandan governments agreed to withdraw their soldiers from Congo. Uganda subsequently arranged with the Congolese government to keep some forces in northeastern Congo until 2003 when the last of their troops withdrew. [...]

During eighteen months of conflict in 2002 and 2003, Hema and Lendu armed groups fought to control the gold-mining town of Mongbwalu in Ituri. As they passed control of the rich prize back and forth five times, they also slaughtered some two thousand civilians, often on an ethnic basis. In addition, they carried out summary executions, raped and otherwise injured thousands of

civilians, engaged in torture, and arbitrarily detained persons whom they saw as enemies. During the frequent clashes, tens of thousands of civilians were forced to flee their homes, losing much or all of their goods to looting or destruction.”

AI, 28 April 2003:

“Foreign forces have also deliberately stoked inter-ethnic conflicts and mass killings in order to promote their economic interests. This has been the case in Ituri for example, resulting in further mass killings and large scale destruction of habitations. Thousands of women have been raped. Children as young as 12 have been forced into hard labour in the mines. Human rights defenders who have denounced these abuses have been beaten, detained, forced to flee or killed.”

To see the Report of the Panel of Experts on the Illegal Exploitation of Natural Resources and Other Forms of Wealth of the Democratic Republic of the Congo (S/2001/357), 12 April 2001, [\[External Link\]](#)

For the UN SC 13 November 2001 Addendum to the report on exploitation of natural resources, please see source below.

For May 2002, UN SC 22 May 2002 Interim Report on the exploitation of natural resources in the DRC, see reference below. "

To see the 2002 report of the Panel of Experts on the Illegal Exploitation of Natural Resources and Other Forms of Wealth of DR Congo, 16 Oct 2002, see [\[External Link\]](#)

For the 2003 report of the Panel, 23 October 23, see reference below

HRW, 2 June 2005, p.120:

“The panel's reports raised the expectation that U.N. member states would hold to account those companies that were responsible for misconduct, but these hopes were misplaced. After the publication of their final report in 2003, its mandate of the U.N. panel of experts was ended and the information uncovered by the panel was archived for 25 years. The failure of the U.N. to follow up on the panel's recommendations has been a major blow to further progress on the critical issue of the link between conflict and natural resources in the DRC and beyond.”

For more on the exploitation of coltan in eastern DRC, please see a study by [The Pole Institute, January 2002, The coltan phenomenon, How a rare mineral has changed the life of the population of war-torn North Kivu province in the East of the Democratic Republic of Congo](#) [link below]

For more information on the coltan trade and the role of European companies, please see "Supporting the War Economy in the DRC: European Companies and the Coltan Trade" by the International Peace Information Service (IPIS), January 2002 [\[External Link\]](#)

2007

OCHA, 27 February 2007:

“Une mission conjointe d'évaluation a été effectuée dans le district de Tshilenge, dans le territoire de Miabi, à 60 km au sud de Mbuji-Mayi, le 21 février 2007 par l'UNICEF, la MONUC et la Société Civile du Kasai Oriental afin d'évaluer la situation humanitaire après l'incendie et la destruction de deux villages de la zone de santé rurale de Tshilundu suite à un conflit autour de la mine de diamant de Ntabalayi. La mission a recommandé, entre autres, au Comité permanent inter-agences (CPIA) de plaider auprès des partenaires pour une assistance aux enfants scolarisés déplacés, aux ménages dans les familles d'accueil, et pour un plaidoyer pour le retour des familles dans leurs villages d'environ 3 500 habitants.”

MONUC, 19 March 2007:

“Exploitation of natural resources by a large number of Rwandan Hutu combatants in the National Park of Maiko, located at the border of the Lubero territory in North Kivu and of the western part

of the Oriental Province is reportedly the cause of growing insecurity and human rights violations in this area. According to information received, Rwandan Hutu combatants regularly force the civilian population to carry the minerals exploited to their bases which require travelling on foot for one to two weeks. In some villages of the western part of Lubero territory, this situation has reportedly caused displacement of populations."

For more information on the extent and use of DRC's natural resources, see Global Witness, 30 June 2004 **Same old story - A background study on natural resources in the DR Congo** [\[Internal Link\]](#) and Global Witness, June 2006, Reforming the DRC **Diamond** Sector [\[Internet\]](#)

For allegations of gold trafficking by MONUC troops in 2007, please see:

MONUC, 23 May 2007, DR Congo: United Nations investigates allegations of gold trafficking in Ituri [\[Internet\]](#)

For an account of killings and displacement close to a mine in Katanga, and subsequent impunity of perpetrators, please see:

ASADHO/KATANGA, 17 July 2007, DRC: Kilwa Trial - a Denial of Justice [\[Internet\]](#)

Displacement in North Kivu, due to army operations against militias, and attacks by renegade troops and militias (2007-2008)

- Congolese troops were reported to systematically looted villages, resulting in the massive displacement of the local population in January 2007, in areas close to Butembo, North Kivu, where they were deployed to repel attacks by Mai Mai combatants
- Clashes between the Congolese army and areas dominated by the Democratic Forces for the Liberation of Rwanda (FDLR) caused the displacement of some 15,000 villagers in North Kivu (February 2007)
- In March 2007, some 10,000 people fled their village in North Kivu following clashes between DRC government forces and rebels from the Forces démocratiques pour la libération du Rwanda (FDLR)
- Since fighting erupted between dissident general Laurent Nkunda and the Congolese army in December 2006, more than 500,000 people have been displaced from their homes in North Kivu province (May 2008)
- Violent clashes between government troops and rebel forces led by Nkunda in December 2007 forced an estimated 50,000 people to flee their homes in the first two days alone
- New displacement occurred in 2008 due to attacks by armed groups against civilians by armed groups, which led to rape, killings, looting of property, forced recruitment and forced labour

DPA, 23 February 2007:

"Dozens of Congolese soldiers and militiamen have been killed and around 15,000 villagers displaced in intermittent fighting this week, United Nations officials said Friday.

'There have been a lot of incidents this week,' said Andrew Zadel, spokesperson for the UN Office for the Coordination of Humanitarian Affairs in Democratic Republic of Congo's North Kivu province.

Katwiguru, a town of about 10,000 some 100 kilometres from Goma, was "completely empty except for 500 people. Most are hiding in the bush or staying with families in other towns," Zadel said.

The clashes came the week after a new Congolese brigade was deployed in North Kivu and started patrolling an area dominated by the Democratic Forces for the Liberation of Rwanda (FDLR)."

IRIN, 14 March 2007:

"An estimated 10,000 civilians have fled the village of Burumba in North Kivu province in eastern Democratic Republic of Congo (DRC) after violence erupted between the national army and a Rwandan Hutu rebel group, officials said on Tuesday.

The displaced people had sought refuge in the neighbouring village of Nyamilima after the clashes, which erupted on Saturday between DRC government forces and rebels of the Forces démocratiques pour la libération du Rwanda (FDLR), some of whose members have been in eastern Congo since 1994 and stand accused of masterminding the genocide in their country.

"Our patrols arrived in the area on Saturday and Sunday but found an empty village whose inhabitants had fled towards the village of Nyamilima," Major Ajay Dalal, spokesman for the United Nations Mission in DRC (MONUC), told IRIN by telephone from Goma, the capital of North Kivu.

Relief workers had by late afternoon on Tuesday not been able to approach Nyamilima to help the displaced because of the prevailing insecurity, according to Andrew Zadel, spokesman for the UN Office for the Coordination of Humanitarian Affairs (OCHA) in North Kivu.

Some displaced had sought shelter in schools and churches while others had been accommodated by families in Nyamilima, according to MONUC-run Radio Okapi."

IRIN, 14 May 2008:

"More than half a million of North Kivu's internally displaced people (IDPs) have left their homes since the start of Nkunda's insurgency in December 2006."

Save the Children Alliance, 3 January 2008:

"Violent clashes between government soldiers and rebel forces led by Laurent Nkunda began on 2 December, forcing an estimated 50,000 people to flee their homes in the first two days alone. The worst of the fighting is to the east and north of Goma, the capital of North Kivu district."

HRW, 23 October 2007:

Throughout 2006 the FDLR looted communities in Katwiguru, Bwisha, Makoka, and surrounding areas of Rutshuru territory, causing residents to flee to the town of Kiwanja. According to the head of a displaced persons' camp in this town, people had fled out of fear of looting, rape, and other violence. He remarked of the FDLR, 'They have taken over our villages.'"

Office of the Special Representative of the Secretary-General for Children and Armed Conflict, 19 October 2007:

"Ms. Coomaraswamy, Special Representative of the Secretary-General for Children and Armed Conflict, voices her grave concern over the escalation of forced child recruitment and sexual violence by Laurent Nkunda's armed forces, the FDLR and allied militias in the North Kivu province of the Democratic Republic of the Congo.

'It is estimated hundreds of children are in the ranks of Nkunda forces and that thousands more are in imminent danger of recruitment. Over the last weeks, a large number of children have fled their villages following attempted recruitments in a number of schools in Masisi', states Ms. Coomaraswamy.

The Special Representative urges all armed groups to take necessary measures, according to their previous commitments, to ensure that no child is recruited or used and to demobilize all children currently associated with their groups. 'The forced recruitment and use of children to serve in armed groups and forces as well as sexual violence during wartime are a breach of international law and constitute war crimes', she says."

2008

ICRC, 29 May 2008:

"More and more civilians are suffering the effects of the lack of security in the province of North Kivu, which has persisted despite the peace agreement reached by the main warring parties. Recent clashes in Lubero territory forced several thousand people to flee their homes. In Masisi and Rutshuru territories, the situation of displaced people and those who have returned to their home villages is constantly worsening. An estimated 100,000 people were reportedly displaced from their homes in North Kivu during the first three months of 2008 alone."

RI, 21 May 2008:

"The Kivu Conference on Peace, Stability and Development in January 2008 has led to some improvements in security and access for humanitarian organizations working in North Kivu. However, at least 60,000 people have been newly displaced because of ceasefire violations by different armed groups. Targeted attacks by all armed groups against civilians, mainly women and children, include rape, killings, looting of property, and forced recruitment and labor. There is also growing concern about potential new displacements as a result of the deployments of the Congolese national army aimed at cutting the supply routes and economic base of the Forces Démocratiques de Libération du Rwanda."

OCHA, 1 September 2008:

"Affrontements opposent les Forces Armées de la République Démocratique du Congo (FARDC) aux éléments fidèles au Général Laurent Nkunda (CNDP) depuis le jeudi 28 août 2008 dans le territoire de Rutshuru, à une quarantaine de kilomètres de la capitale provinciale du Nord-Kivu, Goma. [...]"

Ces différents affrontements ont entraîné des mouvements de population, principalement dans les localités de Kalengera et Rubare. Les populations se regroupent dans les infrastructures publiques (églises et écoles) ou trouvent refuge chez des familles d'accueil. Beaucoup de ces personnes étaient déjà déplacées depuis plusieurs mois et avaient commencé un mouvement de retour ces dernières semaines. Ce re-déplacement augmente encore la vulnérabilité de ces populations."

UN News, 8 September 2008 :

"United Nations peacekeepers today stepped up their efforts to prevent a militia operating in the far east of the Democratic Republic of the Congo (DRC) from taking a key town in North Kivu province, the scene of renewed deadly fighting between Government forces and rebels."

See also:

OCHA, 30 October 2007, RD Congo : Des milliers de déplacés au quotidien dans la province du Nord-Kivu - Point sur la crise dans le Nord-Kivu [[Internet](#)]

IRIN, 9 October 2007, DR Congo: More displaced as insecurity persists in North Kivu [[Internet](#)]

LRA caused the displacement of tens of thousands in Ituri /Orientale Province (2007-2008)

- Close to 20,000 IDPs in Yakuluku, east of Dungu due to LRA attacks (September 2007)
- Members of the Lord's Resistance Army (LRA) destroyed fields and pillaged villages, causing villagers to flee to the nearby forest (June 2008)

OCHA, 7 September 2007:

« Déplacements de près de 20.000 personnes signalés dans le secteur de Yakuluku, à l'est de Dungu : une source locale à Dungu a informé OCHA/Dungu d'un déplacement de près de 20.000 personnes dans le secteur de Yakuluku, à l'est de Dungu, depuis 2 mois. Selon la même source, ce déplacement serait dû à une attaque des LRA dans certains villages. La communauté humanitaire de Dungu et de la Province Orientale explore les possibilités d'organiser une évaluation de la situation humanitaire dans ce secteur. »

MONUC, 17 June 2008 :

"In the northern part of Dungu territory in Province Orientale, members of the Lord's Resistance Army (LRA) have allegedly been responsible for several abductions of civilians as well as forced recruitment and military training. In addition, they have destroyed several fields and pillaged villages. Most of the villagers in that part of the province have fled to the nearby forest."

Ituri: continuing displacement due to confrontations of Lendu, Ngiti militias and Congolese army (2008)

ICG, 13 May 2008:

"In the end, after more than four years of repeated initiatives, the main Hema militias in Ituri have been disarmed and only two wings of the FNI (Lendu) and most of the FRPI (Ngiti) are still resisting the process.

At the beginning of 2008, confrontations broke out between the FNI, the FRPI and FARDC, provoking new waves of displaced people. Although there are probably no more than 1,500 combatants still active on the ground in Ituri following the surrender of several FNI combatants, they are unlikely to surrender quickly in the absence of a strategy directly combining dialogue and military pressure."

See also:

DRC: new displacement as army fights militia in Ituri, **Integrated Regional Information Networks (IRIN)**, 27 February 2008 [[Internet](#)]

Displacement in South Kivu (2007-2008)

- 30,000 IDPs from North Kivu find refuge in South Kivu (September 2007)
- 40,000 IDPs in South Kivu in mid-2007 due to FARDC military operations against the Rastas/FDLR and the violent retaliation currently being carried out by the Rastas/FDLR against the population (July 2007)
- High level of armed groups activities in South Kivu, particularly the Rwandan Hutu militias FDLR and Rastas in 2006 and 2007

OCHA, 31 July 2008:

"Since mid-2007, the main causes of displacement in South Kivu are the confrontations taking place in North-Kivu between the FARDC and Mayi-Mayi groups."

OCHA, 17 July 2007:

"The fragile humanitarian situation in South Kivu is primarily linked to FARDC military operations against the Rastas/FDLR and the violent retaliation currently being carried out by the Rastas/FDLR against the population, causing thousands of people to leave their homes. Since the beginning of the year, 39,855 new IDPs have been registered in the province, yet most of them are inaccessible to humanitarian actors."

IRIN, 18 September 2007:

"Thousands of internally displaced persons (IDPs) who fled to the inaccessible Masisi area, North Kivu Province, in the eastern Democratic Republic of the Congo (DRC) when fighting broke out are in dire need of aid, humanitarian officials said.[..]

An additional 30,000 are believed to have fled into South Kivu, where the WFP is working through its partners to reach them. However, access to the vast majority of IDPs in the province remains difficult due to insecurity."

OCHA, 14 September 2007:

« **Kalehe:** IRC a procédé à l'enregistrement de **3.266 nouveaux ménages** (fin août-septembre) déplacés en provenance d'Ufamandu (Masisi) et des acteurs locaux ont enregistré **529 ménages** venus récemment de Sake (chiffres à confirmer).

Le CICR a enregistré environ **400 ménages** venus récemment du Nord-Kivu à Nyabibwe et **299** dans la presqu'île de Kitembo.»

UN News, 28 May 2007 :

"The United Nations Mission in the Democratic Republic of the Congo (MONUC) today spoke out against a recent massacre in the country's troubled east, calling on the authorities to find and punish those responsible.

In a news release, MONUC confirmed that on the night of 26 May [2007], a group of 10 to 12 militiamen, purported to be with "FDLR/Rastas," attacked the villages of Nyabuluze and Muhungu in the South Kivu Province, killing 18 civilians, among them women and children, and wounding 27. A dozen and a half people were also abducted in the same incident.

The mission said it "strongly and unequivocally condemns this horrible massacre of innocent civilians," noting that the victims were all killed or wounded in their sleep by attackers who "chose machetes, bayonets, knives and clubs over firearms to kill silently and avoid detection."

Notes were left on the bodies of their victims, in which the attackers claimed that these atrocities were in reprisals to the operations led against them by the Armed Forces of the DRC (FARDC), according to MONUC.

As the perpetrators attempted to raid Chihamba, a third village in the same area, a patrol of UN Pakistani peacekeepers opened fire, forcing them to flee into the nearby forests, and "thereby preventing another bloodbath," MONUC said."

IRIN, 13 April 2007:

“Les attaques répétées de rebelles rwandais sur des villages de la province du Sud Kivu, en République démocratique du Congo (RDC) ont contraint des milliers de villageois à fuir leurs domiciles pour la ville de Walungu, a annoncé un représentant des Nations Unies.

‘A Walungu centre, 1 590 familles de déplacés, représentant 7 450 personnes, sont installées dans la ville et d’autres continuent d’arriver’, a affirmé jeudi Modibo Traoré, représentant du Bureau des Nations pour la coordination des affaires humanitaires (OCHA) à Bukavu, la capitale de la province.

Depuis trois semaines, leurs villages, en territoire Walungu, font l’objet d’attaques incessantes perpétrées par des rebelles des Forces démocratiques pour libération du Rwanda (FDLR) et des Rasta, un autre groupe rebelle rwandais.”

See also:

ICRC, 9 November 2007, République démocratique du Congo : au secours des populations fuyant le Nord-Kivu [[Internet](#)]

IRIN, 2 July 2007, DRC: Civilians bearing brunt of South Kivu violence [[Internet](#)]

IRIN, 31 May 2007, DRC: Weekend attack prompts villagers to flee in northeast [[Internet](#)]

OCHA, 29 May 2007, DR Congo: Statement attributable to the Humanitarian Coordinator, Mr. Ross Mountain [[Internet](#)]

IRIN, 28 May 2007, DRC: Massacred villagers found dead in their beds [[Internet](#)]

IRIN, 24 May 2007, DRC: Thousands more flee ongoing clashes in Kivu [[Internet](#)]

Fighting among government troops, some loyal to dissident colonel cause displacement in South Kivu (January 2007)

- Fighting among government troops, some loyal to dissident colonel, Michel Rukunda, caused displacement west of Uvira, South Kivu in January 2007

IRIN, 2 February 2007:

“The United Nations Mission in the Democratic Republic of Congo (MONUC) has dispatched aid workers to evaluate the condition and needs of 4,000 displaced people in the eastern plateau town of Minembwe [150 km west of Uvira, South Kivu]. [...]

MONUC said it would also evacuate those who were severely wounded during the fighting between government and dissident troops in this area of South Kivu Province.

Until now, fighting had been too severe to allow such a mission. In addition, humanitarian officials said, the displaced had fled in several different directions. At least 3,000 residents are still hiding in the hills and bush near Minembwe.

[...]

Fighting began on 25 January between government troops of the 122nd and 12th brigades against those loyal to the dissident colonel, Michel Rukunda. He joined Gen Patrick Masunzu, commander of the 122nd brigade, who in 2005 rebelled against the authorities in defence of Congolese of Rwandan origins, known as the Banyamulenge, against harassment and physical abuse.

The army retook Minembwe on Wednesday. Kranzer said the army killed five dissidents, wounded five others and captured two officers.

Meanwhile, negotiations are continuing between the government and another dissident army general, Laurent Nkunda, under the mediation of the Rwandan government, in a bid to end the low-level rebellion he has waged against the Congolese government, mostly in North Kivu, since 2004.

Nkunda said recently he had agreed to participate in talks with the government on condition that troops loyal to him are integrated into the army and the rights of all Kinyarwanda speakers in the country are protected.

The talks between Nkunda's rebel movement, known as the Congrès national pour la défense du peuple, and the Congolese army, have been in progress since early January.

The reintegration into the army of Nkunda's 81st and 83rd brigades has been ongoing."

Pygmy populations in North Kivu flee forests (2006)

- In late 2005 and early 2006, government forces launched a series of offensives against rebel militia positions near the border with Uganda.
- One of these operations drove the rebels into the rain forest, where they in turn attacked the pygmies, the DRC's original inhabitants, and caused displacement

UNICEF, 3 February 2006:

"The preferred way of life for the Pygmy population around North Kivu is to remain in forested areas. But now they are being forced to flee their villages by a recent upsurge in fighting in the area.

According to humanitarian relief workers, this is an indication that the situation has become much worse in recent weeks. "Pygmies very seldom leave their forests," said Gregory Chevrel of Solidarité, a UNICEF-supported non-governmental organization which assists people who have had to abandon their homes. "They keep to themselves, hunting and remaining very isolated from others.

'But in the past few weeks there are several factions of armed rebels operating all around their villages, so they've fled now for help. If they go home they could be tortured, or killed.'

UNICEF, 24 July 2006:

"In late 2005 and early 2006, government forces launched a series of offensives against rebel militia positions near the border with Uganda. One of these drove the rebels into the rain forest, where they in turn attacked the pygmies, the DRC's original inhabitants. The pygmies, armed only with bows and poisiontipped arrows, were powerless to resist. For the first time in their history they were forced out of the forest, carrying their bows and arrows, their musical instruments, a few pots and pans – and not much else. Thirty-three pygmy families – about 200 people – have found refuge in an encampment near Beni. Their head man, Batsinga Sepi, says: "We did not just hear about the war, we lived through it. This has been a serious war and many of our relatives have been killed in the fighting. Our message to the world is that we cannot remain living like this." The UN force commander in the area describes their conditions as "miserable and pathetic"."

Other causes of displacement

Thousands loose homes in Bukavu during earthquake (2008)

AFP, 4 February 2008:

"The death toll from a series of earthquakes that hit central Africa rose Monday to 44 as a major aid operation for hundreds of injured and thousands of homeless gathered pace amid new aftershocks.

At least 38 people were killed in Rwanda's Western Province and six around the Democratic Republic of Congo city of Bukavu, which was near one epicentre, authorities said, while more than 450 were hurt.

[...]

The Rwandan government sent extra medical teams to Rusizi, national radio reported, while in the neighbouring DR Congo the government said its priority was to help the homeless. Humanitarian groups said thousands had lost their homes.

"There were some small aftershocks during the night. But fortunately most people followed appeals to sleep outdoors and there were no new victims," Bukavu mayor Guillaume Bonga told AFP.

"Our priority now is to evaluate the needs of the victims. There are hundreds of homeless," he added, appealing for plastic covers, tents and medicines.

The World Health Organisation said it had delivered 2.5 tonnes of initial emergency medical aid to the DR Congo authorities.

The epicentre for the biggest quake was about 20 kilometers (12 miles) north of Bukavu, the capital of Sud Kivu province. There are about 300,000 people in the city and the mayor said nearly every house had suffered some kind of damage.

The UN peacekeeping mission in DR Congo has joined the relief effort after the quakes.

Extra police and military patrols have been ordered in Bukavu to deter looting, officials said.

A powerful 6.8 magnitude quake rocked the region in December 2005 but, while it is prone to seismic activity, it has mostly escaped major quake damage in recent years."

Several hundred thousands of people displaced due to floods in eastern DRC (2007)

- End 2006/early 2007 DRC experienced its worst floods in ten years, which affected approximately 200,000 people and destroyed crops on a massive scale in Equateur, Katanga, and Oriental Provinces

OCHA, 17 July 2007:

"Attention has recently been drawn to protracted acute humanitarian needs in the western provinces, and the needs of victims of natural disasters. Although spared from armed conflict, several evaluation missions have revealed critical rates of malnutrition and extreme vulnerabilities in the Kasai, Oriental, Bandundu and Equateur Provinces. Moreover, towards the end of 2006 and the beginning of 2007, the DRC experienced its worst floods in ten years, which affected approximately 200,000 people and destroyed crops on a massive scale in Equateur, Katanga, and Oriental Provinces. To some in the humanitarian community, this served as a warning of the potential effects of climate change and the need to increase capacity to respond to victims of natural disasters. As a further indication of the scope of emergency needs, the inter-agency

Rapid Response Mechanism¹ assisted roughly 488,000 people in the first four months of the year throughout the country with various forms of assistance, and another 500,000 victims of cholera were assisted by water and sanitation activities during the first half of 2007, primarily in the Kivus.”

IRIN, 25 January 2007:

“At least 20,000 people in eastern Democratic Republic of Congo (DRC) are still without shelter after floods caused by heavy rains destroyed their homes in November 2006, humanitarian agencies have said.

“The flood waters have swept away everything - homes, livestock, plants - everything is under water,” Guy-Marin Kamandji, the information officer for Congo Caritas Development, a member of Caritas International, said on Tuesday after a tour of Katanga Province where several towns and villages remain submerged.

[...]

[M]ost of the people affected by the floods survived by fishing in the Congo River, which crosses the town in two areas, and lived in mud and grass-thatched shelters. [...]

[M]any of the affected people risked contracting waterborne and diarrhoeal diseases because of the flooding. He added that the displaced lacked safe drinking water and needed non-food items such as mosquito nets, tents and blankets.

[...]

According to the Maniema governor, Koloso Sumahili, at least 2,600 people are still without shelter in Kindu. Crisis committees comprising local authorities and humanitarian workers have been established to evaluate people's needs.

A similar situation prevails in towns and villages in Isangi, Basoko, Banalia and Kisangani in the northeastern Orientale Province, which has also experienced heavy rainfall in recent months. [...]

In the province of Katanga, at least 11,586 people are living without shelter in difficult conditions, according to Congo Caritas Development.

River levels in these areas started to rise in October 2006, and heavy rains contributed to the widespread flooding.”

Fires cause internal displacement (2006-2008)

MONUC, 4 March 2008:

“After the accidental fire of 19 February last which left 659 people homeless in the commercial city of Ariwara, 45 km north of Aru, the UN Office for the Coordination of Humanitarian Assistance (OCHA) went on mission with MONUC on 27 February 2008 to the scene of the fire, to meet the disaster victims and to evaluate what assistance could be provided.

The fire tragedy left two dead and two wounded after 192 houses were set ablaze on 19 February last, in the districts of Male and Dema, south of Ariwara.”

IRIN, 26 September 2006:

“At least 10,000 people have been left homeless after fires destroyed eight villages in the Congo's southeastern Maniema province, NGOs have said.

The fires, mainly in and around the gold-mining Salamabila area, 365 km from the main town of Kindu, destroyed at least 1,500 homes in eight villages, the NGO DanChurchAid said. Some of the fires were suspected to have been caused by arsonists whose identity remains unknown while others were described as bush fires.

Salamabila is one of six collectivities making up the Kabambare Territory. It is home to 53,964 inhabitants, with 10,984 living in the Namoya agglomeration. Those affected by the fires have been living in churches and schools or with neighbours while others have remained in their burnt houses.

According to the NGO, there is also the risk of widespread malnutrition among children in the affected households.

There has been a rise in the number of fires in Maniema since June, with some 380 houses burnt between 4 and 10 September. At least 2,600 people were left without shelter in the latest incident, according to a report by the United Nations Office for the Coordination of Humanitarian Affairs (OCHA).

On 15 June, 1,025 houses were burnt, making 5,060 people homeless. Earlier the Kimbanseke market was set on fire by unknown persons.

Most of the homes are constructed with straw, making them highly flammable.

Aid for the homeless has slowly trickled in, with 767 non-food kits comprising blankets, medication, condoms and second-hand clothes being provided by the Catholic NGO, CARITAS; CONADER, the national agency overseeing the disarmament and reintegration programme; and the United Nations Population Fund.

However, the assistance remains insufficient given the numbers affected. It is hard to provide aid to the people as the area is densely forested, DanChurchAid said.

The non-food aid is also expensive as it has to be transported by bicycle for weeks, the NGO said."

See also:

DanChurchAid (DCA), 15 Oct 2006
DRC: Assistance given to 1.500 homeless families [[Internet](#)]

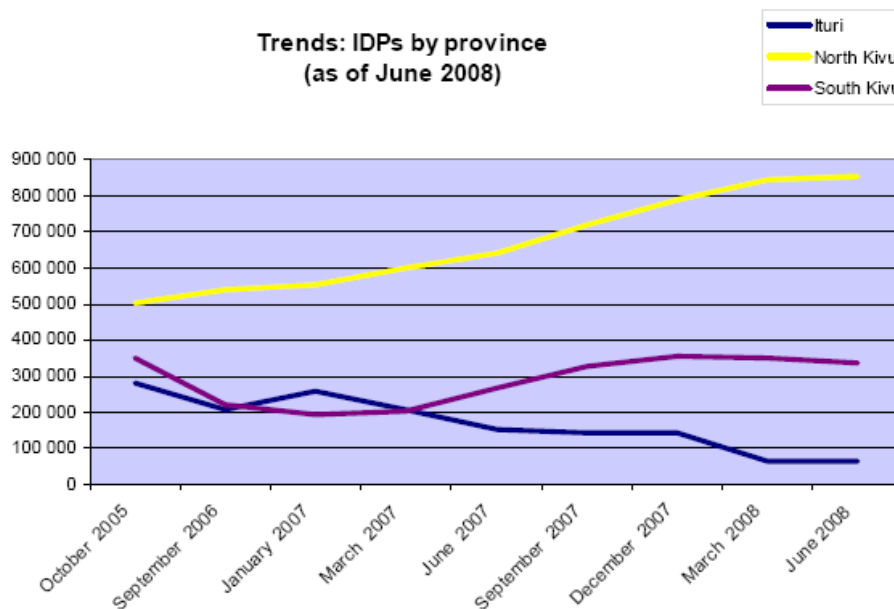
POPULATION FIGURES AND PROFILE

Global Figures

1,250,000 IDPs in eastern DRC as of end of June 2008

OCHA, 31 July 2008

“At the end of June 2008, estimated **1,250,000 internally displaced persons (IDPs)** had been registered in the eastern province of North and South Kivu and the district of Ituri (Province Orientale). This total estimate shows that there have not been substantive changes in the situation in these eastern provinces compared to the first quarter of the year. Approximately, 68% of IDPs are found in North Kivu, and 27% in South Kivu. **65,400 persons (4% over the estimated total) were newly displaced in the second quarter of 2008** and/or had been displaced for longer but only became accessible during the reporting period. Most of these IDPs are found in South Kivu. In parallel, some **65,000 people returned** to their areas of origin in South Kivu and Ituri in the period April-June 2008.[...]



[Ituri]

63 114 displaced persons in the District of Ituri.

71% have been displaced for a period ranging from 8 to 12 months; particularly, in the territories of Djugu, Irumu and Mahagi.

Displacement prior to June 2007 constitutes 29% of the total, located mostly in Aru and Mambasa territories.

No new cases of displacement were registered by humanitarian actors in April - June 2008.

[...]

[North Kivu]

854 229 displaced persons in North-Kivu.

11 270 new displaced or registered persons by humanitarian actors between April and June 2008, particularly in Kabizo and Tongo (Territory of Rutshuru).

59% have been displaced for a period ranging from 3 to 12 months; clearly as the result of the conflict that affected the province throughout 2007, and particularly, in the territories of Masisi, Rutshuru and Nyiragongo (Goma).

Displacement prior to July 2007 constitutes 41% of the total, located mostly Beni, Lubero and Walikale.

[...]

[South Kivu]

335 783 displaced persons in South-Kivu.

54 140 new displaced or registered by humanitarian actors between April and June 2008.

35% have been displaced for a period ranging from 3 to 12 months; particularly, in the territories of Kalehe. A significant number of these IDPs came from North-Kivu.

Displacement prior to July 2007 constitutes 49% of the total, located mostly Kalehe and Walungu."

HRW, 29 July 2008:

"The first report from the Congo Advocacy Coalition reveals that at least 150,000 people have been forced to flee from their homes due to ongoing fighting since the Goma peace agreement was signed on January 23, 2008."

Close to 1.4 million IDPs in September 2007

- In early 2007, there were over a million IDPs in eastern DRC, over half of them in North Kivu. The number of IDPs continued to grow the following months.
- According to OCHA 143,000 people were displaced between mid September and mid October 2007, and the number of displaced keeps rising due to insecurity in the province.

According to an unpublished report by OCHA, there were 1,390,343 IDPs in DRC as of September 2007. OCHA estimates that at least 529,000 people have been displaced in 2007.

MONUC, 19 October 2007:

"According to the UN Office for the Coordination of Humanitarian Affairs (OCHA), 143,000 people have been displaced between mid September and mid October 2007, and the number of displaced keeps rising due to insecurity in the province.

The displaced are concentrated west of Goma in five sites, in eight sites in Rutshuru territory and certain others in Masisi territory."

ITURI DISTRICT (as of 03/07)	IDPs
Mahagi	10 520
Djugu	46 331
Mambasa	6 954
Irumu	115 555
Aru	28 353
TOTAL ITURI	207 713

NORD KIVU (as of 01/07)	IDPs
Beni	112 334
Walikale	28 965
Lubero	224 608
Nyiragongo	14 367
Masisi	109 572
Rutshuru	61 821
TOTAL NORD KIVU	551 667

SUD KIVU (as of 01/07)	IDPs
Shabunda	11 035
Mwenga	53 780
Walungu	24 415
Kabare	47 495
Kalehe	26 890
TOTAL SUD KIVU	163 615

KATANGA (as of 10/06)	IDPs
Mitwaba	2 885
Kalemie	5 045
Manono	19 480
Malemba Nkulu	29 166
Bukama	0
Pweto	26 575
Moba	1 100
TOTAL KATANGA	84 251

OVERALL TOTAL 1 007 246

Source: OCHA, map, April 2007

Total estimate of IDPs drop to 1.1 million in November, compared to 1.48 million in August (end 2006)

OCHA, 31 August 2006:

"Levels of new displacements decreased across the country in August [2006], mainly due to the reduction in military activity against armed groups in the east. It is hoped that this trend will continue into September. Updated IDP figures submitted by the humanitarian Inter Agency Standing Committees across DRC now stand at **1.48 million** – as against 1.6 million in April

2006. Returnees in Katanga (see below) and in the Territory of Djugu, in Ituri, make up the bulk of this decrease.

The main IDP caseload remains concentrated in Ituri, North and South Kivu. Over 35% of total the IDPs are located in the Territories of Lubero and Beni in central and northern North Kivu."

OCHA, 30 November 2006, pp.10-11:

"According to the latest estimates, **1.1 million** people are still displaced, mainly in the east of the country. This figure represents a reduction of 33% when compared with 2005. Half of the remaining displaced persons are located in North Kivu.

New Displacements

At the beginning of 2006, armed confrontations as well as other types of violence resulted in the displacement of some 500,000 persons, mostly women and children. This significant increase of population movement in the humanitarian triangle (Ituri, Katanga and the Kivus) was due to MONUC-backed FARDC operations against militias, interethnic conflict and the combined exactions of armed groups and government forces. Resident populations were also affected, given that 90% of IDPs live with host families forced to share everything despite their already precarious situation.

Concerning the return of IDPs, the surrender of certain warlords – notably in Katanga – and the adherence of their troops to the processes of Disarmament, Demobilization and Reintegration (DDR) and “brassage” have offered a unique opportunity to encourage displaced populations to return to their places of origin. The disarmament and demobilisation of Mayi Mayi troops has thus led

to the return of roughly 100,000 people who had been displaced within Katanga. It is hoped that current negotiations between the government and other militia leaders, notably in Ituri, and the compliance of their troops with the brassage process will also contribute to the reestablishment of security and encourage IDPs to return. Between April and September 2006 some 490,000 people left areas of displacement and went back to their villages of origin in Ituri, North Kivu, South Kivu and

Katanga. These returnees nonetheless suffer from a lack of adequate infrastructure and means of agricultural production. They have also been forced to endure the presence of armed groups (militias

and FARDC) that has limited their movement and prevented them from returning to normal life."

Provinces	IDP population as of October 2006*	IDP return in 2006*	Expected IDP return in 2007*
North Kivu	540,841	490,000	950,000
Province Orientale (mainly Ituri)	210,434		
South Kivu	222,075		
Katanga	101,947		
Total	1,075,297		

* Estimate

Source: UNHCR, 13 February 2007

1.6 million IDPs as of the end of 2005

According to OCHA, an estimated 1,664,000 people were displaced as of the end of 2005, while 1,680,100 were reported to have returned home from the end of 2004 to the end of 2005. The regions most affected by internal displacement are the provinces of North and South Kivu, Katanga, and Ituri.

OCHA, October 2005:

DRC total		
Provinces/ Districts	IDPs	Retournés - 12 mois
Ituri	280,000	213,500
Orientale	30,000	1,200
Nord Kivu	502,500	300,000
Sud Kivu	351,500	456,500
Maniema	7,600	252,000
Tanganyika	48,500	369,000
Katanga	263,900	77,900
2 Kasais	40,000	0
Equateur	100,000	10,000
Kinshasa	40,000	0
Total	1,664,000	1,680,100

2.3 million IDPs as of end 2004

OCHA, 31 August 2004:

Table of IDPs and Returnees in DRC As of August 2004*

Provinces	Displaced	Returns	Date of Information
Katanga	365,000	190,000	August 2004
Province Orientale	455,000	260,000	August 2004
Maniema	165,000		August 2004
North-Kivu	785,000		August 2004
South-Kivu	254,000	275,000	August 2004
Equateur	165,000		August 2004
Kinshasa Bandundu	45,000 (includes +/- 3,000 expellees from Angola)		August 2003 for the IDPs and June 2004 for the expellees.

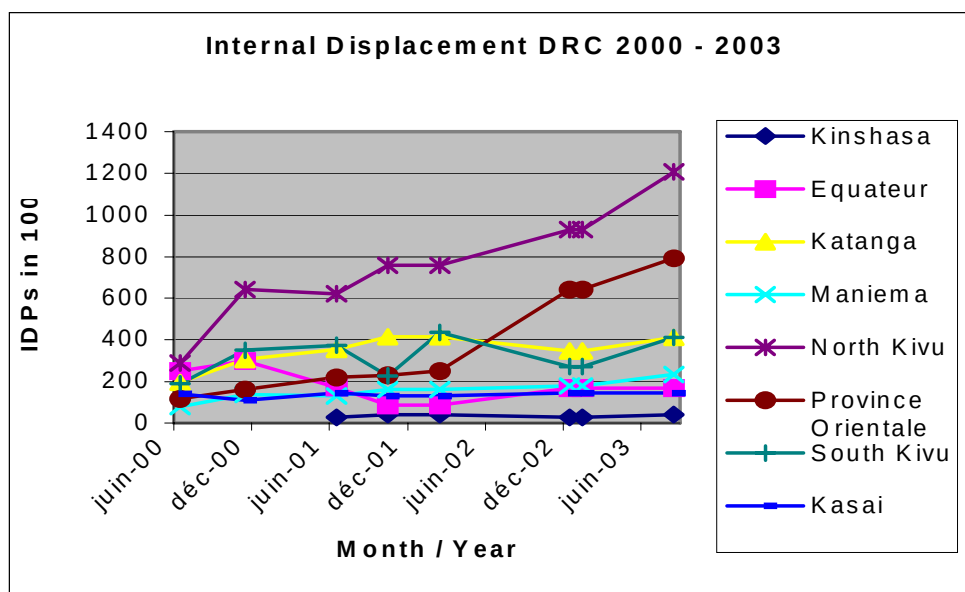
Bas Congo			
East and West Kasai	95,000 (includes +/- 40,000 expellees from Angola)		August 2004
TOTAL	2,329,000	725,000	August 2004

*These figures are estimations representing a consolidation of data furnished by provincial commissions on Population Movements as well as reports of various evaluation missions

From 2 to 3.4 million people displaced in DRC (2000-2003)

- Approximately 3.4 million people displaced in DRC by end 2003
- More than 2.7 million IDPs by end of 2002
- Over 2 million IDPs in DRC by end of September 2001

OCHA, 18 November 2003, p.18:



End 2003

"A fifth year of uninterrupted war in large parts of the DRC further eroded coping mechanisms, and pushed entire populations to near exhaustion. This was reflected in the startling increase in IDP numbers from 2.7 million in January 2003 to 3.4 million in August 2003."

Major increase mainly due to the crisis in Ituri:

UNSC, 16 July 2004, para.40:

"Some 8,000 civilians lost their lives as a result of deliberate killing or indiscriminate use of force from January 2002 to December 2003. More than 600,000 have been forced to flee from their homes."

End 2002

UN, 16 January 2003:

There were more than 2.7 million IDPs at the end of 2002, according to OCHA.

End 2000-2001

OCHA, 30 September 2001:

According to UN estimates, there were about 2,045,000 IDPs in DRC as of the end of September 2001 .

UN, 7 June 2001:

According to the United Nations, "The vast majority of the 2 million people displaced by war are children and women."

OCHA, 31 December 2000, p.6:

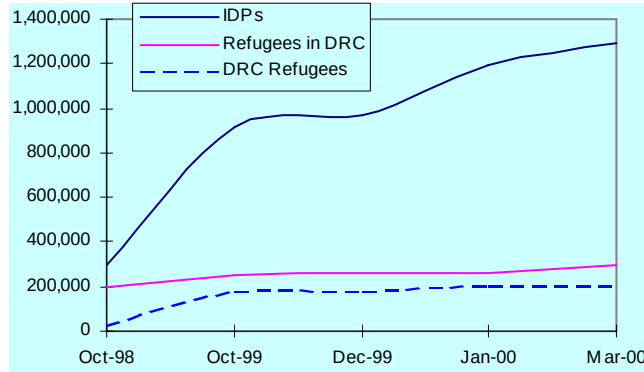
There were about 2,002,500 IDPs in DRC by the end of December 2000. (OCHA 31 December 2000, p.3) This represents a significant increase during the last of part 2000, since there were 1,4 million IDPs by June 2000 and 1,8 million by September 2000. (UN November 2000, p.15). This is despite the fact that an estimated 810,000 former IDPs have returned to their habitual place of residence.

From 500,000 to close to a million IDPs (1998-1999)

- 960,000 IDPs in DRC by end of 1999
- 500,000 IDPs in DRC by end of 1998

OCHA, 17 April 2000:

Increase of the number of IDPs 1998-2000

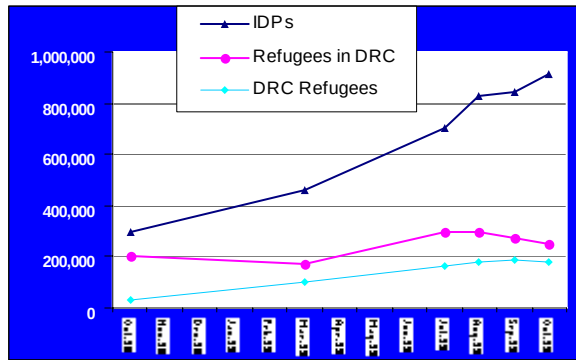


End 1999

UNSC, 17 January 2000, para. 24:

"[By January 2000 there were] some 960,000 internally displaced persons in eight of the 11 provinces of the Democratic Republic of the Congo and over 300,000 refugees from six of its nine neighbouring countries.."

OCHA, 15 November 1999:



End 1998

UN, December 1998, p.14:

"The number of IDPs is believed to have almost tripled since the outbreak of hostilities in the DRC and is estimated to have reached the level of 500,000 persons scattered in North and South Kivu, Orientale, Maniema, Kasai, Equateur and Katanga provinces. In rebel-held areas, the current conflict is marked by patterns some of which are similar to those that affected humanitarian action during the 1996-1997 war in former Zaire, i.e. all communities of Northern and Southern Kivu are considered - and consider themselves as - collective targets for military attacks. Massive, durable displacements are expected to have been amplified during the last three months. The situation is usually different in other parts of the DRC, where the populations are only afraid of looting and side-effects of military confrontations. Thus, they only leave their houses for as long as fighting, looting or take-over of a town will last at local level."

It should be noted that USCR apparently subscribed to a more careful estimate of IDPs by the end of 1998:

USCR, 1999, p.59:

"The outbreak of renewed war in Congo-Kinshasa in August uprooted hundreds of thousands of people, some for a few days, others for the rest of the year. At year's end, displacement persisted primarily in the eastern one-third of the country."

Although an estimated 300,000 persons were internally displaced at year's end and some 130,000 were refugees in neighboring countries, some aid workers estimated that 80 percent of the population in some eastern regions<a million or more people<might have fled their homes temporarily for several days at different times during the year. Such estimates were impossible to confirm because much of the country remained inaccessible to local and international aid workers."

100,000 believed to be displaced by the end of 1997

- After the main civil war ended (May 1997), eruptions of violence in eastern Congo/Zaire pushed additional tens of thousands from their homes
- About 40,000 Congolese fled early in 1997 hundreds of kilometres westward with Rwandan refugees to the city of Kisangani

USCR 1998, pp. 60-61:

"The number of residents who became internally displaced during the civil war remains uncertain. More than 100,000 were already uprooted in eastern Zaire prior to the civil war due to ethnic

conflicts. Poor roads, impenetrable forests, and pockets of insecurity impeded full assessments of humanitarian needs in the country's vast isolated areas throughout 1997.

A UN funding appeal in March estimated that nearly a half-million Congolese/Zairians were displaced. U.S. aid officials estimated in August that some 230,000 probably were uprooted within the country. A UN human rights official reported in mid-year that 250,000 to 400,000 were displaced. An international NGO put the number at 190,000. All sources agreed that the most pervasive displacement was in the chronically unstable Masisi zone of eastern Congo/Zaire, near the town of Goma.

USCR site visits to eastern Congo/Zaire during 1997 concluded that up to half the population in some areas of the east were at least temporarily displaced during the war. Many were able to return home after several weeks, but thousands of families endured long-term displacement caused by lingering insecurity in their home areas. USCR estimated that up to 150,000 people remained internally displaced at mid-year, but a majority were "invisible to outsiders because they are dispersed," USCR's report noted.

About 40,000 Congolese fled hundreds of kilometers westward with Rwandan refugees to the city of Kisangani early in the year. More than 70,000 fled to Tanzania. Smaller numbers entered Uganda, Burundi, Sudan, Zambia, and other countries as refugees. As many as 10,000 former Zairian soldiers and their families reportedly fled to Central African Republic.

[...]

In the second half of 1997, after the main civil war ended, eruptions of violence in eastern Congo/Zaire pushed additional tens of thousands from their homes. Some 8,000 people converged on the town of Goma in late April. At least 15,000 fled to Rwanda. Entire areas of Masisi zone, in the east, lay deserted, with 15,000 homes burned and 1,000 people dead."

400,000 believed to be displaced by the end of 1996

USCR 1997, p.107:

"Uprooted Zairians were the virtually forgotten victims of their country's widening civil war [after October 1996].

An estimated three million Zairians lived in the conflict zones. An estimated 400,000 became internally displaced, and approximately 50,000 others became new refugees in Tanzania, Rwanda, and Uganda. An additional 1,000 or more Zairian or Rwandan Tutsi fled to neighboring Congo to escape anti-Tutsi violence in the Zairian capital, Kinshasa.

In addition to the new Zairian refugees created during 1996, tens of thousands of Zairians remained refugees from previous years."

Disaggregated figures

In Katanga, UNHCR delivers digital cards to IDPs to systematize assistance (May 2006)

- In collaboration with MSF, UNHCR registered IDPs in central Katanga and gave them digital I.D. cards in order to systematise the distribution of assistance

IRIN, 4 May 2006:

“Selon le représentant des Nations unies, les combats se déroulent dans deux grandes régions ; à l'est du centre du Katanga, jusque dans la ville de Petwo, près de la frontière zambienne, et dans la partie occidentale, autour du lac Upemba. Dans la ville de Mitwaba, située entre les deux zones de combat, au moins 20 000 déplacés sont arrivés ces six derniers mois, selon les estimations du Haut Commissariat des Nations unies pour les réfugiés (HCR).

« Ils sont démunis, ils ont des enfants nus et des femmes qui ont pour tout vêtement des cache-sexes », a expliqué pour sa part Karl Nawej, assistant chef de mission de MSF/Belgique.

« Il y en a qui continuent à sortir de la brousse à partir du nord de Mitwaba », a-t-il ajouté, et à Sampwe, une localité située à 20 km au sud de Mitwaba, MSF a découvert une dizaine de milliers d'autres déplacés qui n'ont reçu aucune aide depuis des mois.

Rentré d'une tournée dans la région de Mitwaba, Jens Hesemann, chargé des relations extérieures du HCR a déclaré : « Chaque jour, 50 à 100 nouveaux déplacés sortent de la brousse, presque nus, souffrant de maladie de peau, très mal nourris et nécessitant une aide d'urgence ».

En collaboration avec MSF, le HCR a lancé le 25 avril un programme d'enregistrement permettant de fournir aux déplacés des cartes d'enregistrement numérique pour systématiser les distributions de vivres de toutes les organisations humanitaires.

Pour la première fois en RDC, le HCR applique pour cette opération de protection une technique consistant à délivrer aux déplacés des cartes d'identité numériques. Cette procédure d'enregistrement permettra de fournir une assistance adéquate et en temps opportun, grâce à une bonne évaluation de l'ampleur des besoins et des populations concernées, a expliqué le HCR.”

Distribution of IDPs by province (mid-99-mid 2006)

- Decrease of IDP figures in all Provinces (mid-2004)
- Great increase of IDPs in Orientale due to crisis in Ituri (mid-2003)
- The majority of displaced persons were found in the eastern provinces of North Kivu, Katanga, Orientale and South Kivu, (Aug 2002)The majority of displaced persons were found in the eastern provinces of North Kivu, Katanga, Orientale and South Kivu, (Aug 2002)
- about 1 million IDPs in the Kivus as of Aug 2002
- The number of IDPs in Equateur decreased greatly from Dec 2000 to Sept 2001
- The number of IDPs in Orientale increased greatly from Dec 2000 to Sept 2001 and then increased again in Feb 2002
- The number of IDPs in Katanga increased by 100,000 IDPs between Dec 00 and Sept 01

LOCATION	Nov 03	Aug 04	July 06
Equateur	168,000	165,000	100,000
Katanga	412,000	365,000	175,815
Maniema	234,000	165,000	5,650
North Kivu	1,209,000	785,000	686,097
Orientale	791,000	455,000	Ituri: 18
South Kivu	413,700	254,000	197,135
East and West Kasai	145,000	95,000 (includes +/- 40,000 expellees from Angola)	40,000
Kinshasa	41,000	45,000 (includes +/- 3,000 expellees from Angola)	1,800
TOTAL IDPs	3.4 million	2,329,000	1,477,

(based on numbers provided by UN OCHA, 18 Nov 03, p19; UN OCHA 31 August 2004; OCHA July 2006)

Area	July 1999	June 2000	Dec 2000	Sept 2001	Feb 2002	August 2002
Equateur	100,000	250,000	300,000	85,000	85,000	85,000
Orientale	70,000	215,000	160,000	230,000	250,000	250,000
North Kivu	160,000	287,000	640,000	760,000	760,000	760,000
South Kivu	195,000	220,000	350,500	225,000	435,111	435,000
Katanga	150,000	250,000	305,000	415,000	415,000	415,000
Maniema	20,000	110,000	137,000	160,000	160,000	160,000
Eastern Kasai & Western Kasai	60,000	30,000 and 140,000	30,000 and 80,000	130,000	130,000	130,000
Kinshasa	N/A	N/A	N/A	40,000	40,000	40,000
Total	775,000	1,502,000	2,002,500	2,045,000	2,275,111	2,275,000

Source: UN OCHA 15 July 1999, 11 July 2000, 31 December 2000 (p.11), 30 September 2001; 28 February 2002, p.13; August 2002; 31 July 2002

PATTERNS OF DISPLACEMENT

General

Oxfam study finds that those who can flee violence, while others hide (September 2008)

OXFAM, 1 September 2008:

“The testimonies of almost 900 individual interviewees and focus group participants across three provinces paint an alarming picture of near-universal violence and abuse.[...]

Respondents described clusters of abuses: where one type of abuse occurs, others often follow. A roadblock that serves primarily as a locus of illegal taxation also becomes the site of sexual violence, abduction or beatings; a farmer whose field is looted will often also be raped and/or forced to transport the looted goods for her attacker. Moreover, individuals encountered a succession of abuses from different actors, in a continuum of theft, looting, beating and sexual assault stretching from the field to the market and along the road into their own homes.

Faced with such constant threats, many attempted to keep out of harm's way by not going to market or their fields and staying away from school or the clinic – and reluctantly accepting the implications for the family's food supply, cash income, education and health.

Displacement is another response with major consequences for family wellbeing: researchers were frequently told that ‘those who can leave, do’ – whether for the longer term or for shorter periods. Men in several communities reported building shelters in the forest to hide their wives and children at night. In two cases these shelters were said to have been found and burned down by militia to prevent communities from escaping the looting and violence.”

Proliferation of “spontaneous” IDP sites and camps in North Kivu (2008)

- In 2008, the percentage of IDPs living in camps or spontaneous settlements grew from an estimated 5 to 35 percent

IRIN, 28 May 2008:

“The humanitarian community in North Kivu, eastern Democratic Republic of Congo (DRC), has expressed concern over the proliferation of the number of “spontaneous” sites for internally displaced persons (IDPs) in the province, hosting at least 857,000 IDPs.

‘These spontaneous sites are quite new in North Kivu and they are mainly linked to reduced capacities of host families to accommodate the displaced,’ Caroline Draveny, the public information officer for the UN Office for the Coordination of Humanitarian Affairs (OCHA) told IRIN. ‘We are working on ways of assisting the affected IDPs as well as the host families themselves.’

Aid agencies - incorporating UN agencies and non-governmental organisations (NGOs) - have set up a working group to devise ways and means of dealing with the spontaneous sites.

According to an OCHA humanitarian update for 17-23 May, the territories of Rutshuru and Masisi have at least 20 spontaneous IDP sites and 11 managed IDP camps.

In addition to the growing number of spontaneous sites, the issue of the occupation by IDPs of public buildings such as churches and schools in Rutshuru territory needs to be solved, the agency said.

'Since January, three primary schools in Rutshuru town have been occupied by IDPs,' Draveny said. 'This has direct negative consequences for education.'

UNICEF/CARE, 27 April 2008:

"It is estimated that the percentage of internally displaced persons (IDPs) living in camps grew from 5% to 35%* in 2008. Before this time, nearly all IDP's in North Kivu lived with host families, with only a small percentage living in spontaneous self-settled sites.

There are two principle types of collective sites or camps—planned *formal camps*, which receive regular and significant quantities of aid, and *spontaneous camps*, which receive less systematic assistance and exist in part from opportunities afforded by their host communities. According people living in spontaneous camps who were surveyed, these camps may receive sporadic, small amounts of aid. Approximately two-thirds of IDPs living in camps live in spontaneous camps.* Due to their reliance on a host community, a spontaneous camp could be considered as form of communal hosting and a transient, informal *neighbourhood*, within that community.[...]

Camp populations have grown in North Kivu since late 2006 for three reasons:

1. Camps became an option,
 2. Camps are perceived to have benefits and,
 3. The volume of displacement may exceed hosting capacity in some locations.
- [...]

The changing nature of insecurity in North Kivu is affecting choices on forms of refuge sought by displaced; this partly explains the shift towards camps. Displacement is increasingly longer in duration. Increasing numbers of displaced prefer long-term accommodation in a camp. The shift to camps does not appear to be rejection of hosting but rather an affirmation of the benefits of camp as compared to a long term hosting arrangement. Local perceptions of security are the pre-eminent decision making factors guiding how and where refuge is sought. Fighting itself does not explain the movement of the displaced to their places of refuge. Additional factors then guide a displaced to a host family or camp."

* The estimate is based on UNOCHA data - March 2008.

Decision process to find refuge in host family vs. camp (April 2008)

- Distance, repeated displacement and ethnicity all play a role in the decision

UNICEF/CARE, 27 April 2008:

"Hosted IDPs reported that they arrived directly at the their host family's home Directly, after deciding to seek family or friends (53% of responses);

after following other people into the location of refuge and hoping to meet family, friends of people of the same ethnic group (44% of responses); or having arrived from a camp (2% of responses).

Displaced who went to a camp reported that they had arrived in a camp by going directly to the camp (43% of responses), following others (20% of responses), leaving host families (20% of responses), or going to town to find any option of refuge (11%).[...]

The role that distance from a location of conflict plays in selecting a place of refuge varies and is linked to individual notions of *security*. Generally, respondents indicated a preference to stay as close to their home locations as possible. Reasons for this included, being in a familiar rural environment, being close to their homes to monitor security or to access their banana plantations, root crops or fields. [...]

Repeated displacement was observed in interviews with residents of Goma's Mugunga Camps and Mweso. Many interviewees from Mugunga stayed with host families after their initial displacement. On the subsequent displacement (mostly from Sake in December 2007) they directly entered Mugunga. It is unclear if exhaustion from repeated displacement affected their decision making or if they chose to enter the camp out of an attraction to its aid or to avoid the necessity to find non-agricultural work if they were hosted in Goma[...]

Ethnicity is an important factor of choosing a place of refuge, whether with a host or in a camp. Ethnicity is an extension of family and emotional and spiritual notions of security. Displaced would reportedly go to a location where they knew they had family or at least members of their same ethnic group. If there were difficulties in going to a place where family or their ethnic group could be found, groups of displaced would go to larger towns with a mixed ethnic profile, such as Kiwanja/Rutshuru or Goma."

Short displacements and pre-emptive displacements in Ituri and North Kivu (January 2007)

MONUC, 15 January 2007:

"In Ituri there is still around 220,000 IDP's while in North Kivu the number of IDP's is estimated at 550,000, but I have to stress that these figures are just estimates, and it is important to understand why.

Most of the IDP's in this country are not living in formal camps, but are living with host families, and are dispersed over the territory, so its very difficult to count them.

The nature of the displacement movements that we see in North Kivu and Ituri is often over short distances from 5 to 80 kilometers, and there's a mix of pre-emptive displacements, due to fear or threat of violence, and flight from actual combat.

Sometimes people are very quick to move here. Many times people are displaced on numerous occasions, and displacements are often very short term. For all these reasons these figures are very much just estimates."

Double simultaneous movements of displacement and return complicate humanitarian assistance (2006-2007)

IRIN, 13 June 2007:

"Intermittent clashes and frequent attacks on civilians by armed groups in the Democratic Republic of Congo (DRC) have created a state of permanent displacement in the volatile central African country, an official of the UN High Commissioner for Refugees (UNHCR) said.

'There are a million internally displaced persons [IDPs], but each time there is a successful return of IDPs, there are new displacements because of conflicts elsewhere,' said Judy Cheng-Hopkins, UNHCR's assistant high commissioner for operations.

'For us, the great challenge is to provide protection and assistance to the IDPS, especially protection against physical and sexual violence, protection of children, civil protection,' Cheng-Hopkins told IRIN in an interview in Kinshasa on Tuesday.

She noted that the problem of displacement in the DRC was unique because of the large number of people who had fled their homes and the difficult logistics of delivering aid to them.

"Here, the people are always on the move, living with other families in the communities of reception or they are completely dispersed, so much so that it is a great challenge finding the displaced for identification and for the provision of assistance," she said."

OCHA, 30 June 2006 :

« Depuis plusieurs mois déjà, la communauté humanitaire est le témoin d'un mouvement double et contraire des populations, entre ceux qui tentent d'échapper à des combats ou à des exactions et ceux qui cherchent à regagner leurs villages. Parfois les deux catégories de personnes se retrouvent dans les mêmes localités, ou encore elles sont contraintes de s'enfuir ensemble. Cet état de fait gêne l'action humanitaire appelée à déterminer les groupes prioritaires de son assistance, lorsque ceux-ci sont accessibles. En Ituri, dans le territoire d'Irumu, à Mirangi (territoire de Rutshuru) dans le NordKivu et à Shabunda, au SudKivu, et dans de nombreux autres lieux, l'accès aux déplacés/retournés est compromis par l'insécurité.

Les auteurs d'exactions sont toujours les mêmes (FARDC, FDLR, MRC et MaiMai) et la MONUC intervient périodiquement pour diminuer leur pression sur les civils. Schématiquement, les paramètres évoluent sur des courbes inversement proportionnelles : d'une part, la zone humanitaire rétrécit sur une bande à l'est du pays et l'espace humanitaire s'amenuise, tandis que l'insécurité augmente en même temps que le nombre des déplacés, d'autre part. L'accès aux personnes affectées ne peut être restauré que par deux mécanismes : des victoires sur les groupes armés ou le plaidoyer sur le terrain auprès des chefs militaires. »

Displacement is constant feature in the life of most people in central and northern Katanga (2006)

- Mai-Mai burn and loot villages in retaliation for the villagers' perceived support of the FARDC and to deny haven to the army; in turn, the FARDC views the displaced from these villages as Mai-Mai sympathizers

RI, 8 March 2006:

"Over the past two years, tension in central Katanga between the FARDC and the Mai-Mai groups has led to open fighting, with civilians caught in the middle. The Mai-Mai burn and loot villages in retaliation for their perceived support of the FARDC and to deny haven to the army; in

turn, the FARDC views the displaced from these villages as Mai-Mai sympathizers. All armed groups, but particularly the 63rd Brigade of the FARDC stationed since 1997 in Mitwaba, live off the backs of the displaced and local population, forcibly appropriating food, money, household goods, relief supplies, and labor. Women are particularly vulnerable to abuse, including rape.”

MSF, January 2006:

“In the last two years violence has provoked several waves of displacement in the Mitwaba – Upemba – Manono triangle.

- In early 2004, political divisions among Mai-Mai factions sparked fighting among groups and counter attacks by the FARDC north of Mitwaba causing a major population exodus towards the forest and the south of the territory;

- In March/April 2005, further fighting between Mai-Mai and military along the axes of Konga-Kintya and Dilenge-Mwema, left some 15,000 men, women and children spread across the camps and villages of Mitwaba, Mazombwe, Kasungeshi and Sampwe. In the zone around Kakonona, 6,000 persons also fled fighting;

- In July/August just under 2,000 civilians fled towards Lukona from villages such as Mukunda, Kyabwe, Shamwana, Kamazanga, Kibemba and Kampangwe. Another 2,000 or so arrived in Dubie around the same time from villages including Mutendele, Kishale and Mpaza in particular;

- In mid-November, following intensified military operations, 6,000 persons sought refuge in Dubie while a further 4,000 decamped to Kizabi near Pweto and another 5,000 to Kabalo.

Over December/January, another 10,000 people made their way towards Dubie while the displaced in Mazombwe were forced to flee after an attack by Mai-Mai. Of the 3,000 original inhabitants, only 1,000 appear to have returned. Another 15,000 persons fled to the shores of Lake Upembe adding to an existing 20,000 displaced. And a further 6,500 persons to Sampwe and Mitwaba.[...]

For most of the people across central and northern Katanga, such upheavals and displacement have been a constant feature of their lives ever since the war started in 1998, and have continued to this day with the conflict between the Mai-Mai and Congolese army.

Thousands of civilians have frequently been obliged to flee to their fields, following waves of abuse and violence. They have lived in their fields away from their villages for anything from a few days to several months—even up to one year – only then managing to return home.

Some had perpetually been going back and forth from their village to their fields and back again – for nights, for weeks or longer. Still others had eventually decamped from their fields to the bush unwilling and/or unable to return to their villages; many had lived a life of continually fleeing from one bush area to another continually in search of safer refuge during one or several months.”

Batwa “Pygmy” population has been displaced and marginalized (2003-2004)

- Batwa have been evicted from their original homeland in forests without compensation
- Since the beginning of the conflict, Batwa have been accused of collaborating with the opposite side

RI, 12 August 2003:

“A group of Pygmies, the Batwa, face particular challenges. The Batwa, who live in Rwanda, Burundi, Uganda and the Democratic Republic of the Congo (DRC), number an estimated 70,000-87,000, according to Minority Rights Group International

Starting in the late 1960s, with the establishment of the Kahuzi-Biega Forest in South Kivu, DRC, and still continuing today, international conservation groups have joined with national governments to forcibly expel Pygmies from newly declared game parks and forest preserves. They are evicted from their homelands and offered neither compensation nor recourse. Homeless, they take up a marginalized status on the periphery of local communities. [...]

It is a social taboo to share food, occupy the same bench and socialize with Batwa in public spaces. While other citizens are issued birth certificates and identity cards free of charge, Batwa must undergo an involved bureaucratic process. Without these cards, it is difficult to enroll in schools and receive government-funded health care, which are otherwise guaranteed to other vulnerable people in the country. [...]

[...] [I]n the DRC, where many more Batwa are able to maintain their lives in the forests than in any other country in the Great Lakes region. However, these forests are popular among rebel groups and are often the battleground for the conflicts raging there today. The Batwa have been accused of exchanging information, becoming spies, or joining an opposing side, and so often become victims of violence. Amnesty International recently reported cannibalistic incidents of armed groups killing the Batwa and forcing prisoners to eat the flesh. While some Batwa do join with rebel and government forces that can provide subsistence, many more are innocent victims of armed conflict."

RI, 20 August 2004:

"Civil wars, poorly planned conservation parks, lack of access to education, healthcare and land, ethnic discrimination, economic hardships, and inequalities threaten to destroy Batwa cultural heritage. In August 2003 Refugees International released a report entitled, "Forgotten People: The Batwa 'Pygmy' of the Great Lakes Region of Africa" documenting these threats. They remain the challenges confronted by the 70,000-87,000 Batwa living in Uganda, the Democratic Republic of the Congo, the Central African Republic, Rwanda and Burundi. One year later and still forgotten, the Batwa are vulnerable."

Enormous strain on host communities hosting IDPs (1999-2008)

- In rural communities IDPs are often absorbed by host villages, accommodated and fed for the initial stages
- In urban areas, people move in with family and friends or squat wherever they can in the towns
- Enormous strain put on already limited resources
- In North Kivu, IDPs have been forced to move out of host communities, and have found refuge in established camps or in dilapidated public buildings or built huts in marginalised areas (2008)

RI, 21 May 2008, "Key facts":

"- Seventy percent of the displaced people in North Kivu are living with host families where space and food are shared equally. Many of the host families are relatives or friends of the displaced. Others take in strangers because they want to assist vulnerable people like pregnant women and the elderly. In most of these host families women are the main caregivers. However, this charity is put under strain when the displacement situation lasts much longer than expected, as is happening in the Petit Nord area of North Kivu where there is continuing insecurity due to fighting between armed groups and the targeting of civilians. The prolonged presence of displaced people in a host community means that resources diminish while tensions rise.

- A worrying trend that Refugees International observed in the Rutshuru territory of North Kivu is that as the host family situation deteriorates, more and more displaced people have no choice but to move to spontaneous sites or planned camps. Relief agencies lack the capacity to assist a large flow of displaced people out of host communities and into planned camps or spontaneous sites. In addition, forced displacements are ongoing in North Kivu and any significant increase in the number of newly displaced people could overwhelm the current international response."

RI, 21 May 2008, "Break the routine":

"Support is needed for host communities in North Kivu who currently assist almost three-quarters of the displaced population. Host families open their doors and share their food and resources with people who have been forced to flee their homes as a result of violence perpetrated by various armed groups. Persistent insecurity and human rights violations are preventing people from returning home and they are obliged to remain displaced for a longer period within the host communities. Host families, especially those headed by women, should be supported in their efforts as they are progressively becoming as vulnerable as the displaced people themselves.

After several months tensions often arise between the host family and the displaced due to the diminishment of shared resources. As a result, displaced people are often forced to move out of host communities. One alternative is to go to an established camp, but more often, the displaced end up living in public buildings or constructing huts on spontaneous sites close to heavily militarized areas, where they are more vulnerable and their protection is not guaranteed. Staying with host families, the displaced are able to maintain their dignity and are safer. In spontaneous sites women and young girls are more exposed to sexual and gender-based violence. While humanitarian actors acknowledge the erosion of the capacity of host communities to assist displaced people, there has not yet been a comprehensive strategy aimed specifically at reinforcing them."

RI, 17 October 2006, p.6:

"Life for all these groups in the eastern DRC is precarious. Most IDPs crowd host communities, living among the population with friends or family members, or putting up temporary shelters on small plots rented in exchange for day labor. This puts enormous strain on resources already limited by the lack of social infrastructure such as markets, law enforcement, schools, and health centers, not to mention natural resources such as arable land and water. In the South Kivu village of Hombo, for example, the resident population of 4,420 has had to welcome an additional 40,000 people displaced from their homes. When a sudden influx overwhelms the capacity of a host community, makeshift camps spring up in any safe, open area. Before help arrives, shelters built from branches or reeds and covered with straw crowd together, with just enough space between them for cooking fires; water is sometimes far away and rarely clean, and latrines usually non-existent. Some may earn money as day laborers or petty traders, but most are obliged to wait for assistance. The areas most affected by the conflict, both in terms of displacement and return, are in the east."

UN, July 1999, p.8:

"A characteristic feature of displacement in eastern DRC is the fact that IDPs are not housed in camps but have merged into host communities. Their conditions remain precarious due to lack of farming land, vital services and general insecurity. Remaining in proximity to their places of origin, the displaced are prone to be subjected to the same hazards and abuses that caused them to flee in the first place. On a number of occasions during 1998-99, the displaced and local communities were stranded in combat areas and were removed by military authorities in a bid to create security zones."

UN, November 2000, p.18:

"The great majority of displaced persons are relatively well received by foster communities thanks to the family or tribal ties. In urban areas, IDPs are sheltered and fed by their foster families thus becoming an additional burden on the already poverty-stricken urban households. It is not uncommon that the continued stay of IDPs creates discontent that eventually bursts into a conflict with the subsequent expulsion of the displaced. In rural communities on the other hand, IDPs are often absorbed by host villages, accommodated and fed for the initial stages. With the approval of traditional chiefs, the displaced subsequently receive land plots and in due course overcome their dependence on the local community. Eventually, the relations between the displaced and their hosts improve, as the former start contributing to the general well-being of the community."

IDPs seeking shelter in the forest constitute be the most vulnerable IDP group (2000-2007)

- Forest dwellers lack access to health care and subsistence on wild foods
- Even after the national elections, IDPs seek refuge in the forests, fearing for their security, where assistance cannot reach them

OCHA, 31 December 2000:

"Tragically, it is estimated that less than half the displaced communities and families are receiving humanitarian assistance. Those vulnerable and displaced populations left without assistance are hiding in the forests, inaccessible as a result of insecurity and some who emerged for their hiding places in August [2000] were disturbingly described as 'living in animal-like-conditions.'"

UN, November 2000, p.15:

"This group of displaced is legitimately believed to be the most vulnerable among all IDP communities. Most commonly, these people have been displaced several times, having left their home communities seeking security in remote and barely accessible areas. Communities then cleanse a portion of forest and start cultivating. This category of displaced has practically no access to health care and is reduced to consuming wild berries and "non-human" and raw food. Ashamed of their physical appearance and nudity, precarious health conditions (infections, dermatosis, parasitosis, etc.), "forest dwellers" avoid any contacts with the outside world and seek to further distance and alienate themselves from the neighbouring communities. The previous (1996-1998) experience with similar groups of displaced suggested that practically every family loses on average one child under five. Because of its survival tactics, this group is the hardest to access and assist."

HRW, 21 July 2006, Mai Mai :

In Katanga : « Le déplacement forcé dans la forêt a causé beaucoup de souffrance en raison de la difficulté de se procurer de la nourriture, de l'eau et des soins médicaux. Une personne a expliqué: « Je suis restée dans la forêt pendant près d'un an. C'était vraiment pénible. Il n'y avait rien à manger. Beaucoup n'ont pas survécu » »

MONUC, 27 December 2006 :

In North Kivu : "Cependant les problèmes sont encore nombreux. Conséquences similaires d'un état de guerre, le Bureau de la Coordination des Affaires Humanitaires (OCHA) confirme qu'il y a un total de 80.000 IDP dispersés dans toute la région. Craignant toujours pour leur sécurité, les déplacées ne cessent de fuir vers la forêt. Souvent, du fait de leur isolation ou de leur présence dans des zones contrôlées par les rebelles, l'assistance humanitaire ne peut pas les atteindre. D'autres réfugiés arrivent à Goma, mais OCHA indique qu'ici également ce n'est pas facile de cibler ces nouveaux venus qui se mélangent avec les résidents de la ville."

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

General

Deadly attack on IDP camp by FDLR militia (June 2008)

AFP, 6 June 2008:

"More UN peacekeepers in the Democratic Republic of Congo have been sent to secure a refugee camp in the east of the country where an attack blamed on Rwandan Hutus reportedly left nine dead, a UN spokeswoman said.

The mobile base next to the Kinyandoni camp was set up on Thursday and will eventually have about 50 peacekeepers, said Sylvie van den Wildenberg, a spokeswoman for the UN mission to DR Congo (MONUC) in Nord Kivu province.

The peacekeepers "are going to continue patrolling the zone, to protect the area and to prevent all new attempts at an attack," she told AFP.

Rwandan Hutu fighters opened fire on refugees at the camp on Wednesday, killing nine people, according to the UN High Commissioner for Refugees (UNHCR). It blamed the Democratic Forces for the Liberation of Rwanda (FDLR) for the attack.

The territory's Congolese administrator Dominique Bofondo said the authorities had decided to send troops and police to secure the Kinyandoni camp which is in the Rutshuru region, about 70 kilometres (45 miles) north of the regional capital Goma.

Bofondo said a ninth body from the attack was found Friday and that more could still be retrieved. Aid groups suspended their operations in the zone on Thursday because of the attack."

See also:

[IRIN](#), 5 Jun 2008, DRC: Thousands displaced after rebel attacks [[Internet](#)]

OCHA, 5 Jun 2008, DR Congo: Civilians take a direct hit from fighting in North Kivu [[Internet](#)]

UNHCR, 5 Jun 2008, UNHCR condemns deadly attack on camp for displaced Congolese [[Internet](#)]

Previous attack on IDP camp in 2007:

IRIN, 15 November 2007:

"People have been returning to camps for displaced people (IDPs) in the Democratic Republic of Congo's North Kivu province after fresh fighting near the main town of Goma prompted up to 40,000 to flee.

Some IDPs said looters had ransacked their shelters while they were away, taking what little possessions they owned.

Panic spread through the camps on 13 November when the sound of heavy gunfire ricocheted through the mountains behind Mugunga, 15km outside Goma, where about 38,000 IDPs were housed. Another 2,000 people fled a third camp in Bulengo, 5km from Mugunga."

Mandate of Independent Expert on HR situation in the DRC not renewed (May 2008)

MONUC, 14 May 2008

“On 27 March 2008, during its seventh regular session held in Geneva, the Human Rights Council decided not to renew the mandate of the Independent Expert (IE) on the situation of human rights in the DRC that was established in July 2004. On 19 March 2008, Mr. Frédéric Titinga Pacéré, the IE, presented a report on his last two working visits to the country (November 2007 and March 2008). The report indicated that the human rights situation in the DRC was cause for grave concern, characterized by repeated serious violations including arbitrary executions, rapes, torture and ill-treatment, in particular in the eastern part of the country and in the Bas-Congo Province.”

Urgent protection concerns for IDPs and other civilians (2007-2008)

- OCHA reported in July 2008 that armed groups had forcibly displaced people in several areas of North Kivu (Masisi and Rutshuru)
- MONUC reported that in July 2007, Congolese soldiers had been responsible for numerous cases of arbitrary executions and other HR violations
- In June 2007, an IDP camp close to Goma was allegedly looted by Congolese soldiers after the distribution of humanitarian assistance
- According to UNHCR, IDPs in North Kivu have been victims of grave human rights violations by all the factions engaged in fighting and by other civilians (May 2007)
- MONUC reported that as of the end of 2006, over half of human rights violations were committed by the Congolese armed forces and by the Congolese National Police
- The rights of Congolese civilians, including IDPs and returnees, are constantly threatened by armed militias, government forces, and even elements in their own communities (July 06)
- According to the International Crisis Group, the poor and irregular payment of soldiers has made the Congolese army the largest security threat for Congolese civilians (Jan 06)
- According to MONUC, the Congolese army, as well as FDLR and Mai Mai militias were responsible for increased human rights violations in North and South Kivu early 2007
- According to MONUC, Nine IDPs, initially reported abducted, are believed to be among at least 32 civilians summarily executed by FARDC soldiers of the Intervention Battalion of the 1st Integrated Brigade in Bavi – 50 km south of Bunia – in mid-September [2006]
- In North Kivu, IDPs reported that DRC troops had raped women and stolen their property (August 2006)
- Pattern of forced labor in Ituri, reports HRW (October 2006)
- From January to June 2006, militias and government armed forces clashed at least 20 times in Ituri, causing major instability among the population
- MONUC spokesperson said that UN peacekeepers would stop fighting alongside national troops if they continued to commit human rights violations during operations (Feb 06)

2008

Oxfam, September 2008 :

“Even **IDPs in camps near Goma** reported numerous killings and death threats, particularly by demobilised fighters, as well as abduction and rape inside and outside the camps, and some cases of sexual violence against men.”

OCHA, 16 July 2008:

« De nombreuses violations des droits de l'homme sont rapportées, et le renforcement des positions FARDC laisse entrevoir une radicalisation du comportement des groupes armés contre les populations civiles et un accroissement des combats, entraînant des déplacements de populations. L'atteinte à l'intégrité des civils se manifeste notamment par

- Des violences physiques ;
- Des pillages à main armée récurrents ;
- Des violences sexuelles contre les femmes et les filles ;
- la perte ou le vol de pièces d'identité qui exposent les personnes aux arrestations arbitraires et aux tracasseries de toutes sortes ;
- La destruction de maisons par les belligérants, souvent en représailles d'allégations de collaboration des civils avec le groupe armé adverse ;
- Les travaux forcés particulièrement pour transporter le fruit des pillages et les effets militaires ;
- La séparation des familles ;
- La destruction et l'occupation des écoles et des centres de santé ;
- La restriction de liberté de mouvement ou le déplacement forcé imposés par les groupes armés, phénomènes constatés dans plusieurs zones de Masisi et Rutshuru au Nord-Kivu. »

UNSG, 3 July 2008:

"In North Kivu, there was a reduction in the number of ceasefire violations documented by MONUC. However, there was also a perceptible increase in the number of attacks against civilian targets, including non-governmental organizations and United Nations agencies, funds and programmes. On 4 June, an attack by the Forces Démocratiques de Libération du Rwanda (FDLR) on internally displaced persons in Kinyandoni resulted in 3 deaths and 20 injured. In addition, FDLR and the coalition des Patriotes résistants congolais (PARECO) continued to attack Forces armées de la République démocratique du Congo (FARDC) positions near Lake Edward in the Northern Rutshuru area. Other security incidents were reportedly linked to efforts by armed groups to extend areas under their control before disengagement. The Congrès national pour la défense du peuple (CNDP) has allegedly continued recruitment and training of combatants, while the prospects of reintegration benefits appears to have resuscitated or prompted the emergence of little known or insignificant groups, who have stepped up recruitment. In Goma, violent attacks on individuals, armed robberies and assassinations have increased since March [2008].

See also:

MONUC, 27 June 2008, RD Congo : Résumé du rapport des investigations sur les massacres de Kalonge en Territoire de Masisi [[Internet](#)]

2007

MONUC, 8 March 2007:

"The number of cases involving the armed forces of the DRC (FARDC) decreased from 53% of all violations reported to the UNHRO [United Nations Human Rights Integrated Office in the DRC] in the period of January – June 2006 to 40% of violations reported from July to December. However, the FARDC continued to be responsible for an alarming number of human rights violations, including mass killings of civilians, especially in Ituri District. The use of physical violence against civilians, including summary executions, beatings and rape, committed by soldiers of integrated and non-integrated brigades of the FARDC, continued to be widespread.

The number of human rights violations committed by the PNC [Congolese National Police] and investigated by the UNHRO increased in the second half of 2006 by 15%. Throughout the country, policemen continued to carry out arrests of civilians in flagrant abuse of their power and subject detainees to cruel, inhuman and degrading treatment. In addition to these violations, police officers were responsible for three cases of mass rape in Equateur Province.

Large portions of South Kivu province continued to be controlled by Rwandan Hutu groups, who repeatedly committed serious human rights abuses such as abductions, killings and rape. The presence of armed groups in some areas of northern Katanga, North Kivu and Ituri District also caused the insecurity and led to a number of incidents of human rights abuses.[...]

A large concentration of FARDC troops in North Kivu, redeployed to the area in order to participate in counter-insurgency operations, combined with a lack of sufficient food supplies, resulted in a number of killings of civilians as FARDC soldiers tried to extort money and food from them. [...]

FARDC soldiers, who are ill-equipped, largely unpaid and unfed, continued to live on the back of the local population, harassing civilians and extorting their goods."

MONUC, 20 February 2007:

"FARDC, FDLR, and Mayi-Mayi were responsible for increased insecurity and many human rights violations/abuses in North and South Kivu."

MONUC, 17 September 2007:

[In July 2007] "FARDC soldiers were responsible for numerous cases of arbitrary executions and other human rights violations, in particular, the rights to physical integrity, liberty and security of persons [...]

On 27 June 2007, the Katwiguru IDP camp, in the territory of Rutshuru, Goma, was allegedly looted by armed men in FARDC uniform. That was the third consecutive attack against the Katwiguru IDP camp after the distribution of food and non-food items by humanitarian agencies."

IRIN, 8 May 2007:

"Fighting between forces of the Democratic Republic of Congo government and Rwandan rebels has displaced tens of thousands of villagers in the eastern DRC's North Kivu province since February, who were now being victimised by the military and other civilians, humanitarian sources said.

"The security situation is harsh for these displaced people as they are victims of grave human rights violations and are directly targeted in the fighting," said Jens Hesemann, spokesman for the United Nations High Commissioner for Refugees (UNHCR) in Goma, the capital of North Kivu, on Monday.

North Kivu has been the scene of most of the fighting between DRC's Forces armées de la République Démocratique du Congo (FARDC) and the rebel Democratic Forces for the Liberation of Rwanda, known by its French acronym, FDLR, which comprises the remnants of the former Rwandan army and ethnic Hutu militias blamed for the 1994 genocide.

"Displaced people are being subjected to looting every day by all the factions engaged in fighting - the Congolese army and the Rwandan rebels - and are victims of atrocities, including killings, robbery and other kinds of mistreatment by other civilians," said Hesemann, citing reports from a UNHCR monitoring team, which has collected testimonies from the displaced.

War-related abuses worsened in the first week of May when FARDC launched a major offensive against the FDLR, during which more than 40 rebels were killed.

"Civilians are complaining about the killing of their relatives by soldiers who accuse them, often without evidence, of being rebel accomplices," said Hesemann."

See also:

IRIN, 10 September 2008, DR Congo: LRA accused of abuses in northeast as army moves in [\[Internet\]](#)
<http://www.irinnews.org/Report.aspx?ReportId=80276>

MONUC, 9 November 2007, DR Congo: Monthly Human Rights Assessment - Sep 2007 [\[Internet\]](#)
<http://www.monuc.org/News.aspx?newsID=16010>

[AFP](#), 9 October 2007, DR Congo rebel leader accuses army of razing houses [\[Internet\]](#)
<http://www.reliefweb.int/rw/rwb.nsf/db900sid/SSHN-77TGLM?OpenDocument&rc=1&cc=cod>

For more information on human rights violations committed by the Congolese armed forces and by the Mai Mai militia, see :

HRW 21 July 2006, FARDC Analyse Légale [\[Internet\]](#)

HRW 21 July 2006, Mai Mai Analyse Légale [\[Internet\]](#)

Reuters Foundation, 21 Jun 2006, UN probes report of force's role in Congo massacre [\[Internet\]](#)

United Nations Organization Mission in the Democratic Republic of Congo (MONUC), 6 Oct 2006
DR Congo: MONUC response to the media on MONUC/FARDC 21 Apr, 2006 joint operation in Kazanga, Ituri [\[Internet\]](#)

Corruption has immediate impact on humanitarian situation (July 2006)

- Corruption in the armed forces has been particularly detrimental
- Military operations are business opportunities for some commanders
- The troops, who live in terrible conditions, in turn harass and extort the local population

ICG, 20 July 2006:

"The Congolese state has suffered from corruption since independence. The logic of the 2002 peace agreement, which established the current political transition, has brought problems of governance into sharp relief. Senior positions in the administration and state-run enterprises were shared between signatories, and state resources were siphoned off to fund election campaigns and private accounts. Between 60 and 80 per cent of customs revenues are estimated to be embezzled, a quarter of the national budget is not properly accounted for, and millions of dollars are misappropriated in the army and state-run companies. The mining sector is particularly prone to corruption, with valuable concessions granted with little legitimate benefit to the state.

These governance problems have an immediate impact on the humanitarian situation. Unpaid soldiers harass and intimidate civilians. Factions within the army and government continue to fight over mines and control of border crossings. The displaced civilians have almost no health services to fall back on, and 1,000 or more die daily as a result.[...]

Corruption in the armed forces has been particularly detrimental. It has been relatively easy for some commanders to embezzle their troops' salaries. In December 2005, a foreign military expert close to the defence ministry suggested that \$3.5 million to \$5.8 million was being embezzled monthly from the \$8 million set aside to feed and pay soldiers. The troops, who live in terrible conditions, in turn harass and extort the local population. The army is itself the largest single

threat to civilians in the country, while the police in many areas are still seen as a menace. Embezzlement has decreased but not ended in 2006 thanks to the introduction of a payroll mechanism independent of the chain of command instituted by the EU in January and better surveillance by Congolese authorities but the army continues to be plagued by lack of troop discipline in many parts of the country.[...]

Military operations are business opportunities for some commanders. An example was the Kanyabayonga crisis of November 2005, when 10,000 troops were sent east to deal with RCD dissidents in North Kivu. As much as \$30 million was likely embezzled during the operation. The government chartered airplanes in which both President Kabila and Vice President Bemba owned shares and flew food rations from the Kivus to Kinshasa and then back east again. Many soldiers were not paid or fed, which led to mass desertions and the looting of villages.[....]

Left to their devices, soldiers often turn on the local population to survive:

When the army deployed the 63rd brigade to central Katanga to attack the Mai-Mai in November 2005, \$250,000 destined for the operation allegedly went missing. According to international humanitarian officials, soldiers went to the camps of displaced people (IDPs) they were supposed to protect to extort money and food."

Reported mistreatment of IDPs by rebel groups prevents IDPs to return home in Ituri (November 2007)

IRIN, 9 November 2007:

"The threat of violence from rebel remnants is preventing thousands of internally displaced persons (IDPs) in northeastern DRC returning home, while harassment by regular troops is adding to their woes, according to the UN.

"With dissident groups hiding in the forest, displaced people dare not return to their villages. At the same time they are being mistreated by the army in the very areas where they are seeking refuge," said Arsene Kirhero, the UN Office for the Coordination of Humanitarian Affairs (OCHA) Liaison Officer in Bunia, the main town in the volatile northeastern region of Ituri.

[...]

"Their situation is difficult. They are living in villages whose residents only returned home last July and they really need food, water and education for their children," said Kirhero.

The investigators found the army was forcing civilians to work as porters for long distances and was extracting "taxes" at roadblocks on market day. Many people reported being prevented from reaching their fields and young men said soldiers frequently accused them of supporting the militia groups.

The army said there was only some truth to the allegations.

"It's true that abuses happen, especially when a group of soldiers is cut off from superior officers, but I think these reports are exaggerated," responded Captain Charles Boyeka, who serves as a liaison officer with the UN mission in DRC.

"There is no more war in Ituri but these people don't want to return home. Nobody is stopping them, but out of idleness they'd rather stay where they are because of the food that's handed out for free," he added.

[...]

"According to the army, there are still around 50 armed militiamen, which is enough to cause problems for the IDPs and local population," explained Kirhero, adding that civilians continued to flee from villages near the forest."

UN reports cannibalism, systematic killing and rape (2007)

MONUC, 19 March 2007:

"In South Kivu, an FDLR Rasta combatant was for the first time arrested and handed over to the military authorities. The suspect was allegedly involved, together with other Rastas, in the killing a woman in Bulambika, collectivity of Bunyakiri on 31 December 2006 as well as in various cases of rape, killings, cannibalism and abductions in the collectivity of Bunyakiri in 2006. He was transferred to the office of the Military Prosecutor where charges of criminal conspiracy, illegal possession of a weapon of war and armed robbery have been brought against him."

For more information, see

International Alert, Réseau des Femmes pour un Développement Associatif, Réseau des Femmes pour la Défense des Droits et la Paix, Women's Bodies as a Battleground: Sexual Violence Against Women and Girls During the War in the Democratic Republic of Congo South Kivu (1996-2003), 2005

[Link below]

Women

Investigation of sexual abuses committed by UN peacekeepers (2005-2008)

- During 2006, the UN investigated 176 cases of sexual abuses allegedly committed by MONUC personnel
- The UN Office of Internal Oversight Services found out a pattern of sexual exploitation by uniformed personnel involving women and girls
- The Internal Oversight Office requested the concerned troop-contributing countries to take swift disciplinary action
- In a report to the UN SC, the UN SG noted that the reputation of MONUC had been severely damaged by acts of sexual exploitation and abuse committed by some peacekeepers against the local population
- In December 2005, the UNSG reported that as a result of the investigations, allegations had been substantiated against 78 personnel, and that mechanisms to prevent future abuses have been put in place within MONUC
- Authors of these rapes had to leave the DRC to return to their country
- Renewed investigations into allegations of sex abuses and exploitation by peacekeepers (2008)

UNSG, 12 August 2008

"The [UN] Secretary-General is deeply troubled by the outcome of an investigation by the Office of the Internal Oversight Services, which has revealed prima facie evidence that members of one of the peacekeeping units of the Indian contingent previously assigned to the United Nations Organization Mission in the Democratic Republic of the Congo (MONUC) may have engaged in sexual exploitation and abuse.

UN Radio, 15 May 2008:

"Le Bureau des services de contrôle interne de l'ONU enquête actuellement sur la probable implication de Casques bleus dans des affaires d'abus sexuels et d'exploitation. Les faits rapportés se seraient déroulés entre 2007 et 2008. Des soldats du contingent indien sont particulièrement pointés du doigt. La MONUC avait récemment fait l'objet d'accusation de trafic d'armes."

UNSC, 20 March 2007:

“During 2006, 176 allegations of sexual exploitation and abuse were reported to the Office of Internal Oversight Services. Investigations were completed against 49 personnel; as a result, three military contingent members were repatriated on disciplinary grounds. The remaining allegations are under active investigation. In cooperation with the MONUC Conduct and Discipline Team, the Office of Internal Oversight Services has made considerable progress in addressing the concerns expressed in my previous reports with regard to the length of, and delays in, investigations. However, those aspects, as well as the limited investigative capacity of the Office of Internal Oversight Services, need to be urgently addressed.”

UNSC, 22 March 2005, para.64-65, 85:

“On 5 January [2005], the Office of Internal Oversight Services released the results of its four-month investigation into misconduct by peacekeepers serving in Bunia (A/59/661). As preliminarily indicated in my last report on MONUC to the Security Council, dated 31 December 2004 (S/2004/1034), of the 72 allegations originally reported to MONUC, eight were fully substantiated. Upon receiving the Office of Internal Oversight Services reports on individual cases, the Department of Peacekeeping Operations transmitted them to the troop-contributing countries concerned, requesting them to take swift disciplinary action. The Department has since followed up with those Member States, requesting information on the status of these cases.

The observation of the Office of Internal Oversight Services that there was a pattern of sexual exploitation by uniformed personnel involving women and girls is a source of major concern, which is now being addressed in a comprehensive manner by the Department of Peacekeeping Operations and MONUC. During the first week of January, at the request of the Under-Secretary-General for Peacekeeping Operations, Assistant Secretary-General Angela Kane was deployed to the Democratic Republic of the Congo to head a special investigative team, the first elements of which had been deployed in late December. The team was augmented in February by five highly skilled investigators and will be further strengthened to meet the medium-term investigation requirements. Given the number of allegations of sexual exploitation and abuse received by MONUC in recent months, the special investigation team focused its attention on the review of those allegations and on the conduct of as many investigations as possible.

The reputation of MONUC has been severely damaged by acts of sexual exploitation and abuse committed by some peacekeepers against the local population.”

For the full report by the Office of Internal Oversight Services, see:

United Nations General Assembly, 5 Jan 2005, Investigation by the OIOS into allegations of sexual exploitation and abuse in the UN Organization Mission in the Democratic Republic of the Congo [[External link](#)]

See also: Institute for Security Studies (ISS), 28 Feb 2006

DRC: Who guards the guards? The International Criminal Court and serious crimes committed by peacekeepers in Africa [[Internet](#)]

United Nations Security Council, 23 Feb 2006

Problem of sexual abuse by peacekeepers now openly recognized, broad strategy in place to address it, Security Council told [[Internet](#)]

See also Oxfam’s special page on DRC- Rape, Destiny, Stigma and Impunity [[Internet](#)]

High incidence of rapes among displaced and other women (2006-2008)

- The age of victims ranged from babies to octogenarians, but the majority of victims were between the ages of 19 and 45 (over fifty per cent) whilst close to forty per cent were under 18
- In 2007, the special rapporteur of the UN Human Rights Council on Violence against Women, said an estimated 4,500 cases of rape had been reported in the eastern province of South Kivu in the first six months of 2007 alone
- Special rapporteur said that sexual violence in the DRC amounted to war crimes and crimes against humanity (October 2007)
- According to the UN Special Representative on Children in Armed Conflict, 54,000 victims of sexual violence had been identified since 2004, of which 16 per cent were children (March 07)
- Despite all initiatives undertaken to counter sexual violence and the adoption of two Laws on Sexual Violence on 20 July 2006, rape continues to be widespread throughout the country
- In Oriental Province, many children have been raped, often by members of the security force
- Challenges in the fight against impunity include the weakness of the judicial system and the lack of denunciation by victims due to taboos and fear of persecution
- According to UNICEF, over 1,000 women and girls were raped per month (June 2008)
- According to a UNSG report to the UNSC, a third of reported cases of rapes are in North Kivu, the majority of them IDPs (July 2008)
- In September 2008, Oxfam asserted that women were less safe than the previous year; it also said that Men and boys faced sexual violence in nearly half the communities surveyed in North Kivu and parts of South Kivu

Oxfam, September 2008:

“Community consultations reveal that civilians across the Kivus and Ituri continue to suffer a situation of near-permanent insecurity, yet those mandated to protect them are largely absent or are themselves committing the abuses. Women in almost all locations say they are less safe now than they were a year ago. Oxfam calls for an urgent review of protection resources and practices.[...]

Who is at risk? Women in all areas generally felt they were less safe than they were a year ago; they are the main targets of sexual violence, which was given as the greatest threat in 28 out of the 30 communities surveyed.[...]

Schoolgirls are also at particular risk: almost all communities identified them as especially vulnerable to sexual attack, sometimes from their own teachers.[...]

Men and boys also face sexual violence in nearly half the communities surveyed in North Kivu and in some parts of South Kivu.”

UNSC, 3 July 2008:

“While data remain imprecise, there are indications that almost on third of new cases reported through the Joint Initiative (Initiative Conjointe) emanate from North Kivu, primarily from internally displaced persons. Increased sexual violence is also reported in South Kivu, linked to growing insecurity in Minova and new population movements.”

UNICEF, 24 June 2008:

“‘Sexual violence in DRC is on a scale and brutality unparalleled elsewhere in the world,’ says Child Protection Specialist Pernille Ironside in UNICEF’s eastern DRC regional office. ‘While rape

certainly existed prior to the war, the brutal nature of the violations that we see is appalling – with over 1,000 women and girls raped per month.

'This is truly a context in which sexual violence has taken on a new dimension,' she adds."

See also:

CRS, 12 May 2008, DR Congo: Doctor speaks out on atrocities of rape [Internet]

<http://crs.org/democratic-republic-of-congo/doctor-rape-victims/>

UNICEF, 24 June 2008, As DR Congo crisis persists, UN classifies rape as weapon of war [Internet]

http://www.unicef.org/infobycountry/drcongo_44598.html

IRIN, 18 March 2008, DRC: "Majority of rapists go unpunished", [Internet]

<http://www.irinnews.org/Report.aspx?ReportId=77340>

FIDH, 18 March 2008, Sexual Crimes in DRC : Breaking the cycle of impunity [Internet]

<http://www.fidh.org/IMG/pdf/NOTEDRCWorldTourENGNoTC.pdf>

MONUC, 17 March 2008, South Kivu: 14,200 cases of rape registered from 2005 to 2007 (UN) [Internet]

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ICRC, 20 January 2008, Eastern DRC: Widespread sexual violence against women threatens families [Internet]

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2007

DPI, 16 March 2007:

"Regarding the issue of sexual violence in the Democratic Republic, she [the UN Special Representative on Children in Armed Conflict] noted that 54,000 victims had been identified since 2004, of which 16 per cent were children. At a hospital she had met many young girls under the age of 15 who had been subject to gang rape and were pregnant. Sexual violence was a serious issue and was not decreasing -- like child recruitment, a lot of the guilty parties were Government security forces themselves. Detailed discussions had been held with the magistrates and the "auditor militaire" in the Democratic Republic to ensure that jurisprudence was up to international standards, evidence gathering procedures were adopted and women would come forward to make their complaints. It remained an absolute and serious problem."

ActionAid, 17 November 2006:

"Rape was used as a weapon of war by all sides in the conflict, often in conjunction with abduction and sexual slavery. The age of victims ranged from babies to octogenarians, but the majority of victims were between the ages of 19 and 45 (over fifty per cent) whilst close to forty per cent were under 18.

It has been close to impossible to assess the number of rapes that took place during the war because of extreme underreporting by women. However, it is estimated that hundreds of thousands have been affected. It is extremely stigmatising to be a victim of rape. If unmarried it

can mean the woman will never marry, if married she can be left by her husband, rejected by her family and become an outcast. If the rape results in a child the stigmatisation is even greater and also more traumatic for the victim, sometimes resulting in abandonment of the baby. Abortion is illegal in the DRC, the only exception is in cases where abortion is necessary to save the life of the woman, but is always illegal in cases of rape. Consequently many women choose not to report violations. The number of non-reported rapes is estimated to be far greater than the reported numbers. The number of rapes has not decreased with the end of the war.”

MONUC, 8 March 2007:

“Sexual violence remained widespread throughout the country with some of the worst reports coming from Equateur and North Kivu. Only in a limited number of cases were the perpetrators brought to justice. The proportion of sexual violence cases committed by the PNC [Congolese National Police] rose from 7% of all cases in the first half of the year to 23% during the period in review.[...]

Despite all initiatives undertaken to counter sexual violence and the adoption of two Laws on Sexual Violence on 20 July 2006, rape continues to be widespread throughout the country.[...]

In Ituri, where the local population suffers hardships caused by the continuous military operations against armed groups still active in the District, the FARDC have carried out brutal acts of sexual violence in a legal vacuum without being held responsible for their actions. IDP camps, which are often located in close proximity to military camps, are inhabited mostly by women and children who easily become victims of soldiers. The IDP camp in Geti – 40 km south of Bunia (Irumu territory) – raises a particular concern, as at least three women were raped on their way home from the fields in the area in the month of November [2006] alone. A clinic in a rural area in Ituri registered 115 cases of rape committed by members of the security forces and armed groups in the month of September alone. The actual number of cases is believed to be higher.”

OCHA, 31 March 2007:

“In North Kivu, the first 6 months of 2006, an INGO providing medical care admitted over 1,200 *women victims of sexual violence*. In the Oriental Province from January to June 2006, a total of 449 children were reportedly raped; 170 of these rapes are attributed to members of the security forces. During the same reporting period, in the towns of Mbuji-Mayi and Lodja in Kasai Oriental, there were 65 cases of rape of minors, 36 of those allegedly perpetrated by members of the FARDC (Congolese National Army) and the National Police.

Although government forces have emerged as the main perpetrators there has been an increase in abuses committed by civilians, proving that sexual violence is just as much a reality in post-war as in times of war. This suggests the need to understand it as a persisting reality within a wider, generalized framework of impunity and violence perpetrated against women.

Main Challenges

There are two main challenges that factor in the fight against impunity: 1) the weakness of the judicial system, including its lack of capacities, resources and the inaccessibility to judicial services in rural areas, and 2) the lack of denunciation by victims due to taboos and fear of persecution.

These taboos and fears are deeply rooted in cultural beliefs, and cultural habits of conflict resolution (such as negotiating compensation between families and as a means of avoiding judicial processes). Although the judicial system is still very weak, a major positive development was made in 2006 with the promulgation of a new law that revised the definition of rape. The new definition of rape was expanded to include all genders and all form of penetration. The law also takes into consideration other forms of sexual violence: sexual slavery, mutilation, forced prostitution and forced marriage. This new law has also increased the penalties for those

successfully prosecuted and has improved some penal procedures – such as speeding up preliminary investigations and prohibiting the settling of cases by ‘friendly’ resolutions. Other encouraging indicators include the guilty verdicts of several military tribunals in Kasai and Katanga, where members of the FARDC (Congolese national army) were condemned with severe punishments (5-18 years of imprisonment) for the rape of minors. Even more significant, in June 2006, the Military Court of Mbandaka confirmed the application of the Rome Statute of the International Criminal Court, which qualifies rape as a crime against humanity. In April 2006, the court handed down life terms to 6 FARDC soldiers for mass rape in the village of Songo Mboyo in the Equateur Province. Another 8 FARDC soldiers were also given life sentences for mass rape in Mbandaka, committed in July 2005. These rulings are very new in the history of Congo and constitute important steps in the fight against impunity. However, the judicial system needs to be reinforced in terms of capacities, and in terms of outreach to establish sufficient precedents that might serve as a deterrent against further violence.

Parallel to these efforts, the lack of denunciation and reporting needs to be addressed seriously. A better performance of the judicial system may improve the current lack of trust victims have in the system and help motivate them to rely on it. However, the taboos, cultural beliefs and traditional conflict resolution methods will only be transformed to women’s advantage through education and proper awareness.”

IRIN, 14 September 2007:

“In July [2007], Yakin Ertürk, special rapporteur of the UN Human Rights Council on Violence against Women, said an estimated 4,500 cases of rape had been reported in the eastern province of South Kivu in the first six months of 2007 alone, with many more going unreported. She noted that sexual violence was perceived as “normal” by local communities.”

UN News, 26 October 2007:

“The scale and brutality of the sexual violence currently faced by women in the Democratic Republic of the Congo (DRC) amounts to war crimes and crimes against humanity, an independent United Nations human rights expert has told the General Assembly.

Yakin Ertürk, the Special Rapporteur on violence against women, its causes and consequences, told the Assembly’s Social, Humanitarian and Cultural (Third) Committee yesterday that the international community needs to intervene urgently to stem the widespread sexual violence.”

See also:

UN Human Rights Council, 30 July 2007, UN expert on violence against women expresses serious concerns following visit to Democratic Republic of Congo [[Internet](#)]

IRIN, 16 October 2007:

“The UN Children’s Fund (UNICEF) told IRIN that 18,000 cases of rape were reported in 2006 in three Congolese provinces, including North Kivu. But the real numbers are likely to be much higher.[...]

When fighting between dissident general Laurent Nkunda and the DRC army resumed this month in North Kivu province, women in the region again fled the threat of rape by armed groups.

‘When you have an increase of insecurity, an increase of displacement, women are put at risk and more vulnerable to sexual harassment,’ Patrick Lavand’Homme, head of the UN Office for the Coordination of Humanitarian Affairs (OCHA) in North Kivu told IRIN.

‘The mix of the military being close to IDPs [internally displaced persons] means the little rule of law that exists completely disappears.’

What is troubling in eastern Congo is the brutality that often accompanies rape. Women are routinely raped by more than one man, violated in front of their families or tortured after the rape.”

IRIN, 15 October 2007:

« Il y a eu plus de 2 000 cas de viols dans le Nord-Kivu entre les mois de janvier et de septembre 2007, selon le Fonds des Nations Unies pour la population (UNFPA), qui a relevé que des viols et autres exactions étaient commis dans certaines régions du Nord-Kivu où avaient eu lieu des combats entre l'armée congolaise et les troupes fidèles au général dissident Laurent Nkunda. »

For more information

Women's Commission for Refugee Women and Children, 17 Oct 2007, Over 27,000 sexual assaults in DRC in 2006: violence against women and girls continues to rise [[Internet](#)]

OCHA, 11 October 2007, Congo's rape war - Savage sexual violence is sweeping the troubled nation, demanding a global response [[Internet](#)]

MSF, October 2007, Ituri: Les civils restent les premières victimes [[Internet](#)]

Hell on Earth - Systematic Rape in Eastern Congo, **Journal of Humanitarian Assistance (JHA)**, 6 August 2007 [[Internet](#)]

IMC, 2007, Healing the wounds of war in DRC, By Margaret Aguirre [[Internet](#)]

C. Rodriguez, 25 Jan 2007, Sexual violence in South Kivu, Congo, Forced Migration Review [[Internet](#)]

IRIN, 12 Dec 2006, DRC: Healing the wounds of war at Panzi Hospital, South Kivu [[Internet](#)]

IRIN, 1 Aug 2006, DRC: Help and justice for raped, displaced women [[Internet](#)]

IRIN, 21 Jul 2006, RDC : Survivre au viol et au déracinement [[Internet](#)]

HRW, 7 March 2005, Seeking Justice: The prosecution of sexual violence in the Congo war [Link below]

International Alert & Al., 2005, Women's Bodies as a Battleground: Sexual Violence Against Women and Girls During the War in the Democratic Republic of Congo (1996-2003) [Link below]

AI, 26 October 2004, Democratic Republic of Congo: Mass rape – time for remedies [Link below]

HRW, June 2002, the War within the War: Sexual Violence Against Women and Girls in Eastern Congo [Link below]

Children

Displaced children need protection from recruitment by armed groups (2001-2008)

- Displaced children are particularly vulnerable to forced recruitment - as soldiers, domestic servants or sex slaves
- Recruitment of child soldiers by militias were reported by local and international observers to continue early 2007 in Ituri, as well as North and South Kivu

- According to the UN Special Representative on Children in Armed Conflict: child recruitment was decreasing everywhere in March 07, except in North Kivu, where it was on the increase, mainly due to the activities of dissident rebel, Laurent Nkunda
- In North Kivu, protection workers say children are no longer being recruited by the Congolese army but by any one of three main militia groups operating in the region (October 2007)
- Report of UNSG on children in armed conflict reported that IDP children in the DRC had been reported by forces loyal to rebel leader Nkunda in North Kivu (December 2007)
- Some 3,000 children reported to still be with armed groups in the DRC (2008)
- Forced recruitment by LRA reported in May 2008
- In South Kivu, abduction and forced recruitment of children by Mai Mai fighters reported in June 2008
- LRA has been attacking civilians in three countries, including the DRC, and made to act as porters or subjected to military training while girls are used as sex slaves

Legal aspects:

JRS, 13 February 2007:

“A) international law governing child soldiers

[...]

DRC is party to the Convention regarding the rights of the child which only partially protects young recruits, setting the minimum age of recruitment (in times of peace and in war) at 15 years and does not refer to the issue of children recruited by armed groups outside State control. An optional protocol concerning the involvement of children in armed conflicts was adopted to cover this lacuna and this expressly indicates that States must not engage children under 18 years of age in hostilities, prohibits the practice of forced or compulsory recruitment and forbids armed groups from integrating them in their troops¹. Former Zaire ratified this text on 12 November 2001.

Furthermore, Congo-Kinshasa made a commitment to respect International Labour Organisation Convention no 182 on the worst forms of child labour which qualifies as such « forced or compulsory recruitment of children for use in armed conflict ». Member states must « take effective and time-bound measures to prevent and eliminate » these practices « urgently ».

The African Charter on the Rights and Welfare of the Child, which came into force on 28 November 1999, rules in a similar manner to the optional protocol cited above on the enlistment of child soldiers but unfortunately DRC has not yet ratified this.

International and regional law prohibits the use of children in conflict. Nevertheless there are no sanctions in place to punish individuals who fail to respect these laws. It is the State itself which bears most of the onus to implement the measures. On the contrary, international humanitarian law considers the recruitment and use of child soldiers under 15 years as a war crime, as does international criminal law, according to Articles 8-2-b-xxvi (international armed conflicts) and 8-2-e-vii (non-international armed conflicts) of the Rome Statute of the International Criminal Court.

[...]

B) national law and the Congolese legal system

[...]

DRC has endeavoured to translate its international engagements into internal law. The law regarding the Congolese army expressly forbids the enlistment of persons under the age of 18

years in the regular armed forces. The new Constitution, even though it forbids enlistment in the armed forces, does not set a minimum age. In May 2005 the FARDC chief of staff issued explicit orders that this practice be stopped and instructed military prosecutors to pursue all offenders.

Thus although efforts have been made they have been obstructed by the dramatic state of the legal system in DRC, characterised by a lack of independence, little or no training for judges, insufficient investigative capacities, poor infrastructure and inadequate regulations to guarantee a fair trial and the rights of the accused. Furthermore the legal system is plagued by corruption and poor management and this has led people to resort to private revenge.

Moreover, the movement to prohibit the use of child soldiers is hampered by the lack of criminal measures vis-à-vis the armed forces."

In practice

AI, 19 June 2001:

"War and poverty have also led to the displacement of many children. Some are orphaned or unaccompanied and forced to live on the streets. Such children are at particular risk of recruitment into the armed forces. An independent observer told Amnesty International that all over the Kivus 'children have become cannon fodder and slaves: they are recruited to become soldiers. Girls and sometimes boys are forced to become domestic servants or wives of combatants, and sometimes they are also used for child labour and exploited without payment to work in the mines. [...]"

The break-down of the political, social and economic infrastructures (schools, communities, household, health facilities), as well as displacement, weaken or destroy children's immediate source of care and protection, making them an easy target for recruitment. Unable to adequately provide for their children's needs, some parents in the region believe that recruitment into the armed forces will offer their children the food, education and security they need, and encourage separated from their families, displaced or have limited access to education."

International Alert & AI., 2005, p.46:

"The armies and militias are made up mostly of young men, often with very little education or who are completely illiterate. Some were forcibly conscripted, whilst others took up arms by choice in a socioeconomic situation marked by extreme poverty and an absence of alternative employment opportunities for young men in the whole of the sub-region. For these young men without work, the rifle becomes a means of getting an income, and of gaining social promotion and power. [...]"

The young militia recruits are initiated at the outset into violence and drug-taking through a ritual designed to strengthen their character and toughen them up. In Shabunda, for example, they are ordered to kill a member of their own family, generally their father or mother. They are also forced to take drugs."

UNICEF, 24 July 2006:

"At the height of the war, estimates suggested that as many as 30,000 children were fighting or living with armed forces or militia groups. Nine groups have been listed by the United Nations as parties to conflict that recruit or use children in armed conflict.

Children are forced into armed forces and groups by extreme poverty, abandonment, homelessness and the random hazards of war. Many are left with no choice but to join the militias who offer a modicum of protection and provisions. It is estimated that 30 to 40 per cent of children associated with armed forces and groups are girls. Many are held in captivity as sexual slaves for extended periods of time. Children are used not only as soldiers, but as porters, spies and sexual slaves.[...]"

Reintegration of children in communities that were highly affected by the conflict and so have very limited prospects for children is proving to be a challenge. Faced with the choice of destitution at home or paid military service with the armed groups, the young former combatants will all too often re-enlist.”

Report of the Secretary-General on children and armed conflict in the DRC:

UNSC, 28 June 2007:

“The present report, submitted pursuant to Security Council resolution 1612 (2005), covers the major developments related to the situation of children and armed conflict in the Democratic Republic of the Congo since the previous report on the subject (S/2006/389) and provides information on compliance with and progress made in ending the recruitment and use of children and other grave violations against children in the Democratic Republic of the Congo. The report notes that, although significant progress has been made through the efforts of the Government of the Democratic Republic of the Congo, the United Nations Organization Mission in the Democratic Republic of the Congo, the United Nations and civil society partners to improve the situation of children affected by armed conflict, major gaps exist, most especially in the Ituri district and North and South Kivu provinces. [...]

“Since January 2007, a surge in the recruitment and use of Congolese and Rwandan children by commanders loyal to Laurent Nkunda has been observed in North Kivu.”

In 2007-2008, recruitment continued:

MONUC, 24 July 2008:

“‘UNICEF estimates that 3,000 children are still in armed forces and groups in the east of the country, and we see the recruitment of children every day,’ he [UNICEF Representative Julien Harneis] added.

MONUC, 4 June 2008:

“In South Kivu, several violations of the cease-fire were announced. The signatories of the Goma Act of Engagement committed to a complete and immediate end to hostilities in North and South Kivu, as well as to all acts of violence, movement, reinforcement and recruitment.

In this context, MONUC forces were informed of forced recruitment of children by the Mai-Mai. Five minors aged between 14 and 15 years were abducted between on May 31 and 1 June 2008 in the localities of Luzira and Ishovu. Clashes between various Mai-Mai groups of the Cobra Brigade took place on 30 May 2008 in Muremana, north of Minova.”

HRW 19 June 2008:

“According to written documentation from foreign observers and domestic authorities obtained by Human Rights Watch, the LRA has carried out at least 100 abductions, and perhaps many more, in the Central African Republic, Southern Sudan, and the Democratic Republic of Congo since February 2008. The information suggests boys are made to act as porters or subjected to military training while girls are used as sex slaves.[...]

‘The LRA appears to be attacking civilians in three different countries,’ said Dicker. ‘The Security Council should call for all parts of the United Nations, including all agencies in the region, to publicly disclose information they have on the abuses and to cooperate in further documenting recent crimes.’”

UNGA, 21 December 2007:

“In the Democratic Republic of the Congo, children have been recruited from internally displaced person camps in North Kivu Province by forces loyal to rebel leader Laurent Nkunda during the recent upsurge in violence.”

Office of the Special Representative of the Secretary-General for children in armed conflict, 14 December 2007:

"In the past few months, 400,000 Congolese civilians, including thousands of children, have been forced to flee their villages to escape the fighting and attempted recruitment targeting public spaces such as schools. Yet the UN Monitoring Task Force on Children and Armed Conflict established by Security Council Resolution 1612 noted that young people and children were surprisingly underrepresented in some internally displaced populations. UN monitors found out that families were subjected to intimidation to give their children to armed groups, and are therefore trying to hide them from forced recruitment. New reports also indicate that formerly demobilized children have been re-recruited."

IRIN, 17 February 2007:

"The recruitment of child soldiers has continued in the Democratic Republic of Congo (DRC), despite the government's efforts to integrate former militia into the army, a local human rights official has said.

'Armed groups have even forcibly enlisted demobilised former child soldiers,' Murhabazi Namegabe, head of a local non-governmental organisation, the Bureau pour le Volontariat au service de l'Enfance et de la Santé, said in the capital, Kinshasa.

According to a coalition of NGOs in South Kivu Province, of which Namegabe's is a member, the recruitment of child soldiers is also continuing in the northeastern district of Ituri and the eastern provinces of North and South Kivu.

This finding has been confirmed by the United Nations Mission in the Congo, known as MONUC, the UN Children's Fund (UNICEF) and some international NGOs concerned with child welfare. They have discovered that the armed groups have been trying to pass off the children into the army reintegration process by falsifying ages, MONUC military spokesman Lt-Col Didier Rancher, said."

MONUC, 14 February 2007:

"According to MONUC's Child Protection division, the recruitment of child soldiers by armed groups continues in the DRC, especially in the east of the country, despite the law forbidding it in the DRC constitution, and the decree of November 12 2004, relating to the general organization of the defence forces."

According to the UN Special Representative on Children in Armed Conflict: DPI, 16 March 2007:

"Child recruitment was decreasing everywhere, except in North Kivu, where it was on the increase, mainly due to the activities of dissident rebel, Laurent Nkunda, she said. The main issue, in that regard, was the brassage and mixage process, where child protection workers were trying to separate children from adults as they became integrated into the Democratic Republic forces. The mixage process remained a problem, however. For example, some 223 children had been identified, but had nevertheless been deployed to the front, where fighting was taking place between the mixage forces brigades and the rebel movements from the Interahamwe. A total of some 29,291 children had so far been demobilized. She hoped that number would increase, as the mixage and brassage process continued.

She noted that, while there had been some reinsertion of children into their communities with an 18-month package given by the United Nations Children's Fund (UNICEF), not all children were being successfully reintegrated. Some were recycled into regional wars, some engaged in criminal activities, yet others became street children. As a result, United Nations and non-governmental organization partners wanted to think long term about those issues. UNICEF had planned a comprehensive project. Now the attempt was to persuade donors to accept that long-term perspective."

IRIN, 8 October 2007, “recruitment”:

“The forced recruitment of children has struck fear into the hearts of many of the displaced who say they will not leave the camps and return home until their security can be assured.

‘I have heard of a lot of children being recruited, even the little girls,’ said Ame Muhima, the president of a grouping of 4,000 displaced families waiting to be integrated into formal camps for the displaced outside of Goma.

‘There were 17 children who have escaped and come back to us here,’ Muhima said.

Protection workers say children are no longer being recruited by the Congolese army but by any one of three main militia groups operating in the region; and they face the risk of recruitment in more ways than one.

Mayi-Mayi militia groups tell children it is their responsibility to fight to protect their villages from other armed groups. Spurred by a sense of duty, children often volunteer themselves for service. Those who resist are ‘volunteered’ by their parents.

The Forces Démocratiques de Liberation du Rwanda (FDLR), an ethnic Hutu militia group with links to the perpetrators of Rwanda’s 1994 genocide, employ a different tactic.

‘The FDLR are known to sweep into a village and literally scoop up all of the children of a certain age and march them off into the bush,’ Ironside told IRIN.

If caught, children captured during the recent eruptions in violence are held in squalid prisoner-of-war (PoW) camps by the various armed groups. Forces loyal to Nkunda are widely reported to be holding underage PoWs.

“Unlike boys, girls always remain behind the scenes in rebel camps, making it more difficult for protection workers to gain access to them.

‘It’s always been a grave issue,’ Ironside told IRIN. ‘The difficulty is that girls who are kidnapped by armed groups ... in some cases develop a tacit acceptance of their situation. They know that were they to go back to their home community they would be stigmatised as a result of the fact that they have been raped and borne children by an opposing group.’”

HRW, 23 October 2007:

“In a report to the UN Security Council in June 2007 the secretary-general stated that the use of children as soldiers continued to be a problem in Congo, and he noted with concern increased recruitment of children in Congo and in Rwanda for service with Nkunda’s units in early 2007.”

See also:

AFP, 31 March 2008, UNICEF says DR Congo rebels are recruiting more child soldiers [[Internet](http://www.reliefweb.int/rw/rwb.nsf/db900sid/LRON-7D9HZL?OpenDocument&rc=1&cc=cod)]
<http://www.reliefweb.int/rw/rwb.nsf/db900sid/LRON-7D9HZL?OpenDocument&rc=1&cc=cod>

UN News Service, 21 Dec 2007, Security Council calls on DR Congo rebels to disarm, end child recruitment [[Internet](http://www.un.org/apps/news/story.asp?NewsID=25150&Cr=democratic&Cr1=congo)]
<http://www.un.org/apps/news/story.asp?NewsID=25150&Cr=democratic&Cr1=congo>

[Congo displaced recruited to fight - UN refugee head](http://www.alertnet.org/thenews/newsdesk/L16629899.htm), **Reuters**, 16 December 2007
<http://www.alertnet.org/thenews/newsdesk/L16629899.htm>

For information on re-recruitment of children to fight, work as porters, sex slaves, cleaners, and cooks, see Save the Children Alliance, 27 July 2006 [link below]

Watchlist on Children and Armed Conflict, 26 April 2006, Struggling to Survive: Children in Armed Conflict in the Democratic Republic of the Congo [Link below]

Amnesty International (AI), 11 Oct 2006, DRC: Children at war, creating hope for the future [Internet]

Amnesty International (AI), 31 Mar 2006. Democratic Republic of Congo: Alarming resurgence in recruitment of children in North-Kivu [Internet]

IRIN In-Depth, Child Soldiers, DRC: Childhood aborted by regional war [Internet]

Save the Children Alliance, 2 February 2007, Child soldiers being actively recruited as frontline fodder in at least 13 countries [Internet]

Coalition to Stop the Use of Child Soldiers (CSC), 31 July 2007, DR Congo: Priorities for children associated with armed forces and groups [Internet]

UNSC, 26 October 2006, Children and Armed Conflict - Report of the UNSG [Link below]

Displaced children at risk in North Kivu (September 2007)

- Attempts to establish child-friendly spaces in the IDP camps

IRIN, 19 September 2007:

“According to Pernille Ironside, a protection officer for UNICEF in Goma, thousands of children were among civilians displaced by fighting in the past few months in North Kivu Province.

‘These children are at direct risk of all sorts of violence, but particularly sexual violence, exploitation, abuse, certainly re-recruitment and new recruitment, and other threats to their physical safety,’ she said. UNICEF, she added, was trying to establish child-friendly spaces in the IDP camps in the province to provide a protective environment for the children to minimise the risks against them.

‘Children are used in a multitude of different roles by armed groups,’ Ironside said. ‘More often, they tend to be behind the scenes in more support roles as porters, spies, guards, and cooks; and certainly girls are taken to be the forced wives or sex slaves of many of the officers in these groups.’

She said there were alarming reports of hundreds of children still being recruited by armed groups in North Kivu.

‘It is extremely alarming and essentially means we are on the brink of potentially taking a major step backwards in all of the advances made in the child DDR [Demobilisation, Disarmament and Reintegration] programme in the province,’ she added.

There were also reports of children being captured during the fighting. ‘We hope these children will be released immediately into our custody for protection. It demonstrates the existence of the

children in the various groups and we know they are being held in extremely desperate conditions, and possibly subjected to various forms of abuse during their custody.'

The latest fighting was now threatening UNICEF's past success in reuniting children with their parents."

Freedom of Movement

SUBSISTENCE NEEDS

General

Alarming hikes in malnutrition rates and epidemics among IDPs in North Kivu (2007-2008)

- Dramatic impact of global food crisis in North Kivu, particularly among IDPs and returning IDPs (2008)
- 19 percent global malnutrition in parts of North Kivu
- Aid workers fear measles and cholera epidemics may break out among displaced people who cannot be reached by humanitarian agencies due to fighting
- Cholera outbreak in IDP camps around Goma

IRIN, 6 August 2008:

"Thousands of civilians who fled clashes between the Democratic Republic of Congo (DRC) forces and militia groups in North Kivu Province are returning home but lack food, a humanitarian official said.

"The food situation is deteriorating and the number of children admitted in the special centres for malnutrition cases has doubled in the last three months," said Olga Miltcheva, spokeswoman for the International Committee of the Red Cross (ICRC) in the DRC.

Clashes in the Nyamilima area of Rutshuru, 50km north of the capital, Goma, this year have forced at least 40,000 people to flee their homes, according to aid workers. Many sought refuge in other areas within North Kivu and in neighbouring Uganda, living with other families or in internally displaced persons (IDP) camps.

Following a lull, many of the IDPs were now going home."

NRC, 13 June 2008

"The global food crisis has had a dramatic impact on DR Congo, especially in the eastern part of the country where most of the IDPs live. At the end of April [2008], WFP announced that the food rations to the IDPs in the camps were going to be cut in half. This is both due to the food crisis and because the need for food in North Kivu has doubled, as a result of more people being forced to flee."

OCHA, 2 November 2007:

"Regarding the outbreak of cholera in the IDPS sites around Goma, WHO underlined the strengthened efforts of water and sanitation actors in the area (water tanks have been added by Oxfam-GB; Solidarités and Mercy Corps will build 20 latrines). However, water flow is still slow, as water pipe of ASAF has been destroyed. WHO, UNICEF, UNHCR and International Medical Corps will extend their hygiene sensitization program by notably providing soaps throughout November [2007]."

IRIN, 8 October 2007:

"Chronic violence in eastern Democratic Republic of Congo has cut 150,000 vulnerable people off from humanitarian aid, deepening an already severe crisis, according to the UN World Food Programme (WFP).

Since fighting erupted between dissident general Laurent Nkunda and the Congolese army in December 2006, about 370,000 people have been displaced from their homes in North Kivu province, resulting in alarming hikes in malnutrition rates.

Humanitarian workers also warn of the risk of malaria, cholera and measles epidemics in rural areas that have been cut off from the delivery of medications.

"It's a bit of an anarchy situation out here," Aya Shneerson, the head of WFP in North and South Kivu provinces, told IRIN. "In some parts, we have tens of thousands of people who have fled conflict, who are living in deplorable conditions, who really need our help, and we just can't get there."

Fighting in the region has abated since clashes in September between Nkunda's National Congress for the People's Defense (NCPD) and the Forces Armées de la Republic Democratic du Congo (FARDC), the national army; but sporadic eruptions of violence have kept most humanitarian workers confined to Goma, capital of North Kivu.

Further complicating the already thorny situation, observers say, are Mayi-Mayi and Hutu militia groups, which have been recruited to help bolster Congo's weak, demoralised national army to put down Nkunda's rebellion.[...]

Humanitarian workers caution that if violence continues, civilians will bear the brunt of the fighting.

'In some areas in North Kivu, in some parts of Rutshuru, we have 19 percent global malnutrition,' Shneerson said. 'That's huge. That's something that you saw in Niger.'

Most of the recent displaced are impoverished farmers, already eking out a tenuous existence.

'They really are 100 percent dependent on what they grow, and if they are forced out of their homes, they don't have anything to eat,' Shneerson said.

Humanitarian workers also warn that if the displaced are not able to return for the upcoming planting seasons, fields in the region will lie barren and a severe food crisis could result."

IRIN, 18 October 2007:

"Aid workers in the strife-torn east of the Democratic Republic of Congo fear measles and cholera epidemics may break out among displaced people who cannot be reached by humanitarian agencies because of fighting between government forces and dissident soldiers in North Kivu province."

See also:

UNICEF, 7 May 2008, Malnutrition at emergency levels in Pinga Health Zone, North Kivu, DRC [[Internet](#)]

IRIN, 12 July 2007, DRC: Alarming malnutrition rates in North Kivu [[Internet](#)]

UN Emergency Relief Coordinator tells IDPs that it is neither normal nor acceptable that they have to live this way (September 2007)

OCHA, 7 September 2007:

"The ERC [UN Emergency Relief Coordinator] then travelled to the area around the town of Mugunga, 10 kilometres west of Goma and 15 kilometres east of Sake, where three sites are sheltering displaced persons. The town of Sake has virtually emptied of its approximately 26,000 inhabitants, and the environs of the town have also been virtually emptied of their estimated 4,000 inhabitants. While the three sites had pre-existing displaced persons, many thousands more have arrived over the past two weeks, including those who have fled fighting and those who have fled pre-emptively. In some cases, families are now moving to locations according to their ethnicities. While families are still being registered and needs assessed, preliminary indications are that needs will include food, shelter, and water and sanitation.

"It is neither normal nor acceptable that you have to live this way," Mr. Holmes said in his address to the displaced. He told them that the United Nations and its partners would try to get more resources and would carry on assisting them as much as possible. He also said that he would, upon his return to New York, address the United Nations Security Council on the situation in the Democratic Republic of the Congo. Finally, he noted the need for a political solution to the situation."

Typical housing and eating arrangements: IDPs and their hosts in North Kivu (April 2008)

UNICEF/CARE, 27 April 2008:

"Host family dwellings were in most cases inadequate to accommodate both a host and displaced family. House sizes varied but most would be approximately 5-10m x 5m, made of mud and wattle or wood in most villages. Occasionally homes of brick or stone would be seen. In urban centres, houses are predominantly of traditional materials but more homes of stone or at least a stone foundation can be seen. Roofs were often grass but also metal roofs were commonly seen. [...]

The house would often have four rooms, a store-room, two bedrooms and a main living room which also served as the kitchen. Floors were mud. Windows were small and light would be from candles or paraffin lamps. Furniture is limited to a bed for adults, and a bench made of wood, a few stools, and possibly a wooden table. Election posters or pages from newspapers or magazines are used to decorate the walls. Temporary internal walls in many homes visited were made of plastic sheeting, to provide privacy for guests, or to reduce wind and improve warmth. Sleeping would normally be in one or two of the rooms, depending on the size and number of the children. If a family is hosting, all rooms, including the store may be utilised to accommodate guests. Stores normally accommodate surplus food, cooking utensils, farming equipment, kindling etc. If possible, the adults would sleep separately, but often together with some of their children. Children might also sleep in the main room, depending on their age. If no bed was available, the displaced would construct one for the adults or sleep on a mat. Children would sleep on a mat on the floor. Displaced did not always have mats. Some were also seen to sleep on straw. Sleeping areas of others were in dilapidated rooms, or parts of dilapidated houses open to the elements.

A *kitchen* is a small charcoal cooker which can accommodate a single pot and would be placed in a corner of the main room. Cooking would be done for hosts and displaced in this *kitchen*. It requires agreement and consent between the women on what will be cooked and how. Dining

would be done around the table if there were one, otherwise the meal would be taken on the floor of the main room or outside. Generally, only breakfast and dinner are eaten, with children snacking on leftovers or food cooking throughout the day. One evening meal is prepared which will then be eaten in the morning. There is not a habit of morning, mid-day and evening meals.

Housing is much denser in urban areas. Each house will have a compound which will range in size but are maybe 3 to 4 times the area of the house. Normally, there would only be one building per compound. Latrines were regularly found outside of houses, but not in all cases. Latrines construction was of local materials and long-drops of two to three meters. When available, latrines would be used by both host and guest. For the many homes without latrines, defecation would be in the nearest private place. Men would urinate on walls or trees.

Water is stored in jerry-cans around the house. Most jerry-cans belonged to the host, but if a displaced guest had a jerry-can, they would share it with the host. Girls or women of both the host and displaced would collect water, which in most sites visited was piped, and nearby. Bathing is done in local rivers or swamps. In urban areas, a small privacy shelter might be constructed behind the house for bathing. Cloth washing is often done in local rivers.

Most people will spend the day outside of the house either working or attending to household duties. Children would play within the villages or communities.”

IDP recounts ordeal and hunger in South Kivu (July 2007)

IRIN, 31 July 2007:

“Claudine Ngomora, 25, fled her home after an attack by people she says are known as the Rasta in February 2007. She has survived on the goodwill of friends and relatives in Walungu Territory in the province of South Kivu, eastern Democratic Republic of Congo (DRC).

Claudine recounted her story at a school in the Cagala area of Walungu, where NGO, Malteser International, was distributing food to 3,000 internally displaced persons:

‘I have five children, the eldest of whom is eight years old. I live with all the children, together with my husband, with a family that has been kind enough to host us here in Walungu. I left my home in Kaniola five months ago and I cannot say I have had a full stomach since.

I am always hungry. There is not enough food for me and my children. Hunger and disease are the biggest problems we currently face. I left my banana trees and my cassava crop was just getting ready. I know it was looted by the attackers.

Nowadays, I find that life has become pointless. I feel so helpless. I wake up in the morning, sweep the house and do general household chores. I wash the children's clothes with or without soap, and then I take the hoe to till the land my husband has leased on a short-term basis.

We haven't harvested anything yet from this small piece of land. That is why we are always hungry. After coming back from the farm, I help the host family with whatever needs to be done; cooking, cleaning, clearing the compound of weeds etc, but I ask myself: For how long will this go on?”

Needs of returning IDPs and others in Katanga (2008)

- Thank to the improvement of security, many displaced returned to their homes in Pweto, Katanga Province

- Assessment showed the precarious humanitarian situation, in particular gaps in schooling, food security, health, hygiene, water and sanitation, and protection

OCHA 31 May 2008

« La consolidation du processus de paix à travers le désengagement des différents groupes armés a donné espoir aux milliers des personnes déplacées qui ont fuit la guerre de pouvoir regagner leur village d'origine.

Nonobstant la poursuite du processus de retour des déplacés internes et le rapatriement de réfugiés congolais de la Zambie et la Tanzanie par le HCR, le territoire de Pweto une zone de retour, reste actuellement oubliée pour compte. [...]

Au regard de toutes les interventions humanitaires réalisées sur l'ensemble de la zone, la situation humanitaire demeure encore précaire. Les gaps sont encore exprimés dans tous les secteurs notamment l'éducation, la sécurité alimentaire, la santé, l'Hygiène Eau et Assainissement et la protection. »

Health

5.4 million people estimated to have died as a result of DRC war, according to IRC (2008)

- Majority of deaths are due to easily preventable and treatable diseases
- In spite of positive trends, mortality rates in DR Congo have not improved significantly since 2002

IRC, 11 January 2008:

"1. Elevated mortality rates persist across DR Congo.

More than four years after the signing of a formal peace agreement, the DR Congo's national crude mortality rate (CMR) of 2.2 deaths per 1,000 per month is 57 percent higher than the average rate for sub-Saharan Africa. This rate is unchanged since the previous IRC survey in 2004. These findings indicate that DR Congo remains in the midst of a major humanitarian crisis. As with previous surveys, mortality rates are significantly higher in the volatile eastern provinces than in the west of the country. In addition, mortality rates have risen significantly in the center of DR Congo (a region referred to as *Transition East* in the attached survey). Based on the results of the five IRC studies, we now estimate that 5.4 million excess deaths have occurred between August 1998 and April 2007. An estimated 2.1 million of those deaths have occurred since the formal end of war in 2002.

2. Modest, yet statistically significant improvements in mortality were documented in the eastern provinces.

For the period covered by the survey, the only region to record a significant reduction in mortality since 2004 was that encompassing the five eastern provinces (referred to as *East 2002* in the attached report). This improvement coincided with a reduction in the risk of violent death, as well as a more robust U.N. peacekeeping effort by MONUC, the international force in DR Congo. Nonetheless, the CMR in this region is still 2.6 deaths per 1,000 per month, a rate that is 85

percent higher than the sub-Saharan average. Ironically, it is these slight but notable improvements that are now being threatened by the current escalation of violence in North Kivu province.

3. Most deaths are due to preventable and treatable conditions.

While insecurity persists in the eastern provinces, only 0.4 percent of all deaths across DR Congo were attributed directly to violence. As with previous IRC studies in DR Congo, the majority of deaths have been due to infectious diseases, malnutrition and neonatal- and pregnancy-related conditions. Increased rates of disease are likely related to the social and economic disturbances caused by conflict, including disruption of health services, poor food security, deterioration of infrastructure and population displacement. Children, who are particularly susceptible to these easily preventable and treatable conditions, accounted for 47 percent of deaths, even though they constituted only 19 percent of the total population."

For information on IRC's previous mortality survey in the DRC, see:

[IRC, 6 January 2006, The Lancet publishes IRC Mortality Study from DR Congo; 3.9 million have died: 38,000 die per month](#)

[IRC, 8 December 2004, Mortality in the Democratic Republic of Congo: Results from a nationwide survey Apr - Jul 2004](#)

Outbreak of cholera among IDPs and resident populations in North Kivu (May 2008)

IRIN, 20 May 2008:

"An outbreak of cholera in North Kivu province, in eastern Democratic Republic of Congo (DRC), has claimed more sufferers in the past two weeks, medical and humanitarian officials said.

The most severely affected areas were the health zones of Pinga and Mweso, which lie in the North Kivu districts of Masisi and Walikale.

"The cholera epidemic has fluctuated in [northern Masisi] but over the past couple of weeks we have seen a dramatic rise in [the number of] cases," said Gaby Lumangamenga of the UN World Health Organization (WHO) in the North Kivu capital, Goma on 19 May [2008]. [...]

OCHA estimates that Mweso zone has up to 70,000 internally displaced persons (IDPs) in Kitchanga, Kachuga, Kalembe and Mweso villages, which have a combined population of 213,000."

For Katanga, see:

IRIN, 4 Feb 2008, DRC: Cholera kills 59, more than 2,000 infected in Katanga [[Internet](#)]

Conflict causes degradation of the health care system (2007)

- Deterioration of health system has resulted in spread of cholera, HIV/AIDS and malaria
- Very high child mortality

- Only 22 per cent of the population has access to potable water
- Health care systems paralysed in many provinces as qualified staff have fled war-affected regions
- At least 37 per cent of the population don't have access to any formal health care
- Situation in eastern DRC is worse due to war damage
-
- In Goma, North Kivu, cholera is considered as endemic, and levels of cholera have increased with the recent arrival of 50,000 IDPs, given the lack of potable water in town (May 2008)

OCHA, 23 May 2008 :

“Le contrôle des épidémies demeure l'une des priorités majeures de l'action humanitaire en République démocratique du Congo (RDC). Le système de santé en RDC étant extrêmement affaibli par une décennie de négligence et de mauvaise gouvernance depuis les années 80, suivie par des années de crises et de conflits armés, les maladies à potentiel épidémique ont pris une ampleur dramatique dans l'ensemble du pays.

Malgré une stabilisation relative de l'ensemble du pays la situation ne cesse d'être alarmante et peu d'épidémies épargnent la RDC. Ainsi, rien que pour l'année 2007, onze des principales épidémies ont été répertoriées en RDC : méningite, rougeole, choléra, diarrhées sanglantes, fièvres hémorragiques virales (Ebola), fièvre jaune, typhus, tétanos néonatal, paralysie flasque aigue, peste et monkey-pox. Selon le Ministère de la Santé, presque la moitié des zones de santé étaient confrontées à une ou plusieurs épidémies, et des milliers de personnes sont mortes de maladies pourtant curables. [...]

Depuis plusieurs années la ville de Goma, où le cholera est considéré comme endémique, connaît de manière fluctuante des taux de choléra alarmants. Cette situation s'est détériorée ces derniers mois avec l'arrivée d'environ 50 000 déplacés. Une des principales causes du choléra dans la ville provient du manque d'eau potable. Aujourd'hui seuls 13% (principalement concentrés dans la partie est de la ville) de quelque 500 000 habitants de Goma bénéficient de l'eau potable.»

WHO, January 2007 :

“LES PROVINCES de l'Est de la République Démocratique du Congo sont confrontées aux situations d'urgence générées par des conflits depuis maintenant près de dix ans. Cette situation a occasionné des déplacements massifs des populations et plusieurs zones de santé ont vu leurs activités perturbées: infrastructures détruites, personnels déplacés, accès difficile suite à la destruction des voies de communication et à l'insécurité créée par les groupes armés. Les enfants et les femmes qui font généralement partie des personnes vulnérables, sont les plus touchés. »

UNHCR, 13 February 2007:

“[...] due to lack of primary health services, the child mortality rate is very high with 126 deaths per 1,000 children; only 22 per cent of the population has access to potable water;”

OCHA, 31 December 2005:

“A la faveur des nombreux mouvements des populations, les maladies infectieuses ont continué à toucher les populations, causant plusieurs cas de décès. Le choléra a sévi en Ituri (à Rwampara et Songolo), au Sud-Kivu (Fizi), au Nord-Kivu (Goma, Béni, Rutshuru et sur l'axe

Oicha-Eringeti), dans le district du Tanganyika (Kabalo, Moba, Kitenga et Kasenga), au Maniema (Lubutu et Mwengue). Des cas de rougeole, de méningite et de dysenterie ont été enregistrés dans le Nord-Kivu, le Maniema, le Katanga et la Province Orientale.”

OCHA, 31 August 2006, “crisis watch”:

“One baby under 12 months in three is not vaccinated against measles, UNICEF reports, despite measles epidemics threatened or underway in Katanga, Equateur, Maniema, Kasai Occidental and in IDP concentration areas.[...]

Otherwise, malaria remains the number one cause of mortality and morbidity in DRC.”

OCHA, 14 August 2006:

“In North Kivu, malaria kills four people every day, notably among the 106.000 newly displaced people who live in churches and accommodating families.”

OCHA, 31 August 2006, « situation humanitaire »:

“Les conditions de vie précaires des déplacés et le manque d'accès à l'eau potable ont favorisé la persistance de l'épidémie du choléra et de la rougeole en Ituri, au Katanga et dans les deux Kivus. »

MONUC, 17 January 2006:

“Au Sud Kivu – environ 4.450.000 habitants -, 30% de la population est toujours privée d'accès aux soins, faute d'infrastructures de santé ou parce que ces dernières sont incapables de fournir le «paquet de services» minimum défini par l'Organisation Mondiale de la Santé (OMS).”

OCHA 2 January 2004, p.4:

“Dans les 18 zones de santé du Maniema, environ 80% des structures sont à réhabiliter, environ 90% ont besoin de médicaments essentiels et équipement.”

IFRC, 5 September 2006:

“On 6 January 2006, the local authorities of Uvira officially declared a cholera outbreak in Uvira, Democratic Republic of Congo (DRC). Uvira, together with Fizi, were the territories of South Kivu Province most affected by the epidemic. [...] Generally, cholera affected the eastern provinces of DRC as the situation in some territories was characterized by insecurity linked to attacks by armed groups, resulting in internal displacements.”

See also:

MSF, 22 Jun 2006. No end in sight as pneumonic plague outbreak increases in Ituri, DRC [[Internet](#)]

MSF, October 2005, Access to healthcare, mortality and violence in the DRC [[Internet](#)]

Lack of data on HIV/AIDS prevalence among IDPs (2006)

- Ministry of Health estimates 5% HIV prevalence in the country, but surveys of blood donors in the Eastern region show an HIV prevalence of approximately 20%

- Some findings suggest that IDPs may be more at risk to HIV than the general population in DRC.
- However, more information and data are needed before generalizations about IDPs can be made

Spiegel, 2004:

"In contrast to Sierra Leone, southern Sudan and Angola, increases in HIV infection among the general population in eastern DRC (HIV prevalence is estimated to be between 15 and 24 per cent), primarily attributed to extensive sexual violence by paramilitary groups as well as foreign militaries (from, for example, Rwanda, Uganda and Zimbabwe) and a breakdown of health services, have been reported (Save the Children, 2001; Wax, 2003). However, many of the reports are anecdotal and further studies are needed to confirm these results and assess trends."

UNHCR/Internal Displacement Division, DATE, pp26-27 :

"Eastern DRC, where the majority of IDPs live, is a chronic health emergency. The minimum standards for reproductive health are not being met. The Ministry of Health estimates approximately 5% HIV prevalence in the country. However, surveys of blood donors in the Eastern region show an HIV prevalence of approximately 20%, which suggests that HIV prevalence is higher in the rebel-controlled area of the country; much more data are needed to substantiate this claim as blood donor data are subject to significant biases. JSI [John Snow International] reported that most facilities visited were using syndromic diagnosis and treatment of sexually transmitted infections. Few health facilities had condoms and none conducted Information, Education and Communication activities on AIDS. The National AIDS Control Programme, 80% of health facilities that transfuse blood do not test donated blood for HIV, but NGOs health facilities do test for HIV. According to JSI, condoms are only available in the two family planning facilities. In Goma, all facilities use syndromic diagnosis of sexually transmitted infections, and condoms are not generally available in health facilities but are occasionally found in pharmacies. GBV is a huge problem in the country, especially as the stigma of rape and domestic violence persists, preventing many women from seeking medical help and counselling. In such circumstances, the risk of contracting HIV may increase, though there are no data to corroborate this claim.

The DRC Ministry of Health has also conducted a two-part survey of the HIV situation in the country. In July 2003, sentinel surveillance was done in 7 urban and 2 rural sites in the West of the country; from January to May 2004 sentinel surveillance in 5 urban and 3 rural sites in the Eastern regions (Bukavu, Bunia, Goma, Karawa, Kindu, Kisangani, Lodja and Neisu), where the majority of IDPs live, was undertaken. Results of the second study in the Eastern part of the country will soon be published, but there are no data to disaggregate between the general population and IDPs.

HIV serosurveys were also conducted in 2002 by a team of doctors in 4 major cities: Kinshasa, Mbuji-Mayi, Lumbumbashi (government-controlled areas) and Kisangani (under the control of rebel factions). Pregnant women, blood donors, sexually transmitted infection disease patients, commercial sex workers, as well as IDPs, were voluntarily tested. The IDP sample came solely from Kisangani (N=112), and had the highest HIV prevalence of all groups (7.1%). This finding suggests that IDPs may be more at risk to HIV than the general population in DRC. However, more information and data are needed before generalizations about IDPs can be made. There are no other HIV-specific seroprevalence data for the other IDP populations in DRC. "

Civil war inflicts unbearable hardship on women and children (2000-2007)

- Violence perpetrated against women a feature of the war
- Child mortality in the DRC is one of the most alarming of Africa, with 127/1000 children dying before their first birthday (2007)
- Significant number of women and girls are infected with STD through rape, the most deadly being HIV/AIDS and do not seek medical treatment
- UNICEF/DRC government study shows high level of malnutrition, insufficient vaccination of children, very limited access to prenatal care; rising infant and childhood mortality and significant decrease of number of children attending school (Oct 02)
- According to UNICEF, 1.9 million children suffer from acute malnutrition throughout DRC (May 2004)
- DRC holds the sad world record for mother-child mortality (2005)

WHO, January 2007:

« La mortalité infantile en RD Congo est l'une des plus alarmantes en Afrique. Sur 1000 enfants qui naissent, 127 meurent avant leur premier anniversaire (soit 304.800 sur 2.400.000 enfants de moins d'un an). Par ailleurs, la mortalité infanto-juvénile s'élève à 213%. Ce qui signifie que 5 enfants de moins de 5 ans meurent chaque minute dans ce vaste pays d'Afrique centrale de près de 60 millions d'habitants. »

HRW, June 2002, p.69:

"A significant number of women and girls are infected with sexually transmitted diseases through rape and for any or all of the above reasons [such as stigma of rape] do not seek treatment unless it is absolutely necessary. The large majority of rape victims interviewed had never received any medical treatment after the rape, and often did not even tell doctors about the rape when they gave birth. Social workers and medical staff confirmed that only a small minority of victims ever get any treatment. Thus, many relatively easily treatable sexually transmitted diseases remain untreated, some causing considerable pain and inconvenience to the woman, and some causing irreversible consequences. The most deadly disease that can be contracted through rape is HIV/AIDS. Not only are the lives of HIV-positive women and girls shortened and their livelihood possibilities seriously impaired, but being HIV-positive or even being suspected of being positive adds to the stigma of rape to make for a double stigmatization of these women and girls. One woman who had been raped said that her husband rejected her, saying he was afraid that she had contracted HIV and would "contaminate" him. The scarcity and high cost of HIV testing makes it more difficult for women who are not infected to demonstrate this to their husbands and families."

UNICEF, 7 May 2004:

"According to various nutritional surveys, it is estimated that over 1.9 million children suffer from acute malnutrition throughout the territory. A major effort is underway not only to establish identification and referral systems and nutritional surveillance but also to set up traditional and 'non-traditional' nutritional centres to receive and meet the immediate needs of children in these newly accessible areas."

Save the Children Alliance, 27 April 2005:

"In the first four months of this year [2005] 59,000 children have died as a direct and indirect result of the conflict in the Democratic Republic of Congo.[...]"

The vast majority are dying from easily preventable and curable causes such as diarrhoea, malnutrition and malaria."

MSF, October 2005:

"DRC holds the sad world record for mother-child mortality with 1,289 deaths per 100,000 live births, which represents a loss each year of 585,000 children. The mortality rates for under-fives are around 213 deaths per 1,000 live births. This means that one in five newborn Congolese children will never reach the age of five years. Among the under-fives, 30% of deaths are caused by malaria, which claims the lives of 300,000 children each year."

For more information, see the study:

UNICEF/Ministry of Planning and Reconstruction of the DR Congo July 2002, Enquête nationale sur la situation des enfants et des femmes MICS2/2001, Rapport d'analyse, Kinshasa, [reference below]

Nutrition and food

Shelter

Camps set up in North Kivu during intense conflict (2007-2008)

- More than 20 makeshift camps have emerged in North Kivu since December 2006
- Camps include congested makeshift settlements with very difficult living conditions and camps set up by UNHCR which has the essential basic facilities
-
- In May 2008, Refugees International reported that spontaneous sites were especially unsafe and badly structured, and were usually located in insecure areas where displaced women and children were extremely vulnerable to abuses, including rape and forced recruitment.

UN News Service, 31 August 2007:

"More than 20 makeshift camps for internally displaced persons (IDPs) have emerged in North Kivu since last December [2006] as the capacity of local host families to absorb the new arrivals has been overwhelmed."

DPA, 8 October 2007:

"Bosco Machumpenze is under a great deal of pressure these days.

As head of Mugunga Two, a squalid camp for displaced people in the Democratic Republic of Congo's conflict-stricken North Kivu province, Machumpenze is responsible for 20,000 people - and they're beginning to get restless.

"Four people have died so far from hunger," Machumpenze told Deutsche Presse-Agentur dpa. "We've got a lot of problems but no assistance."

Misery is evident everywhere in Mugunga, a collection of three camps, now home to 80,000 internally displaced people.

Residents live in a field of rubble, packed into hastily constructed straw huts that leak during the afternoon downpours. They have little drinking water and subsist primarily on boiled cassava leaves.

And while residents say they haven't received food aid in weeks, aid groups insist they are the lucky ones due to their close proximity to North Kivu's capital city Goma.

Sporadic eruptions of violence between forces loyal to dissident general Laurent Nkunda and the Congolese Army have caused a looming humanitarian crisis in a region which only four years ago emerged from a devastating war."

UNHCR, 19 October 2007:

"In the North Kivu in the eastern Democratic Republic of Congo yesterday, Thursday, we started the process of transferring people who have been internally displaced by violent clashes in the region from congested makeshift settlements with very difficult living conditions to a new camp set up by UNHCR which has the essential basic facilities.

A first group of 500 people moved from Ndosho – a makeshift settlement of some 1,000 people with no drinking water or basic sanitation – to the new camp at Buhimba six kilometres west of Goma, the main town in the area. The 28-hectare site is expected to decongest several makeshift sites including Ndosho and Lac Vert in the Mugunga area and ensure basic facilities. We expect to complete the transfers from Ndosho, where many people had been living for a month, to Buhimba by today (Friday) and then start transferring more than 7,000 IDPs from Lac Vert to the new camp.

Buhimba is the second camp developed by UNHCR for IDPs in the Mugunga area and it can accommodate more than 10,000 people. Bulengo, the first camp, reached its capacity of 10,000 IDPs at the end of September.

Displaced people are continuing to arrive at sites around Goma. In the last 10 days more than 500 families have reportedly arrived in the Mugunga area."

RI, 21 May 2008, "Key facts"

"Displaced people living in planned camps or spontaneous sites are often more vulnerable than those living with host families. Spontaneous sites are especially unsafe and badly structured, and are usually located in insecure areas where displaced women and children are extremely vulnerable to abuses, including rape and forced recruitment. Refugees International visited one spontaneous site that was being constructed along the main road to Kalengera in Rutshuru territory. Displaced people were building small huts on the site that had no protection from the rain while local Congolese military men roamed close by. The displaced people had fled fighting only a few months ago and originally took refuge in public buildings in Kalengera. Local authorities then offered the land where the site is being built in order to assist the displaced."

ACCESS TO EDUCATION

General

Displacement means the disruption of school, for many indefinitely (May 2008)

RI, 21 May 2008, “education”:

“Recurrent fighting between various armed groups since December 2006 has interrupted and damaged the education system in many parts of North Kivu. The conflict has had an impact not only on services but also on infrastructure. Heavy fighting has destroyed or heavily damaged school buildings and thousands of children and teachers have been forced to flee with their families, placing thousands of children in the area at risk.

- In North Kivu, only thirty-four percent of children currently have access to basic education while the national level is fifty-two percent. Despite the fact that education is supposed to be free for all children in the Democratic Republic of Congo (DRC), many children are asked to pay \$1 per month as a school fee. This fee goes to pay the salaries of teachers who are not paid by the state. The need to pay school fees in order to attend school is one of the major obstacles to access to education for displaced children since displaced parents often do not have the necessary funds.

- Even though overall school attendance in the DRC is low, many of the displaced parents that Refugees International spoke with said that their children had been attending school before they fled and that the displacement meant that their education had been interrupted indefinitely. When children are unable to attend school during their displacement, they are much more vulnerable to abuses, including forced recruitment and exploitation. Displaced children and young adolescents who are left idle embark in activities that put themselves at risk, such as drinking or stealing, and many have become street children as a result.”

Some displaced children in camps close to Goma, North Kivu, are able to go to school (March 2008)

UNICEF, 11 March 2008:

“Moka, 13, was hiding at home with his family when the mortar landed. ‘It killed my grandfather and my younger brother,’ he says. ‘We saw them dead, blown up, burnt.’

Last September, as fighting between rebels and government troops engulfed their village, Moka and his family fled, joining the nearly half-million Congolese from North Kivu province who have been displaced from their homes in the last year. But even in flight, the violence followed Moka’s family. [...]

Today, Moka lives in one of the many camps for displaced Congolese just outside Goma, the capital of North Kivu. His family left everything behind in their rush to escape. Moka’s only shirt – purple and short-sleeved – is covered in black dirt; his olive shorts are torn at the pockets.[...]

But recently, Moka's life has taken a turn for the better. Each morning, Moka joins some 650 other displaced children at the Nyabyunyu Primary School in a nearby village. 'School is what helps me forget,' he says.

Due to the influx of displaced students, the Nyabyunyu school to run two sessions per day. Its teachers have had to learn how to deal with hundreds of children who have lived through violent conflict and are often deeply affected by that experience."

See also:

Education is key for displaced youth, **Norwegian Refugee Council (NRC)**, 18 February 2008 [[Internet](#)]

Children targeted for forced recruitment in schools of North Kivu (Dec 07)

MONUC, 19 December 2007:

"MONUC also noted the continuation of the presence of hundreds of children on the frontline in North-Kivu.

"Hundreds of boys and girls continue to be sent to the frontline by the armed groups. Since the resumption of the engagements in August 2007, the monitoring and communication mechanism set up by Resolution 1612 (2005) of the UN Security Council reported child recruitment activities in North-Kivu," explained MONUC spokesman Kemal Saiki.

"According to several testimonies, once forcibly recruited, the children receive a military training and are sent to the frontline, in the middle of the clashes, whereas others are used for various logistical tasks or as sex slaves," added Mr. Saiki.

These children are particularly vulnerable to forced recruitment in schools by certain North Kivu armed groups. This means that schools are high risk places for recruitment, and may lead to the closure of schools."

Conflict has had terrible impact on already failing education system (2001-2007)

- Current net enrolment rate in the first grade of primary schools in the DRC is only 17 per cent (2007)
- UN says that absolute majority of IDP children have been deprived of formal and informal schooling since 1998
- Save the Children estimated in September 2006 that about 5.3 million primary aged children (6-11 years) and six million 12-17 year old adolescents are out-of-school in the DRC
- Situation is the worse in eastern part of DRC where IFRC estimates that 70% of children do not go to school at all
- 47% of children in North Kivu and 42% in South Kivu have never attended school, according to UNICEF 2002 study
- A higher percentage of girls have never attended school
- Parents lack the financial means to pay school fees and schools refuse students which have not paid the fees

- Education put on hold in North Kivu due to conflict (September 2007)

OCHA, 17 July 2007:

"Net primary school enrolment for children between 6 and 11 years of age is of 51%; First grade enrolment rate is estimated at 17%."

UNHCR, 13 February 2007:

"[...] the current net enrolment rate in the first grade of primary schools in the DRC is only 17 per cent."

OCHA, 26 November 2001, pp.47-48:

"The absolute majority of IDP children have been deprived of proper or any schooling since 1998. In urban areas, there is a marked increase in the number of dropouts with primary school attendance declining, as many families are unable to afford exorbitant education fees. "

OCHA, 31 August 2006:

"In addition, children make up the majority of the 1.44 million IDPs in DRC, and often cannot attend school in the areas where they seek shelter. Some school buildings, especially in South Kivu, are occupied by the military, adding to the challenges for the new school year."

OMCT, 15 August 2006:

"Effectively, primary education which must be free, according to international texts, continues to cost money."

UN, 16 January 2003, p.44:

"The education system has suffered from the devastating effects of the war as well as from bad governance over the past decades. The national budget spent on education has dropped to 0.3%. It is estimated that only 30% of children attend and finish primary school and just 12% actually finish secondary education. Some children are unable to attend school either for economic reasons or the lack of any educational services and infrastructures in their region, or they have been obliged to quit school due to the war (displacement, insecurity problems, etc). This puts the future of the country in a precarious situation."

Save the Children Alliance, 14 September 2006:

"Save the Children estimates that about 5.3 million primary aged children (6-11 years) and six million 12-17 year old adolescents are out-of-school in the DRC. This is one of the highest numbers of out-of-school children in the world."

Oxfam, 6 August 2001, pp.29-30:

"The conflict in the DRC has had a terrible impact on an education system that was already failing. In 1998, the Ministry of Education reported that 40 per cent of children of primary school age were not attending school. The situation for girls was even worse. Nationally, half of all girls were not in school; in North Kivu, the figure was 69 per cent. The investment that was made in the Congolese education system in the 1970s and 1980s has been squandered. School enrolment rates plummeted from 94 per cent in 1978 to an estimated 60 per cent in 2001. Adult literacy rates fell from 74 per cent in 1992 to 58.9 per cent in 1998.[...]

In eastern DRC, insecurity, poverty and the frequent closure or destruction of schools will have reduced attendance to a fraction of the 1998 figures. Many parents can no longer afford to send their children to school."

UNICEF/Ministry of Planning and Reconstruction of the DR Congo, July 2002, pp.75-79:

« La proportion d'enfants n'ayant jamais fréquenté l'école primaire est élevée en RDC (31%). Elle est plus importante en milieu rural où elle atteint 39%, contre 14% en milieu urbain. Entre les provinces, les disparités sont importantes, notamment entre Kinshasa où 9% d'enfants n'ont jamais fréquenté l'école, et certaines autres provinces dont le Sud-Kivu (42%), l'Equateur (44%) et surtout le Nord-Kivu (47%).

Les filles sont plus nombreuses (35%) que les garçons (28%) à n'avoir jamais fréquenté l'école. Cette disparité entre les sexes existe également en milieu rural (44% de filles contre 34% de garçons) et dans la plupart des provinces. [...]

Deux faits complémentaires peuvent expliquer cette situation : le manque réel de moyens financiers permettant aux parents de payer les frais de scolarité, et la pratique actuelle qui consiste à ne pas admettre les enfants non en règle de paiement de minerval avec l'école. Dans certains cas, les élèves sont expulsés pour un ou quelques jours seulement de retard de paiement. Cette pratique résulte, selon les chefs d'établissements, de la nécessité d'avoir les moyens nécessaires pour faire fonctionner l'école, y compris le paiement de la « prime » due aux enseignants. Ceci pose le problème de la responsabilité de l'Etat congolais vis-à-vis du financement de la scolarisation des enfants. Sa démission et le fait de faire endosser cette charge aux parents conduisent à la non-fréquentation, momentanée ou prolongée, d'une bonne moitié des enfants congolais.

Plusieurs autres causes sont citées pour expliquer la non-fréquentation scolaire. Il y a d'abord un ensemble de causes dites « autres », que les mères n'ont pas voulu ou pu déclarer au moment de l'enquête. Il peut s'agir des causes pour lesquelles elles se sentent coupables, car il semble invraisemblable qu'un parent ne sache pas pourquoi son enfant ne fréquente pas. Il faudrait approfondir les analyses sur cette question. L'éloignement des écoles par rapport aux domiciles des enfants est une autre cause de non-fréquentation de 9% d'enfants : 11% en milieu rural et 2% en milieu urbain.[...]

Dans certains milieux ruraux, les enfants doivent franchir des kilomètres pour effectuer les va-et-vient entre leurs villages et leurs écoles. La situation serait particulièrement dramatique dans la province

Orientale, au Kasaï Oriental et au Bandundu. Il se pose là un problème de la carte scolaire, c'est-à-dire de la distribution de l'offre éducative en fonction de la demande sociale de chaque milieu.

Les maladies prolongées constituent également une cause de non-fréquentation scolaire ; elles gênent indistinctement les enfants en milieu urbain et en milieu rural.

Les changements de résidence provoquent aussi la non-fréquentation scolaire, principalement dans les milieux urbains, sans doute parce qu'ils exigent de faire réinscrire les enfants dans les écoles des nouveaux lieux de résidence. Or l'inscription d'un enfant dans une école, notamment en ville, au cours d'une année scolaire n'est pas aisée."

See also

United Nations Office for the Coordination of Humanitarian Affairs - Integrated Regional Information Networks (IRIN), 12 Jul 2006, DRC: No money, no school [[Internet](#)]

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-Reliance

UNICEF/CARE study shows how IDPs have been able to integrate into local economy (2008)

UNICEF/CARE, 27 April 2008:

“Considering the level of displacement, the strength of this rural economy has allowed communities to host very large numbers of displaced people. Despite the fact that many areas have been effectively taken out of the production cycle due to displacement and insecurity, enough food has been produced to enable subsistence for the displaced and their host families. The assessment team daily noted the movement of 6 to 12 trucks, heavily laden with local produce moving to Goma. Ironically, and in contrast daily, 0 to 2 equally heavily laden WFP trucks bringing food aid were moving from Goma to the rural areas. The often raised issues of lack of food by the displaced or hosts, is likely attributable to access issues rather than availability issues. The displaced themselves have also been able to integrate into these local economies relatively seamlessly. The primary source of income for displaced persons is day labour on the farms of others. The wage day farm labour is almost USD 1 per day. There are reports that this is an exploitatively low wage level, but it nevertheless provides a critical source of income to displaced and likely improving productivity of farmland.”

Positive and negative coping strategies adopted by IDPs and their hosts (2008)

UNICEF/CARE, 27 April 2008

“Good coping strategies were classified as ones which made positive contributions to either the hosting relationship or the community. [...] Vumulia or perseverance was the overwhelmingly predominant coping strategy referred to by respondents. [...] It was credited with encouraging hosts and displaced to coexist for a long period, with no immediate hope of resolution and with limited resources.

The farm was the main source of food for a hosting family and the displaced staying with them. With the assistance of hosted IDP labour either more land was cultivated or existing land was cultivated more intensively, and managed to give better yield. [...] Casual labour was a major coping mechanism at all sites in both urban and rural areas. [...] To address problems of space, there were examples of shelters being built on the same property as the hosts. Shelters were made of poles and covered with banana leaves, the same as the bache-covered shelters seen in camps. They are cold at night and leak.[...] Families of six to eight children were commonly reported to place some of their children with different relatives and friends. While this strategy was not uncommon, it is not a dominant coping strategy.

A small number of the interviewed displaced and hosts relied on petty trade or small business for additional income. [...] According to group interviews, brewing and selling local beer or alcohol is also an important income generating activity for both host community and IDP women.[...]

Negative coping was defined as activities with detrimental consequences for the individual, the hosting relationship or community. [...] Negative coping is often characterized by anti-social acts

which in some locations are always present, but were felt to become more prevalent during displacement. [...]

Theft of crops from fields was the single greatest complaint of hosts about displaced. [...] Another negative short-term coping strategy is excessive alcohol consumption. Male youth and men reported were reported to drink locally brewed alcohol to fill spare time and ease their frustration. Alcohol was reported to be cheaper than food, and drunkenness useful to forget about hunger and frustrations. [...] Rape and sexual abuse was reported in all locations. Displaced and resident women were both at risk. Rapes occurred while women were away from homes gathering firewood or food from fields. Among those surveyed, rape was not reported as having occurred within the households of host families and hosted IDPs. Rape was reported to be opportunistic except during a military attack where rape could also be a tactic of terror. Displaced girls reported rapes during the insecurity which displaced them or during flight. The perpetrators were most commonly but not exclusively claimed to be soldiers of the various armed groups. Rapes of resident women near the Mugunga camps of were reported to have been committed by either camp residents (displaced) or soldiers protecting the area (FARDC not MONUC). Interviewees also reported that youth and men committed rape after having taken drugs. Reports from agencies indicated that non-combatants or local men (displaced and host) were increasingly implicated in reported rapes.[...]

Less prevalent but commonly reported was the phenomenon of adolescent youth joining armed military groups. Idleness, hunger, lack of decent clothing, inability to maintain personal hygiene and lack of hope for their future were reported as factors prompting youth to join armed groups.[...] A regularly reported negative coping strategy among young woman was prostitution. Young women started prostituting themselves due to the same difficulties experienced by male youth or after becoming pregnant—sometimes from rape--and subsequently being ostracised from their families. Young women who left school as a result of displacement were idle, without direction, and were reported more likely to begin prostituting themselves as a means of survival. Out of the many different gendered age groups interviewed, the plight of young women impressed the interview team as the most desperate. Reports of witchcraft were rare, and when reported, interviewees said that it was used by individuals to gain advantage over others. Some key informants considered witchcraft to be rife. Witchcraft was also reported by health practitioners to be the first recourse to manage illness.”

Aid as a factor in coping strategies of both hosts and IDPs (2007-2008)

UNICEF/CARE, 27 April 2008:

“Access to aid has been incorporated into coping strategies of both hosts and displaced. Aid is exploited in ways which are considered normal from local perspectives. The profile of aid helps to explain its influence as a pull factor of newly displaced to camps. The strength of that influence also illustrates how investments in aid might have an affect on hosting relationships disproportionate to the actual impact of the assistance. Deciding what aid will be given to whom and how it will be delivered must be balanced against an analysis of its influence, particularly where aid is only channelled to camps or only displaced.

For hosted IDPs interviewed, aid was not a crucial component of coping mechanisms. The vast majority of displaced in host relationships reported never having received aid. Spontaneous camp residents reported receiving aid sporadically and in small amounts. Only formal camp residents reported receiving a regular supply of aid, which was supplemented through small income generating activities. As mentioned previously, ‘aid’ from the perspectives of interviewees is considered to be commodities or food directly received by displaced that facilitates their

immediate survival. According to UN OCHA statistics only 10% of displaced persons in North Kivu receive regular direct food assistance.

It is important to balance this view with the fact that community or collective services supported through humanitarian aid such as health, counselling, education/training services were evident in many if not all communities visited during this study. Such programs are valued by interviewees, but often the benefit of such collective programs accrues more significantly across community than to an individual household. As such, the marginal utility of an investment in a public good would be less than the direct provision of food, money or relief items to an interviewee. This may explain why programs focused on provision of collective services or public goods are not acknowledged more by communities where they exist as part of a strategy to help the community as a whole to address the presence of IDPs.

Humanitarian aid also plays a part in coping through diversion and leakage. Diversion of aid was reported by interviewees, by agency staff and local leaders. Consistently, interviewees commented that they saw aid arrive into their communities, but that aid was not received by either their acquaintances or themselves. Whether or not this is true, it reflects the perception of those interviewed. Beneficiary lists were also reported to contain many illegitimate beneficiaries. These errors resulted from difficulties in identifying beneficiaries and from biased lists drawn up by local leaders. [...]

Reports particularly from camps around Goma, described resident families who would register in camps in order to access aid. In Goma and Kiwanja it was also reported that hosted IDPs would register in camps to access aid. Key informants from aid agencies observed leakage of aid back into local communities after distributions into camps. There were also reports of theft of aid by soldiers in Rugari and Rubare. Interviewees reported such theft while returning to their homes after receiving commodities. In Mweso, Pareco attacked and raided a settlement after the distribution of humanitarian aid. The many forms of diversion and leakage limit the capacity of aid to have its desired impact. [...]

There is also an inverse relationship between the actual impact on subsistence and the perceptions of the value of humanitarian aid (commodities and food). As discussed above, humanitarian aid for most displaced is nonexistent, sporadic or insufficient. As well, commodities are not necessarily relevant to the long term displaced. At best, the impact of occasional deliveries of small quantities of food or commodities would be temporary respite. In spite of this limited impact, interviews reflect an unrealistic expectation in the minds of displaced and hosts alike that there is the potential for the humanitarian community to relieve their burden and daily struggle.”

IRIN, 26 November 2007:

“Humanitarian workers have also highlighted growing resentment between the estimated 40,000 IDPs who have fled their villages for camps on the outskirts of Goma, and are receiving food aid, and those living inside Goma who have been affected by rising food prices but are receiving no aid.”

Exhausted coping mechanisms in North Kivu (Dec 07)

MSF, 19 December 2007:

“Many displaced people have had to flee several times in the last few years and are now completely exhausted. The difficulty in accessing care, malnutrition, epidemics and violence against civilians all mean that people here are very vulnerable.”[...]

Displaced people cannot farm their land or access their food stocks, meaning that displaced people lose their only means of subsistence. Lack of food inevitably results in malnutrition.”

Agencies conduct household economy studies, livelihood analysis in eastern and northeastern DRC (2003-2007)

- In Masisi, North Kivu, the displacement of many of the large livestock owners made it possible for some people to extend their area of cultivation in 1999 into abandoned pastures
- In Goma, the fall in household incomes following the volcano eruption in 2002 hit IDPs and non-displaced equally
- Around Bunia, Ituri, surveys found that local administrators have expropriated land from the largely Lendu population in the south to sell to wealthier Hema cattle owners from the North
- Catholic Relief Services analysed the usefulness of non-food items distribution in Maniema Province

JHA, 31 May 2007:

“CRS Congo, in partnership with local partner Caritas Kindu, implemented a post-emergency livelihood project in Maniema Province, Eastern Democratic Republic of Congo, from January 2004 until April 2006. The project addressed seed, infrastructure, and non-food item needs through Seed Voucher & Fairs, cash for work to support road rehabilitation, and non-food item (NFI) distributions of pre-packaged UNICEF household kits.[...]

In order to evaluate the appropriateness of its NFI activities and illuminate the advantages and potential pitfalls of using cash and voucher interventions to meet the non-food needs of Congolese households recovering from the effects of war and displacement, CRS Congo used private funds to carry out a pilot ‘cash for household non-food needs’ program in Maniema Province, DRC in April 2006. [...]

[A]ll forty participants stated that they overwhelmingly preferred method of receiving cash and making purchases in the Kindu market rather than receiving the NFI kit, because it allowed them the flexibility to respond to their priorities, though this finding is unsurprising as the participants themselves opted to receive cash instead of the kit.”

See also:

Humanitarian Policy Group (HPG), July 2004, Missing the point: An analysis of food security interventions in the Great Lakes, by S. Levine and C. Chastre, Number 47, ODI [Link below]

SCF, 31 December 2003, “Bunia Free of Weapons”, the Impact of the Ituri Conflict on the Household Economy of the Population of Bunia Town, by Y. Guluma [Link below]

FAO, 31 August 2003, Information sur la sécurité alimentaire en RDC [Link below]

Deteriorating socio-economic situation due to the war (2001-2007)

- According to the World Bank, the DRC is probably now the poorest country in Africa (2007)
- Little health and education and road infrastructures existing before the two wars of 1996 and 1998 are in a state of collapse
- June 2001 WHO/UNICEF study reported that majority of Congolese live on 20 cents US a day, and consume less than two thirds of the calories required to meet basic needs
- Devaluation of currency and cost of imported goods (kerosene, salt) has eroded people's purchasing power
- Agricultural production has dropped and in mineral-rich areas, farmers have abandoned agriculture to dig for coltan, gold or diamond
- Deprived of state support, with little access to income, and without meaningful external aid, the resources and resilience of Congolese households have simply run out
- As a result of years of mismanagement, corruption and war, the DRC is one of the poorest countries in the world, with per capita annual income of about \$98 in 2003
- Majority of the population survives on informal economic activities, mainly carried out by women (Feb 2002)
- The average Congolese is 53% poorer than 30 years earlier (2005)

Oxfam, August 2001, pp.9, 24:

"The little infrastructure that existed prior to the two wars of 1996 and 1998 has crumbled. Health and education systems are in a state of collapse, continuing to rely on support from the churches, local organisations, and international agencies to provide limited services to the population. The poor state of the roads all over the country, compounded by insecurity in the east, impedes trade and makes the delivery of humanitarian assistance difficult and costly. Of the 145,000km of roads, no more than 2,500km are asphalt. Many of the remaining roads are often impassable during the rainy season. The threat of armed attack leads many business people to abandon road traffic completely. River-transport connections along the Congo River and its tributaries, once the crucial highway of the DRC, have also been severed. In many places, access is only possible by air, putting many basic necessities, including medicines, beyond people's reach. The movement of food and other supplies from rural to urban centres has completely ceased, resulting in large food deficits in towns and reduced production in the rural hinterlands.

In eastern DRC, the war has reduced the poorest sections of the population, both displaced and host/local communities, to an extremely marginal existence. Conflict continues between the various armed groups and insecurity has worsened, particularly in rural areas. The devaluation of the currency and rise in the cost of imported goods such as kerosene and salt has eroded people's purchasing power. In isolated areas of rebel-held territories, such as Shabunda, Kindu, and East Kasai, which can only be reached by air, the cost of items such as salt, oil, soap, and even clothes has become even more prohibitive.

Agricultural production has dropped across the east of the country, meaning that some formerly surplus producing areas no longer grow enough to feed their populations. Insecurity, limited access to markets, cassava blight [1], and difficulties in making enough money from the sale of crops, all discourage people from cultivating. [...]

In mineral-rich areas such as Walikale, Punia, and Kalima, the short-term benefits of mining have also encouraged some farmers to abandon agriculture. Instead of working in their fields, they prefer to dig for coltan, gold, or diamond. This will have long-term implications for communities' access to food."

[1] Cassava is the staple for 70% of the Congolese population. Over the past 7 years, cassava crops across the country have suffered from viral and bacterial diseases that have totally wiped out production in some areas such as Bandundu. The war has hindered the application of measures to control the diseases and provide healthy disease-resistant varieties to farmers]

ISS, 31 December 2005, p.18:

“The average Congolese is 53% poorer than 30 years earlier. GDP is lower now in real terms than at independence in 1960, having declined from US\$360 per head to US\$119 per head in 1990 and to US\$115 per head in 2004. This economic disaster definitely affects the defence integration and DDR process.”

The World Bank Group, 8 March 2007:

“ DRC is one of the poorest countries in Africa, with two-thirds or possibly three-quarters of the population living below the poverty threshold of a dollar a day. Some regions have poverty levels above 80 percent.

But as DRC has become more stable over the last year, there have been promising signs for the economy. GDP growth remained above 5 percent in 2006. More than US\$1 billion in foreign direct investment flowed to DRC in 2006 despite its ranking as the worst country in the world according to the “Doing Business Indicators.”

Though the country's formal economy virtually collapsed in the last few decades, DRC is rich in natural and human resources: fertile soils, ample rainfall, and mineral resources. Mining of copper, cobalt, diamonds, gold, zinc and other metals, as well as petroleum extraction, once accounted for 75 percent of its GDP.”

Many displaced women have become the head of the household and pay an very heavy price (2001-2006)

- War had devastating effect on women's economic and social activities, and produced large number of widows and displaced women who became the head of the household
- In Maniema, at Kalonge, at Bunyakiri, at Shabunda, in northern Shaba, more than 60% of displaced families are headed by women
- Women, who often hold the household together, are paying an extraordinary price
- Female-headed households are generally the most vulnerable (2006)

International Alert & Al., 2005, pp.25-26:

“The war has had a devastating effect on women's economic and social activities. The already meagre resources and revenue of grassroots women's organisations, as well as their means of production, have been destroyed or looted. In addition to the volatile security situation, women also face basic structural problems that exacerbate their impoverishment. First of all, it is difficult for them to have access to land because of over-exploitation and overpopulation of fertile lands, and because of patriarchal traditions; on top of this, the economic infrastructure that would have enabled them to carry on productive activity has been destroyed, or did not exist anyway. Moreover, the heavy taxes imposed during the period of administration by the Rassemblement

Démocratique Congolaise (RCD), especially on economic activities, have helped to erode women's incomes in particular.

The war has produced a large number of widows and displaced women who have become heads of household without their having had any preparation for this role. They live below the poverty line and depend largely on food aid (when it is available) for their survival. There are high rates of HIV/AIDS, partly owing to the widespread incidence of rape committed against women by forces fighting on the ground. War and poverty have also forced many women and girls into prostitution as a means of survival, and this makes them particularly vulnerable to sexual violence. This has been described as 'survival sex' and creates conditions "... in which abusive sexual relations are more widely accepted and where many men, both civilians and combatants, regard sex as a service that is easy to obtain by means of coercion". At the same time, domestic violence has increased, as a result of tension caused by the upsurge of unemployment among men, as well as fear and uncertainty regarding the country's political future."

OCHA, 6 March 2001:

"The heavy displacement of populations mostly lead to dislocation of various families. Separated, women become responsible for their children future and have the obligation to guarantee the survival of the family in such a chaotic situation. According to various sources, in Maniema, at Kalonge, at Buyakiri, at Shabunda, in northern Shaba, more than 60% of displaced populations are from families of which husbands have ran away or have been enrolled in the army or in armed militia. In Maniema, they are estimated to be 80%. The monoparental system as imposed on women is a source of permanent tension. Moreover, it is to be feared that this extended conflict will have side effects in establishing a culture of violence considered as normal lifestyle of which women are actually victims. [...]

[However] Far from being uniquely silent victims of the present conflict, women have progressively granted themselves a leadership role trying to ward off the consequences of the conflict on their families and attempting by all means to reduce the side effects of the war on their communities."

WHO, 29 June 2001:

"Women, who often hold the household together, are paying an extraordinary price. This year over 42,000 will die in childbirth alone. Under-nourishment, forced and economic prostitution, overwork for pathetic recompense, untreated ill health and the psychological strain of maintaining large families are exacting a terrible toll."

HRW, June 2002, p.21:

"The war has exhausted the reserves of the people of eastern Congo. The burden of trying to survive and assure that others in the family survive fall heavily on women. As the socio-economic situation worsens, more women and girls are resorting to trading sex for food, shelter, or money in order to provide for themselves and their families."

WFP, 31 October 2006:

« Les ménages déplacés dirigés par les femmes sont généralement plus vulnérables que les autres car ils ont moins de stratégies de résilience disponibles. Ces ménages manquent généralement de personnes actives qui peuvent travailler pour subvenir aux besoins du ménage. Dans les quatre provinces où une étude a été conduite récemment, l'indice de stratégie de survie des ménages dirigés par les femmes est constamment plus élevé, ces ménages sont plus vulnérables, que ceux avec un chef de ménage masculine [...]. En plus, les pourvoyeurs des ménages menés par des femmes n'ont généralement qu'une faible éducation ce qui les rend encore plus vulnérables [...]. »

Public Participation

DOCUMENTATION NEEDS AND CITIZENSHIP

General

IDPs should be taken into account in electoral register (2008)

UNSC, 3 July 2008:

"Since my last report, Congolese electoral authorities have decided to update the electoral register to take into account internally displaced persons and refugee returns and those who have reached voting age since the 2006 elections. Without this revision, several million citizens of the Democratic Republic of the Congo would be deprived of their right to vote. However, this decision necessarily delays the local elections until mid-2009."

Most IDPs were not able to vote on July 30 (2006)

OCHA, 23 June 2006 :

"[...] pour la majorité des personnes déplacées, notamment celles se trouvant dans la partie Est de l'Ituri, au Nord-Kivu et au Centre Katanga, le 30 Juillet n'était pas un jour de vote. La plupart ont perdu leur carte électorale confisquée par les hommes armés ou égarées lors de leur fuite. Pour des raisons d'insécurité empêchant les déplacements, des IDPs n'avaient pas pu se faire enregistrer. D'autres ont tout simplement refusé de rentrer chez eux pour exercer leur droit civique par crainte de faire face aux exactions des groupes armés. Les communautés vivant dans les zones instables du sud de l'Ituri et dans la partie centre et nord du Sud-Kivu ont éprouvé d'énormes difficultés pour accéder aux bureaux de vote étant donné que l'insécurité empêche les mouvements de la population." (OCHA 15 August 2006)

« OCHA a rencontré le Viceprésident, Jean Pierre Bemba, le 19 juin 2006 afin de lui exposer les problèmes humanitaires dans la province. OCHA lui a expliqué les difficultés des humanitaires à répondre à l'ensemble des crises humanitaires et les contraintes sécuritaires et de protection pour les populations déplacées. Le Viceprésident a remercié les humanitaires pour les efforts qu'ils déploient. Il a également voulu s'assurer que les IDPs aient accès aux urnes lors des élections. »

See also :

United Nations Office for the Coordination of Humanitarian Affairs - Integrated Regional Information Networks (IRIN), 3 Aug 2006, DRC: Hear our voices - "Why we didn't vote"- displaced persons [[Internet](#)]

United Nations Office for the Coordination of Humanitarian Affairs - Integrated Regional Information Networks (IRIN), 30 Jul 2006, DRC: Militiamen stop voters from going to polls [[Internet](#)]

Reuters Foundation, 29 Oct 2006

Congo army blocks thousands from voting – observer [[Internet](#)]

Registration of IDPs for national election (April 2006)

- According to article 7 of Law of 24 December 2004, registration must be done in area of principal or temporary residence
- Difficulty for IDPs to provide I.D. or five witnesses confirming their identity
- Difficulty for IDPs who return home following the registration process, and who are only registered in their area of displacement
- Some officials misinterpreted article 7, and decided that IDPs had to return home to be registered
- NRC advocated on behalf of IDPs and helped them to find solutions
- IDP camps could have benefited from the opening of registration centres in the camp

NRC, April 2006 :

« La loi sur l'enregistrement des électeurs et les déplacés

La phase d'enrôlement des électeurs a été régie par la loi n° 04/028 du 24 décembre 2004 portant identification et enrôlement des électeurs en RDC. [...]

Chaque candidat électeur doit se faire identifier dans le centre d'inscription du ressort de sa résidence. En effet, selon l'article 7 de cette loi, les électeurs sont identifiés et enrôlés dans le centre d'inscription situé dans le ressort de leur résidence principale. Toutefois, l'individu en séjour hors du ressort de sa résidence principale peut se faire identifier et enrôler dans le centre d'inscription de sa résidence temporaire. Le ressort de résidence, détermine le même article, s'entend comme le territoire couvert par le centre d'inscription et incluant le lieu de résidence de la personne à identifier et à enrôler.

De la résidence

Cette disposition semble prendre en compte le problème des déplacés en ceci qu'ils peuvent se faire enrôler dans le milieu où ils se trouvent, qu'ils y aient trouvé une solution définitive (réinsertion, milieu de retour) ou qu'il s'agisse d'une installation provisoire (milieu d'accueil – une famille ou un camp -, situation de transit, déplacement à court terme). Le souci était que des personnes ne puissent pas manquer la phase d'enrôlement pour le seul motif qu'ils ne se retrouvent dans leur milieu de résidence habituelle. Mais elle a l'inconvénient, pour les déplacés en situation provisoire, de les considérer comme installés dans le ressort du bureau où ils se sont faits enregistrés parce que, ayant été inscrits dans un bureau, ils n'apparaîtront sur la liste des électeurs que de ce bureau.

Des pièces à présenter

Une autre disposition qui crée un problème pour les déplacés est l'article 10 de la même loi, évoquant les pièces à présenter pour justifier l'identité et l'âge de l'électeur. Il s'agit du certificat de nationalité ou l'attestation tenant lieu de certificat de nationalité, de la carte d'identité pour citoyen, du passeport national, du permis de conduire national sécurisé, du livret de pension congolais délivré par l'Institut National de Sécurité Sociale ou par toute autre institution congolaise légalement reconnue en tenant lieu, de la carte d'élève ou d'étudiant, ou de la carte de service. A défaut de l'une ou l'autre de ces pièces, sera pris en considération le témoignage fait devant le bureau du centre d'inscription par cinq témoins déjà inscrits sur la liste des électeurs du même centre d'inscription et résidant depuis 5 ans au moins dans le ressort du centre d'inscription.

Cette dernière éventualité a été envisagée afin de permettre aux personnes ne possédant pas l'une des pièces exigées par cette disposition de pouvoir se faire enregistrer et délivrer la carte d'électeur, celle-ci jouant d'ailleurs le rôle de carte d'identité provisoire. Et parmi les personnes ne

disposant pas de titres, on pense facilement aux déplacés, mais aussi à plusieurs citoyens qui n'avaient pu obtenir des cartes d'identité, celles-ci n'étant plus délivrées depuis belle lurette.

b) L'intervention du IDPs Protection/ICLA Programme

Pour plusieurs déplacés, la phase d'enregistrement des électeurs ne s'est pas passée sans difficultés. D'une part, ils ne possédaient pas les pièces exigées par l'article 10 pour leur enregistrement, d'autre part, dans certains milieux, il leur était interdit de se faire enregistrés, au motif qu'ils devaient rentrer se faire enregistrer dans leur milieu d'origine.

De façon générale, la situation des déplacés se présente telle que pendant la fuite, ils perdent souvent leurs titres de propriété ou même les documents en rapport avec leur identification : soit qu'ils les abandonnent dans leur habitations, soit qu'ils les perdent durant leur périple pour l'exil ou des scènes de pillage, soit qu'ils ont été détruits de suite des intempéries. Dans ces conditions, les DP's n'ont pu être enregistrés qu'en recourant à la procédure des témoins, ce qui souvent n'était pas facile étant donné qu'ils étaient nouveaux et peu connus dans le milieu. Il en a été ainsi pour les déplacés dans le territoire de Masisi, au Nord Kivu.

A propos des pièces à présenter pour se faire enrôler, dans certains milieux, le Programme IDPs Protection /ICLA est arrivé à un compromis avec la CEI pour que celle-ci admette l'enregistrement des déplacés sur présentation des jetons d'identification. Ce compromis a trouvé terrain d'application notamment dans le territoire de Beni au profit des déplacés venu de l'Ituri. Plusieurs d'entre eux avaient perdu leurs titres d'identification lors des événements ayant occasionné leur fuite ou tout au long de leur déplacement. Grâce à l'intervention du Programme IDPs Protection/ICLA, l'autorité locale leur avaient octroyé des jetons qui servaient de pièce d'identité. [...]

D'un autre abord, la plus grande menace à l'égard des déplacés est venu de l'interprétation que certaines personnes (des agents de la CEI, des autorités locales et mêmes des leaders d'opinion) ont fait de l'article 7, notamment du concept « lieu de résidence de la personne à identifier et à enrôler ». La perception de ce concept était telle que le fait d'avoir été enrôlée en un endroit conférait à la personne enrôlée la qualité d'originaire du milieu. A ce titre, tous les déplacés devaient retourner se faire enregistrés dans leur milieu d'origine. Ainsi, dans les premiers jours de l'opération d'enrôlement, dans certains endroits, il a été observé un refus d'accès aux bureaux d'enrôlement pour les déplacés.

Le rogramme IDPs Protection/ ICLA n'est pas resté inactif face à ce problème. Il a saisi l'aPutorité administrative locale, en lui rappelant sa responsabilité d'aider les déplacés à obtenir des pièces d'identité ou leur remplacement. Comme nous l'avons déjà évoqué, la carte d'électeur joue aussi le rôle de carte d'identité. Il était donc de l'obligation de l'autorité locale d'intervenir en faveur des déplacés afin qu'ils obtiennent les documents dont ils avaient besoin pour pouvoir exercer leurs droits civils et politiques, conformément au PD 20, alinéa 21.

Concrètement, pour les déplacés du camp Kabutonga, au Nord Katanga, dans les périphéries de Kalemie, il ne leur était pas accordé d'accéder aux bureaux d'enregistrement, la plupart d'eux étant venus de la province du Sud Kivu, du territoire de Fizi principalement. En compagnie de l'autorité locale, le Département ICLA/ NRC de Kalemie, ont rencontré les agents de la CEI et de leur entretien, il a été reconnu le droit pour les déplacés d'être aussi enregistrés.

Par ailleurs, le Programme IDPs Protection /ICLA aurait aimé que les déplacés soient considérés d'une façon particulière par rapport aux autres citoyens, compte tenu des difficultés et de la situation précaire. Ainsi, d'une part ils auraient bénéficié de plus de sensibilisation avant l'enrôlement, comme il en a été organisé pour les autres couches de la population. D'autre part, des bureaux d'enregistrement auraient dû être ouverts dans les camps des déplacés. En effet, le nombre des bureaux d'enregistrement était fonction de l'estimation des personnes enregistrables

dans un milieu, en raison d'un bureau pour 700 personnes. Certains camps des déplacés atteignent facilement ce chiffre, comme le camp CECA 20 de l'axe Eringeti, qui comptait 564 ménages en décembre 2005, ou le camp Tuha aux environs de Beni qui, lui, abritait 1211 personnes. Dans ce milieu, la stratégie a été d'implanter des bureaux aux environs des camps des déplacés. Au Nord-Katanga, où existent des camps abritant plusieurs milliers de ménages, aucun bureau n'a été ouvert dans ces camps. Les déplacés non plus n'ont dénoncé aucune difficulté liée à l'absence de bureaux électoraux dans leurs camps. »

See also: Mission Electorale de l'UE en RDC 21 December 2005

62% of women in DRC marry under customary law and cannot get inheritance priority (Oct 2001)

"IRIN, 1 October 2001:

"A national campaign to inform people of the advantages to officially registering their marriages was launched last week by the Ministry of Social Affairs and Family (Ministère des Affaires sociales et Famille) of the Democratic Republic of the Congo (DRC), in collaboration with UNICEF.

According to a statement from UNICEF in Kinshasa, a widow and her children are given inheritance priority under state law, as opposed to customary law, where other family members may make claims of the deceased assets. A woman is also entitled to greater protection against spousal abuse under state law. An estimated 62 percent of women in the DRC marry under customary law, while only 25 percent officially register their marriages with the state."

PROPERTY ISSUES

General

Ituri: land disputes arise following IDP return (May 2008)

- Many IDPs set up home on land vacated by refugees or IDPs from other communities who might later want to recover it
- Such issues were causing tension in all the five territories that make up Ituri, and in some cases leading to open resistance to the return of IDPs.

ICG, 13 May 2008:

“Just before the elections the district experienced a wave of more than 150,000 displaced people returning.⁴⁸ In many cases the land had been occupied after their departure and their return risked provoking new tensions. Many displaced people were actually installed on land left vacant by refugees or displaced people from other communities who may now wish to recover it. Further, population density is increasing in certain areas because of such displacement, leading to a scarcity of resources available for both crop farming and livestock breeding which could create serious tension in the months to come.⁴⁹ According to UNDP, there are still nearly 170,000 internal displaced people in the province while 50,000 Iturians live as refugees outside the DRC.

For now, sources of tension can be found in every territory in the district. In Djugu territory land disputes mainly set the Walendu Tatsi, Djatsi and Pitsi peoples against the Bahema. The former accuse the latter of letting their livestock graze all over the place and corrupting administration to illegally acquire land ownership deeds. The Bahema people claim that the Lendu community simply wanted to benefit from their

work by trying to contest their rights in the name of traditional customs.⁵² However, in reality the territory is a true mosaic of ethnicities with several villages from one community hemmed in by an area peopled by a different ethnic group. As the territory administrator, Tshatshy Lilo, himself recognises, the return of displaced people and refugees is a very sensitive problem. The Hema traders who want to return to Kobu cannot because much of their property was destroyed during the war.

The same problem arises for the Fataki Lendu people whose land and homes are today occupied by the Hema group. Although the Hema community recognises that Fataki is located on Lendu territory, it claims to have been established in Fataki for several dozen years as teachers, traders and nurses, and does not see why it should leave the town to let the Lendu population who left during the war return. In Jiba the Walendu Pitsi group has refused to let the Magbo family (Hema) access their farm and is threatening to declare war if the family insists on returning to the property.

In the Aru territory, land disputes and conflicts about territorial boundaries are numerous among the Aluru chieftainship and the Zaki chieftainship. In the latter area the Gawa and Nyaya populations regularly confront one another. In 2007 several hundred dwellings were destroyed, provoking the displacement of 562 families. In the Mahagi territory, the robust population density (more than 500 inhabitants/km²) also creates land conflicts and strong resistance to the return of displaced people in the Mokambo (specifically in Musongwa) and Walendu Watsi (vis-à-vis the displaced people from Dzeba) chieftainships.

Further, movement towards so-called reserve land such as Anghal II and Djukoth II by people seeking land for agriculture can be observed. Tensions are also recurrent in Magurugu in the War Palara chieftainship and in Ngote in the Pandoro chieftainship, and they can provoke violent incidents such as occurred in October 2007 when the Pashua population and the Djupabot people confronted one another over a piece of land occupied by the inhabitants of Pashua for five years.

Despite a much lower population density, land problems are also very numerous in the Irumu territory. In the villages of Bogoro, Burgama, Kyamukaka, Lakpa, Nyakunde, Nombe and Buguge (Mount Omi), the Lendu Bindi (Ngiti) community occupies land belonging to the Hema population. In the chieftainship of Kasenyi the return of South Hema breeders and their 20,000 animals from Uganda provoked serious over-grazing problems. Several Hema returnees were not originally from Kasenyi but from Nyakunde, 45km from Bunia. However, they cannot return to Nyakunde because the town is occupied by the Lendu people. In the Tchei area, occupied for years by the FRPI's Lendu Bindi population, the return of the Bumbikasa and Bunyagwa communities, who were chased off many years ago, also risks provoking great tension.

Faced with this situation, the response of the authorities (both national and local) has not been good enough. Most leaders are afraid of dealing with this problem. Before his suspension, the district commissioner, Pétronille Vaweka, certainly tried to raise awareness to assuage land disputes, particularly in the Mahagi territory.

Administrators have taken preventative measures to contain the risk of violence. The administrative departments of the district have demonstrated their interest in working actively to prevent land disputes. However, at provincial level the action of Governor Autai confused the authorities' message and gave the impression that those who carried out acts of violence would enjoy total impunity in the event of a land dispute."

Spontaneous IDP settlements built on private land can lead to disputes (March 2008)

OCHA, 31 March 2008, "focus humanitaire":

"Quand les déplacés ne sont pas accueillis dans des familles mais vivent sur des sites, le problème de la terre qu'ils occupent peut alors se poser. Souvent, les autorités du village d'accueil offrent un terrain que les déplacés peuvent utiliser le temps de leur déplacement. Or, quand ce déplacement se prolonge, des tensions peuvent naître entre les propriétaires de la terre et les déplacés. L'espace occupé par les familles déplacées constitue en effet un manque à gagner pour les propriétaires terriens. »

Land and property disputes identified as major obstacle to return (2007)

UNHCR, 13 February 2007:

"The vast majority of IDPs is eager to return home and is expected to do so as soon as basic security is restored. It is therefore necessary to create and maintain a protective environment in return areas in 2007. Land and property rights disputes have been identified as a major obstacle to return, and as a potential source of renewed conflict in several provinces."

See also the brochure published by local NGO Aide et Action pour la Paix to help IDPs know their property rights: see link below

North Kivu: land and ethnicity as a cause of conflict (September 2005)

- Local authorities have manipulated the tension around ethnicity and land issues as a means of securing power base and control over economic resources
- Traditionally, the distribution of land was primarily in the gift of the local customary chief, who would extract some form of tribute from the tenant
- During their rule, the RCD-Goma and RCD-ML ensured its officials controlled the civilian administration system and replaced a number of customary leaders, strengthening their control over land

AI, 28 September 2005:

"Ethnicity in North-Kivu, as in other densely populated areas of the DRC, is closely linked to the issue of land tenure and political power. Throughout recent history, local authorities have manipulated the tension around ethnicity and land issues as a means of securing their power base and their control over economic resources, be this agricultural, forestry or mining land. Land or the lack of it remains the strongest factor governing the economic survival of most people in North-Kivu, and has contributed at different times to the creation of ethnic-based militia and outbreaks of ethnic violence.

Traditionally, the distribution of land was primarily in the gift of the local customary chief, who would extract some form of tribute from the tenant. Belgian colonial rule did not fundamentally alter this system, although the colonial scheme to transplant Rwandans to North-Kivu did disrupt traditional land-holding patterns by allocating the Rwandan newcomers plots of land within a specified area purchased from the local Hunde chief, and placing this area under the authority of a Rwandan chief. Towards the end of colonial rule, the Rwandan chiefdom was abolished and the Banyarwanda placed under Hunde tribal authority. This, and demographic growth over time, combined to make land tenure increasingly uncertain, conflictual and bound up with ethnic identity.

Post-independence, these pressures led to a series of small-scale ethnic conflicts over land, most notably a 1963-65 conflict which pitted the Hunde, Nande and Nyanga against the Banyarwanda, who were seeking greater political autonomy in the zones in which they were established. A gradual shift in land use from crop agriculture to more extensive cattle-farming, especially in Masisi and Rutshuru territories, concentrating large areas of pasture in the hands of a small number of mainly Tutsi owners at the expense of (often Hutu) smallholders created additional resentments. A new land law in 1973, which finally abolished traditional customary control of land, further undermined the authority of mainly Hunde and Nyanga tribal leaders(29). These developments deepened tensions over land between the "indigenous" ethnic groups and the Banyarwanda, as well as between Hutu and Tutsi populations.

Ethnic tensions in North-Kivu became particularly inflamed as President Mobutu rule began to crumble. This was notably so after President Mobutu launched the "democratisation" process - a transition to multiparty democracy - in April 1990. Political office (which from the Mobutu period to the present day has generally served its holder for private profit) lay primarily in the hands of the Hunde and Nande. Alarmed at the prospect that democratisation might lead to loss of power, Hunde and Nande politicians moved to exclude the Banyarwanda from participating in national debate and elections by labelling them as "foreigners". At the same time, Hutu Banyarwanda(30)

began a campaign of resistance to Hunde and Nande political control. Ethnic-based militia were formed, and in March 1993 violence erupted when Hunde and Nyanga militias massacred Hutu and Tutsi civilians in Masisi and Walikale territories. Reprisal succeeded reprisal and by September the violence had left an estimated 7,000 dead and 200,000 displaced.

In July 1994, the arrival of more than one million Hutu refugees from Rwanda further aggravated an explosive situation. Armed Hutu militias attacked Tutsi and other ethnic communities in North-Kivu, raiding cattle and agricultural property and establishing control over large areas which were once ethnically mixed. Much of this fighting appeared designed to drive out the remaining Tutsis from the area. The Zairian authorities failed to control the fighting and offered little protection to civilians. Landowners on all sides were reported to have hired armed groups and/or Zairean government forces to protect their land and property.

The situation changed again after the fall of President Mobutu and the subsequent Rwandan and Ugandan invasion in August 1998. During this period, the RCD-Goma, with Rwandan government assistance or acquiescence, organized the clandestine return of Congolese Tutsis living in refugee camps in Rwanda to North-Kivu. Years of violence and massive population displacement, however, had by this stage removed any certainty about who owned or held title to particular pieces of land. Among the non-Tutsi populations, many suspected the Tutsi returnees of harbouring Rwandan Tutsi and accused the Rwandan Government and RCD-Goma of masterminding a systematic, illegal Tutsi "land-grab" of areas of North-Kivu. A number of legal cases about land tenure were submitted to the North-Kivu courts during this time, but the judicial authorities, under the control or menace of the RCD-Goma, failed to resolve them.

During its rule, the RCD-Goma also ensured its officials controlled the civilian administration system, in the process replacing a number of customary tribal leaders with Banyarwanda. The RCD-ML similarly ensured that its loyalists controlled northern North-Kivu. The new structures ensured RCD-Goma and RCD-ML control over land, natural resources and lucrative customs revenues in their respective zones, all of which were directed towards the continuation of conflict and the private profit of leading officials."

Lack of access to land is seen as a structural cause of the conflict in eastern DRC (2005-2007)

- In Ituri and in Masisi (North Kivu), contested purchase and expansion of agricultural and ranching concessions have been identified as one of the causes of violence
- The present conflict has radically changed land access patterns, through forced displacement and shifts in the level of authority enjoyed by different customary and administrative leaders

ODI, 1 March 2005:

"The complex conflicts in the Eastern DRC have numerous sources. In addition to various economic and political issues, ranging from the military and economic strategies of Western powers and neighbouring countries, the weak nature of the state in DRC, and the historical relationships between ethnic groups, these include natural resources of much greater value, and much more 'lootable' character, than agricultural or pastoral land - such as diamonds, gold, cobalt, cassiterite, and coltan.

Nonetheless, land remains important for several reasons. First, insecure or insufficient access to land in many parts of the East is a significant factor in the impoverishment of thousands of rural people, and is seen by many as a 'structural' cause of conflict.

Second, in the case of Ituri Territory, contested purchase and expansion of agricultural and ranching concessions have been identified as one of the proximate causes of violence; and the same may be true in Masisi. Third, the present conflict has radically changed land access patterns, through a number of mechanisms including forced displacement and shifts in the level of authority enjoyed by different customary and administrative leaders. Conflict is producing new competition for land, as part of a wider renegotiation of the local economic space and re-drawing of ethnic, class, and other 'boundaries' between groups. Land is no longer merely a source of conflict, but a resource for its perpetuation.

In the DRC, a 'modern' system of land administration for white settlers, enabling them to establish their plantations, was superimposed on traditional systems, with compensation paid to the customary leaders (mwami), rather than to the people, and leading eventually to an undermining of both the customary and statutory systems.

Colonial promotion of migration also generated conflict over resource access. After the First World War, the Belgians brought Rwandan farmers into parts of Eastern DRC (such as Masisi) to provide the necessary labour for the newly created agricultural plantations and mining centres. When denied equal access to land after independence, they finally started purchasing land, but local chiefs continued to expect customary tribute. This explains the first major conflict: the 'Guerre des Kinyarwanda', which lasted for two years, was the first rebellion against chiefly abuse and the first step of a spiral of unending local violence.

The independent Zairian state introduced a land law emphasising individual ownership in 1973, removing the legal status from land occupied under customary rule. This enabled those in political or economic power to appropriate any land not yet titled. The traditional authorities became the privileged intermediaries for the sale of land. Rewarded with ministerial posts and newly armed with Zairian citizenship, immigrants from Rwanda were able to concentrate a large number of former colonial estates in their hands. In Ituri Territory, similar developments could be observed. Here, it was members of the Hema who profited from their easy access to education and to employment opportunities within the local colonial administration, the mines and plantations.

With a peasant population under growing stress in the land-scarce areas of Eastern DRC, one might have expected more (or earlier) protest or regular outbursts of violence by peasant farmers against those responsible for land alienation. To understand why this did not happen, the traditional authorities need to be the focal point of analysis. In order to guard their position, and avoid blame for land sales, ethnic discourse proved to be a perfect instrument. This significantly raised ethnic tensions. In North Kivu, a wave of inter-ethnic violence which erupted in March 1993, lasted for more than six months and killed between 6,000 and 10,000 people, while more than 250,000 people were displaced.

The fragile 1993 peace settlement in North Kivu lasted until the arrival of more than one million Hutu refugees from Rwanda and the settling of the ex-Armed Forces of Rwanda (ex-Far) and Interahamwe militia in camps in Masisi and the Ruzizi Plain. A new coalition between the refugee-leadership and militias, shifted the balance of power, creating the concept of 'Hutu-land' and leading to persecution of the local Tutsi population.

Historical analysis of land access dynamics before 1994 suggest that even if the conflict-related changes could be rectified, and 'law and order' restored in Eastern DRC, a return to the status quo will not lead to an equitable outcome. Only a reform of land laws and institutions, along with some form of land redistribution, could achieve that."

See also:

AFP, 23 September 2007, 20 dead in DR Congo land conflict [[Internet](#)]

Dual land system and resources like coltan have increased tensions in eastern DRC (August 2002)

- DRC has two land tenure systems, the modern and the customary
- In eastern DRC, land ownership is still believed to belong to the traditional king who distributes the land to its subjects
- Many fields have been left unattended as a result of forced displacement or the involvement of some section of the population in coltan digging

ACTS, August 2002, pp.170-171:

“The DRC has two recognised land tenure systems: the modern and the customary. Under the modern system, the government owns all land. The right to use land is thus assigned or allocated by the government through the Department of Land Affairs, Environment, Nature Conservation, and Tourism.

Under the customary land tenure system, land ownership is collective: groups or clans hold land. The group, though its appointee, assigns land for use to its members. Land used by a family over a long period of time is recognized by the group or clan as belonging to that family, but the family may not sell the land because, in practice, land ownership rights belong, ultimately, to the national government.

However, in places where strong chieftaincy exists, land ownership is believed to belong to the traditional king (Mwami) who then distributes it to his subjects through a sophisticated system of reward and punishment. This system is still very much alive in the eastern parts of the DRC, especially in the South Kivu Province where many traditional chiefs command authority. Allegiance to this system may also explain why the land issue is linked to the control of power and has become a sensitive matter. In particular, this aspect was improperly dealt with during Mobutu's regime. Indeed, Mobutu used to buy the cooperation of the Bamis – allowing them to continue exercising their traditional powers, while the official laws and regulations of the country said otherwise. The Banyamulenge factor in the war in DRC found its meaning around the struggle for land ownership and recognition of Mwami power. In this sense, the issue of citizenship (which sparked off the Banyamulenge violent uprising against the Mobutu regime) was just another way to claim the right to land ownership.

Agriculture's contribution to exports has declined sharply over the 40 years since independence. In particular, the illegal exploitation of natural resources (including coltan) has impacted on agricultural production. Many fields have been left unattended as a result of forced migration or the involvement of some section of the population in coltan digging. Agricultural productivity has thus declined – with resultant food shortages in urban areas and soaring food prices.

Across the east of the country, formerly surplus producing areas no longer grow enough to feed their populations. Reasons include insecurity, limited access to markets, cassava blight, and difficulties in making enough money from the sale of crops. Moreover, the mine exploitation has diverted the existing manpower from agricultural activities to mine exploitation, especially coltan. In mineral-rich areas such as Walikale, Punia, and Kalima, the short term benefits of mining have also encouraged some farmers to abandon agriculture. Instead of working in their fields, they prefer to dig for coltan, gold, or diamonds. In addition to the already high level of food insecurity in places in South and North Kivu, there is an additional problem posed by armed groups from all sides, who sustain themselves by stealing the limited food and crops from communities who are already struggling to survive.”

PATTERNS OF RETURN AND RESETTLEMENT

General

At least 65,000 people from Ituri and South Kivu were able to return home from April to June 2008

- In July 2008, UNHCR resumed the assisted return of displaced Congolese to their homes in Ituri seven months after suspending the operation for security reasons.

OCHA, 31 July 2008:

"In parallel, some 65,000 people returned to their areas of origin in South Kivu and Ituri in the period April-June 2008."

UNHCR, 21 July 2008:

"The UN refugee agency on Monday resumed the assisted return of displaced Congolese to their homes in northern Democratic Republic of the Congo (DRC) seven months after suspending the operation for security reasons.

Five boats chartered by UNHCR ferried the first group of 712 people – from a settlement for internally displaced people (IDP) at Tchomia – across Lake Albert to the town of Gobu in the Ituri district of DRC's Orientale province. A further 1,800 IDPs are expected to return by this route in coming weeks.

Those leaving for Gobu on Monday seemed delighted to finally be going back home. "Now, I can have a real roof and not live any more under plastic sheeting", one 52-year-old returnee told a UNHCR protection officer.

UNHCR was also scheduled to resume on Monday another IDP return operation in the province. The refugee agency hopes to assist the return of almost 7,000 people from Beni and Eringhety to Komanda and the Ituri capital, Bunia, starting with a first group of 220 people.

Some 3,000 IDPs have returned home under this operation, which was suspended by UNHCR in December [2007] for security reasons.

Return operations to the Ituri region were launched last year but halted in December due to clashes between rebel fighters and troops of the DRC armed forces, which also threatened the reintegration and recovery processes in the district.

The return of those on Monday's ferry journeys has been made possible by a considerable improvement in the security situation. UNHCR now plans to wrap up the assisted return programme by the end of this year.

Some 600,000 displaced Congolese remain in the Ituri region, living in settlements or with host families. Many fled their homes during the DRC's wider civil war between 1996 and 2002, which left 50,000 civilians in Ituri dead, while thousands more left their homes when inter-ethnic clashes erupted in 2003 all over the district."

Humanitarians assisted some 1.5 million IDPs to return home in 2007

OCHA, 15 January 2008:

"In 2007, humanitarians successfully assisted some 1.5 million displaced persons to return to their areas of origin in the four eastern-most provinces of the Democratic Republic of the Congo (DRC). Nevertheless, in many areas most affected by the recent escalation of fighting, especially the two Kivu provinces, new displacements are much greater than the returns. "Such an overwhelming level of new displacement is very worrying," said John Holmes, the United Nations Under-Secretary-General for Humanitarian Affairs and Emergency Relief Coordinator. "Unless peace can be quickly restored, we are bound to see further human tragedy in a country trying to emerge from years of civil war. Meanwhile, armed groups must stop targeting civilians," he added."

Thousands of displaced in North Kivu stayed in camps out of fear that fighting could resume (2007-2008)

- Thousands of people who had been recently displaced returned home in August 2007, but many were displaced again by renewed clashes
- Fear, uncertainty deter North Kivu IDPs from going home (March 2008)

IRIN, 19 September 2007:

"Thousands of Congolese civilians who were displaced in August [2007] by fighting in Sake town, North Kivu Province, are still living in camps out of fear that fighting could resume, a UN official said.

"Sake is almost a ghost town; some of the displaced come to the town during the day but return to IDP [internally displaced persons] camps around Goma [the provincial capital]; they are still afraid," Eusebe Hounsokou, the representative of the UN High Commissioner for Refugees (UNHCR) in the Democratic Republic of Congo (DRC), said on 19 September [2007]."

IRIN, 31 August 2007:

"Thousands of villagers who had fled the first clashes between the army (FARDC) and militias close to renegade general Laurent Nkunda in the Masisi hills, North Kivu province, in the eastern part of the Democratic Republic of Congo (DRC), are starting to return home, according to UN sources. We have heard that the displaced are starting to return to their homes,' said Christophe Illemassene of the UN Office for the Coordination of Humanitarian Affairs (OCHA).

It is estimated that about a third of the population has been displaced. Since Masisi has about 26,000 people, that would mean about 8,500 displaced people returning home. According to Illemassene, however, it is impossible to estimate accurately the numbers involved because the area remains inaccessible.

However, as the first clashes stopped, new conflicts flared up on 30 August [2007], causing many new displacements."

OCHA, 31 July 2007 :

« Retours: En raison de l'instabilité et de l'insécurité générale régnant dans la province, il n'y a guère eu de retours vers la province, et seule une vague d'environ 6000 personnes retournant à Kanyabayonga (territoire de Lubero) a été enregistrée au cours des trois derniers mois. La situation sécuritaire dans la province n'incite pas à des retours plus nombreux. »

IRIN, 26 March 2008 :

"Hundreds of thousands of internally displaced persons (IDPs) in North Kivu Province in the Democratic Republic of Congo (DRC) are reluctant to go back to their villages for fear of attacks despite a truce signed in January between the government and various armed groups.[...]

"In the beginning of March [2008] many IDPs in the Rutshuru region tried to return to their homes, but they are coming back to the safety of the camps saying that [troops loyal to Nkunda] are accusing them of aiding and helping other troops," she [UNHCR senior field officer Marie-Antoinette Okimba] said."

Over 100,000 IDPs return home in South Kivu between end 2006 and mid-2007 (2007)

OCHA, 14 September 2007 :

« Selon Malteser International, d'intenses mouvements de retour des populations déplacées sont enregistrés depuis la fin de l'année 2006 sur l'axe Tubimbi (en territoire de Walungu, à la limite avec le territoire de Mwenga) – Mwenga. L'amélioration des conditions sécuritaires et la réouverture de l'axe Bukavu-Mwenga seraient les principaux facteurs à la base de ce retour massif. **11.012 ménages** ayant regagné cet axe entre fin 2006 et août 2007 ont été enregistrés par un partenaire local de Malteser. Les localités les plus concernées par ces mouvements sont notamment Mukangala, le groupement de Kigogo, Kyunvu, Irangi, Kalambi, Mbamulinda, Kilimbwe, Ilowe, Cheshero, Ihanga, Tubimbi, Kitwabaluzi, Mulanga, Balobola, Itudu, Kalambo, et Buhogo. »

OCHA, 31 July 2007 :

"Retours: Le taux de retours a aussi considérablement augmenté dans la province. Entre la fin de 2006 et jusqu'en juin 2007, 109,085 retours ont été enregistrés au total. Parmi ces retours, 48,095 ont eu lieu entre février et juin 2007 dans le territoire de Walungu. Ce retour est accompagné d'assistance de la part de différents acteurs. »

Over 460,000 IDPs returned home in Ituri in 2007 (2007-2008)

- Over 1 million IDPs have returned home in Ituri since October 2005 (July 2008)

OCHA, 31 July 2007 :

« Retours: Depuis novembre 2005, 466,706 retours avaient été enregistrés jusqu'en juin 2007, dont 146,695 entre mars et juin. La plupart de ces retours ont eu lieu à Irumu entre janvier et juin 2007, et beaucoup d'autres personnes sont rentrées dans leurs villages d'origine à Djugu entre mars et mai 2007. Occupant auparavant la deuxième place pour ce qui est du nombre de déplacés dans les provinces de l'Est de la RDC, l'Ituri est devenue la troisième région au plus grand nombre. Elle enregistre aussi actuellement le plus grand nombre de retours, devant le Katanga, avec 42% de tous les retours en RDC orientale. »

OCHA, 16 July 2008 :

« Parallèlement aux déplacements au Nord-Kivu, un mouvement de retour a été enregistré dans les provinces du Katanga (où la Commission de Mouvement de Population a été dissoute car seuls quelques cas de déplacement résiduels persistent) et le district de l'Ituri (plus d'un million de retournés depuis octobre 2005). »

Over 450,000 IDPs returned home in Katanga between October 2006 and mid-2007 (July 2007)

OCHA, 31 July 2007:

« **Retours:** L'enregistrement de personnes déplacées au retour se poursuit à travers la province. Entre avril, mai et juin 2007, 59,434 retours ont été enregistrés par la CMP, augmentant à 451,297 le total de déplacés rentrés depuis octobre 2006, ce qui représente le deuxième plus large mouvement de retours, après l'Ituri. »

Call to resettle thousands of people displaced by LRA in Orientale Province (May 2007)

IRIN, 22 May 2007:

"Thousands of civilians who were forced to flee their homes several years ago after incursions into the Democratic Republic of Congo (DRC) by armed groups from southern Sudan, should be resettled, the administrator of Dungu territory in northeastern DRC has said.

"These people have not been able to return to their villages since 1999," Leandres Bwiulu said. "The worst is that a whole ethnic group among the Baka, whose villages were located in the region, are disappearing since the whole population has been roaming for years."

According to Bwiulu, about 5,800 families were displaced by the incursions, initially by the Sudan Peoples Liberation Army (SPLA) and later by the Ugandan Lords Resistance Army (LRA). The Baka ethnic community, he added, constituted 11 percent of the 252,000 people who live in the territory.

The SPLA incursions, which occurred before the groups signed a peace agreement with the Sudanese government in 2005, were intended to forcibly repatriate Sudanese rebels and refugees.

The LRA fled into DRC, where the groups leader Joseph Kony had set up a base in Garamba National Park, after suffering heavy casualties from the Ugandan army."

Difficult conditions in return areas for IDPs in Katanga and South Kivu provinces (2006)

- According to inter-agency assessments in July 2006, close to 80 percent of IDPs returned home in Katanga Province without assistance in May-June
- In South Kivu, many returnees do not manage to reach their villages of origin, becoming de facto displaced, forced to stay with relatives or residents
- In South Kivu, humanitarian actors humanitarian groups have often been unable to assess conditions in return areas, first due to security concerns and then to logistical constraints

Katanga

Reuters, 30 August 2006:

"Over 100,000 displaced people are flooding home as militias disarm in southeast Congo but with many houses destroyed they pose a fresh humanitarian challenge for the devastated country, a U.N. official said.

[...]

"The situation in Katanga has greatly improved. The new challenge is to assist people who are returning home," Gerson Brandao, the local humanitarian affairs officer for U.N. aid coordination office OCHA, told Reuters late on Tuesday.

"There are 100,000 people in Katanga starting to return home but their homes do not exist any more. We do not have the resources to help these people."

[...]

"The people returning have absolutely nothing: their villages have been destroyed by the militias or the Congolese army. There are no schools, no health centres and nothing to eat," he said.

The task of providing aid is complicated by crumbling infrastructure worsened by years of conflict and neglect even before the 1998-2003 war, which killed 4 million people.

In the rainy season aid convoys can take up to five weeks to travel 500 km (300 miles) from the regional capital Lubumbashi."

UNHCR, 5 October 2006:

"The UN refugee agency handed out aid packages to more than 6,300 people during the first 10 days of an operation to help displaced people who have returned to their homes in remote areas of Democratic Republic of the Congo's Katanga province.

UNHCR's return assistance project, conducted by implementing partner HI-Atlas Logistique, began on September 25 with distributions in three villages located in the Sampwe area, some 350 kilometres north of the provincial capital Lubumbashi.

Almost all of the inhabitants of the villages had fled their homes to escape fighting between central government forces and the Mayi-Mayi tribal militia in the vast province. Most of the more than 6,300 people to receive aid packages were returnees.

"I am happy to see that we are not forgotten," a village chief told the distribution team. It took three days for four UNHCR trucks from Lubumbashi to reach the remote villages in the savannah. But the wet season has begun and heavier rains will likely make much of the region impassable in October.

"The start of this project is a manifestation of UNHCR's commitment to implement our new responsibilities for IDPs [internally displaced people]. For the first time, we are providing return packages to IDP returnees in a geographical area of the Democratic Republic of the Congo that does not coincide with refugee returns," said Eusebe Hounsokou, UNHCR's regional representative.

UNHCR and other humanitarian agencies have put a priority on supporting the return home of IDPs in eastern areas of the province. Inter-agency assessments carried out last July revealed that up to 80% of IDPs had returned home by their own means in the previous two months. The

number of people in the IDP settlements in the towns of Mitwaba and Dubie has fallen considerably.

The UNHCR return package helps to meet the immediate needs of the internally displaced once they get back to their villages – often to find their homes and possessions have been destroyed. The returnees in Sampwe received kitchen sets, mosquito nets, blankets, plastic sheets, jerry cans, cloth and house-building tools. Other UN agencies provide food, seeds and agricultural tools.”

See also: UNHCR 25 July 2006 [Link below]

South Kivu

RI, 28 April 2006:

“Refugees and internally displaced people are returning home in South Kivu Province of the Congo, but face enormous difficulties: basic assistance and services in their communities are minimal or nonexistent. Donors and humanitarian agencies must coordinate their interventions, especially to provide the seeds and tools essential for self-sufficiency, and increase community capacity to absorb returnees.

[...]

Many returnees do not manage to reach their villages of origin, becoming de facto displaced, forced to stay with relatives or residents who agree to take them in. Some choose to stay in Baraka or other towns; others search for shelter near drop-off points after the UNHCR trucks depart. Some families sell their cooking utensils or other parts of their return kit to pay for onward transportation to their village. The food ration distributed by UNHCR also runs out very quickly. A recently returned woman told Refugees International, “The three-month food ration we received lasted only for a few weeks. We needed to share it with those who are hosting us.”

Even for those who reach home, however, the returnees have little to help them restart their lives and become self-sufficient. In an area where 90% of the population is rural and the main economic activity is agriculture, there is no comprehensive effort to supply refugees with seeds and tools.”

HUMANITARIAN ACCESS

General

Humanitarian workers at risk in the DRC (2007-2008)

- Temporary suspension of humanitarian assistance in North Kivu in June 2008 and in South Kivu in April 2008
- Congolese state services have been asking for taxes and other financial contributions from NGOs, which has hindered humanitarian operations (August 2008)
- Attacks in Ituri cause the suspension of humanitarian activities in September 2007

OCHA, 15 August 2008:

“Tracasseries administratives, financières et militaires: les ONG humanitaires sont de plus en plus victimes de tracasseries : les services étatiques (DGI, INSS, ANR, etc.) réclament des arriérés d'impôts, CPR et primes diverses. Ceci pénalise les opérations et mobilise le personnel des ONG de manière excessive. »

IRIN, 27 June 2008:

« Travel to and work in the adjacent eastern Democratic Republic of Congo town of Rutshuru and Kiwanja village have resumed after riots curtailed such activities on 23 and 24 June, according to the UN.

"Humanitarian organisations were not able to travel to the towns because of the crowds, demonstrations and barriers that had been erected," Patrick Lavand'Homme, head of the UN Office for the Coordination of Humanitarian Affairs (OCHA) in North Kivu province, told IRIN by telephone on 27 June."

AFP, 10 April 2008:

"International aid agencies working in strife-torn eastern DR Congo suspended activities, after increased armed attacks against their staff, the UN's humanitarian agency (OCHA) said on Thursday.

It said "over the past three weeks, four serious security incidents targeting international NGOs have been reported in Sud-Kivu, with attacks on personnel, leading to the loss of goods and equipment".

The Office for the Coordination of Humanitarian Affairs added that non-governmental organisations (NGOs) had temporarily suspended activities to avoid endangering staff.

A number of international NGOs, including Medecins Sans Frontieres (MSF - Doctors Without Borders) and the United Nations' Food and Agriculture Organisation (FAO) were attacked. In March, armed men injured staff and stole money and goods from MSF-Spain in Sud Kivu, OCHA said."

UNSC, 2 April 2008:

“Despite proactive efforts by the Office for the Coordination of Humanitarian Affairs, in close collaboration with other humanitarian organizations and MONUC, access remains a major constraint to humanitarian operations. Armed escorts are required in many areas and military confrontations between national and foreign armed groups inhibit access to the most vulnerable communities. Harassment of humanitarian workers, particularly by armed gangs and militia, poses a serious threat. Widespread violations of international humanitarian law by all parties to the conflict remain a serious concern.”

UN News Service, 19 December 2007:

“The United Nations Office for the Coordination of Humanitarian Affairs ([OCHA](#)) today voiced serious concern over attacks by armed groups involving humanitarian vehicles and staff in the eastern Democratic Republic of the Congo (DRC), where fighting and spiralling lawlessness have displaced hundreds of thousands of people over the past year.”

OCHA, 16 September 2007 :

“Deux agents de l'ONGI Première Urgence ont connu une embuscade, le samedi 8 septembre à 6 km de Gety (55 km au sud de Bunia), alors qu'ils se rendaient en moto à Aveba (79 km au sud de Bunia) pour payer les ouvriers dans le cadre du programme 'cash for work'. Quatre hommes non identifiés ont fait des tirs de sommation avant d'emporter tout l'argent des salaires et autres matériels. Il n'y a pas eu de pertes en vie humaine, mais un des agents a été effleuré par une balle au niveau de la jambe. Suite à cela, PU a suspendu ses activités de réhabilitation de la route à Gety et s'en est retiré également. Solidarités et Oxfam/GB se sont aussi retirés temporairement de la zone le même jour. Toutefois, Solidarités a repris ses activités le mercredi 12 septembre tandis Oxfam/GB entend retourner à Gety le lundi 17 septembre prochain.”

See also:

MONUC, 7 Nov 2007, RD Congo / Nord-Kivu : La MONUC «profondément choquée par la violence extrême à son égard» [[Internet](#)]

Restricted humanitarian access in eastern DRC (2007-2008)

- Humanitarian operations in the east are significantly restricted by the fragile security situation
- Access certain areas of South Kivu remained limited in mid-2007
- Due to insecurity only 30 percent of Ituri were accessible to humanitarian assistance (August 2007)
- Difficult to access 150,000 people in North Kivu due to insecurity (October 2007)
- In North Kivu, 500 IDPs chanted anti-UN slogans and threw stones at a MONUC patrol, demanding that MONUC take direct military action against Nkunda (October 2007)

UNHCR, 28 September 2007:

“Humanitarian operations in the east are significantly restricted by the fragile security situation. The majority of the eastern zone is in Security Phase 4, and travel to the field by UN staff (including to IDP settlements) requires substantial advance planning to obtain security clearance and arrange MONUC military escorts. This results in significantly reduced levels of accountability

as UN agencies are unable effectively to monitor projects being implemented on their behalf, and inhibits the understanding by staff of the environment in which they are operating.”

For a detailed account of humanitarian access in eastern DRC (in French), documented by photos, please see:

OCHA, 31 August 2007, RD Congo : Focus Humanitaire Août/Aug 2007 [[Internet](#)]

North Kivu

MONUC, 10 October 2007:

“WFP is extremely worried about fate of approximately 150,000 displaced people in Masisi, Rutshuru and Kalehe. The majority has been displaced for more than six months, and have not received food aid since August [2007].”

IRIN, 8 October 2007:

“The movement of armed groups operating along the roads to reach vulnerable populations has prevented UN agencies and many international non-governmental organisations from delivering food aid and non-food items.

‘They won’t let our trucks pass by,’ [Aya] Shneerson [the head of the Kivus] said. ‘At this point, the UN agencies are dependent on armed guards.’

The UN Mission in the DRC (MONUC), with 17,000 peacekeepers, has been facilitating transport for humanitarian convoys.

While looting of food aid and medical supplies has not become a serious problem, aid groups say recent developments are cause for concern.

‘Today what we have started to see is that some groups are reluctant to see humanitarian assistance being provided to the other side, to their enemies,’ said Patrick Lavand’Homme, who heads the UN Office for the Coordination of Humanitarian Affairs in Goma.

‘We do a lot of advocacy with the different armed groups to let them understand that the aim of humanitarian assistance is to assist vulnerable people and not to assist any military group,’ Lavand’Homme said.”

UN News, 22 October 2007:

“For the second time in a week United Nations personnel in the Democratic Republic of the Congo (DRC) have become the target of angry civilians caught up in the continuing military standoff between government and rebel forces.

On Saturday, a UN patrol was obstructed by some 500 internally displaced persons (IDPs) near a cantonment site for recently disarmed fighters near the town of Rumangabo in North Kivu province, UN spokesperson Michele Montas told reporters in New York.

The protesters chanted anti-UN slogans and threw stones at the patrol. They also demanded that the peacekeepers take direct military action against dissident general Laurent Nkunda.”

ICRC 29 May 2008:

“The vast majority of these people [IDPs in North Kivu] are in areas that are hard for aid workers to reach owing to security problems or poor roads.”

See also:

IRIN, 19 October 2007, DRC: The long road to delivering food aid [[Internet](#)]

MSF, 28 September 2007, Violence in North Kivu, DRC: Assistance severely hampered [[Internet](#)]

IRIN, 28 June 2007, DRC: NGO suspends operations amid increased displacement in the east [[Internet](#)]

South Kivu

IRIN, 25 July 2007:

"Continued insecurity and poor roads have been restricting humanitarian access to thousands of internally displaced people in eastern Democratic Republic of Congo (DRC), an official of the UN Office for the Coordination of Humanitarian Affairs (OCHA) said.

'Getting to areas where the latest displacement of the population has occurred is hampered by activities of armed groups and the fact that roads in these areas are very poor,' Claude Mululu, liaison officer in OCHA's Bukavu office, told IRIN.

He said the most recent areas to be affected were around the town of Minembwe, about 150km south of Bukavu, the provincial capital, following reports of fighting between the

See also :

IRIN, 22 Jun 2007, DRC: Violence hampering aid efforts in the east [[Internet](#)]

Ituri

OCHA, 31 August 2007:

"En Ituri, depuis la "guerre de libération" menée par l'Alliance de Libération du Congo (AFDL) en 1996, le district a plongé dans un cycle de violence presque sans fin. L'insécurité est telle que seuls 30 % du territoire sont actuellement accessibles par les humanitaires. Les escortes militaires de la MONUC sont parfois nécessaires pour convoier de l'assistance."

NATIONAL AND INTERNATIONAL RESPONSES

National Response

Ministries in charge to respond to the needs of IDPs and returnees (2005-2008)

On a provincial and national level, the Congolese government has so far played little role in responding to the needs of IDPs and returning IDPs (RI, 17 October 2006). Nominally, the Ministry for Solidarity and Humanitarian Affairs has the primary responsibility for responding to the needs of IDPs. According to local observers, the Ministries of Interior and of Defence are also involved in protecting IDPs and returning IDPs, but their role in practice is far from clear. During his mission to the DRC in 2008, the UN Representative on the human rights of IDPs learned that a National Commission for Humanitarian Coordination had been set up, but did not obtain information on the Commission's activities or financial resources. At the provincial level, governors are responsible to organise the protection and assistance for IDPs (HRC, 16 May 2008).

In 2007, UNHCR highlighted the urgent need for a national framework or strategy for solutions to displacement which outlines the rights of returning IDPs and refugees and facilitates their reintegration (UNHCR, 13 February 2007).

UNHCR and the UN Representative on the human rights of IDPs both stressed the urgent need for a national framework or strategy for solutions to displacement which outlines the rights of returning IDPs and refugees and facilitates their reintegration (HCR, 16 May 2008; UNHCR, 13 February 2007).

At a regional meeting on internal displacement held in Botswana in August 2005, a representative of the Ministry for Social Affairs noted that the absence of a legislative framework based on the *Guiding Principles* as well as coordination problems were curtailing progress under the current institutional arrangements. (Brookings Institution-University of Bern Project on Internal Displacement, 26 August 2005, p11)

Early September 2006, representatives of states of the Great Lakes region attended a conference on peace and security to consider for adoption a draft model on the prevention and suppression of sexual violence against women and children, and another on the property rights of returning IDPs and refugees. A regional meeting held in the Central African Republic capital, Bangui, in February developed the protocols to be adopted at the national level and implemented regionally (Heads of States of the International Conference on the Great Lakes Region, February 2006). The DRC Parliament adopted the *Great Lakes Pact on security, stability and economic development* on October 2, 2007. The Pact entered into force in June 2008 (IDMC, September 2008).

In September 2007, President Joseph Kabila travelled to North Kivu and discussed with aid agencies how to improve access for humanitarian workers and protect civilians from armed groups, as well as the needs of those affected by the crisis (IRIN, 25 September 2007).

See also:

Le Potentiel, 26 January 2008, RDC : Situation humanitaire au Nord et au Sud-Kivu - La réinstallation des déplacés sous-tendue par un plan humanitaire du gouvernement [[Internet](#)]

International Response

UN Coordination

In November 2004, the UN Secretary-General appointed Ross Mountain, a national of New Zealand, as his Deputy Special Representative for the DRC. In this capacity, he also serves as Resident Coordinator and Humanitarian Coordinator for the DRC and is responsible for ensuring a strategic and coordinated response to internal displacement in the country (UN SG, 18 November 2004). He is located within the integrated office of MONUC, and is supported by the OCHA office. Since 2006, the Humanitarian Coordinator has also been managing a “Pooled Fund” which aims to cover funding gaps in the humanitarian response, through an emergency intervention fund, financing of under-funded strategic projects and short-term loans pending funds from traditional donors (OCHA, 13 February 2006). At Kinshasa level, overall humanitarian coordination takes place through the Humanitarian Advocacy Group (HAG) which meets weekly, and an inter-cluster coordination group recently established to facilitate coordination between clusters at the working level (UNHCR, 28 September 2007).

In 2006, the UN introduced a “cluster” approach in order to strengthen coordination in the DRC and better respond to humanitarian needs. Each cluster includes UN agencies and NGOs. UNCHR leads the cluster on protection, including IDPs, together with MONUC and UNCHR/UNDP leads the cluster on early recovery which focuses on return/reintegration. According to local observers, the fact that MONUC is jointly heading the WG on protection might have an impact on the ability of the WG to take independent decisions in relation to advocacy (HRC, 16 May 2008).

According to an evaluation undertaken by UNHCR, the introduction of the cluster approach has enabled the humanitarian organisations to better coordinate their interventions benefiting IDP and other affected civilian populations (UNHCR, 28 September 2007). According to OCHA, the protection cluster has been one of the most active in the DRC. Protection clusters at the national and local level have allowed the development of a common advocacy policy on protection issues. Working with the MONUC military, they have managed to reverse FARDC decisions to force IDPs to return home, launch investigations of FARDC troops accused of violating the human rights of civilians, and facilitate the establishment of thematic sub-groups to deal with issues such as SGBV and child protection. Agencies have begun to intensify training of integrated FARDC brigades on the Guiding Principles on Internal Displacement, humanitarian principles and SGBV. The Early Recovery Cluster, established in May 2006, carried out a mapping of UN and non-UN reintegration/post-conflict/poverty reduction programmes to identify gaps, which was then used for the *UN common strategy on reintegration in the DRC* (OCHA, 9 March 2007). Authorities have been involved in the Reintegration and Community Recovery Cluster, but not in the protection cluster due to the sensitivity of certain topics discussed (UNCHR, 28 September 2007).

While the national protection cluster does not have a focus on internal displacement, the North Kivu cluster has IDPs as one of its strategic focus. Meanwhile, the Reintegration and Community Recovery Cluster supported the drafting of a national strategy on return, reintegration and community recovery, but it was apparently never finalised.

The 2008 Humanitarian Action Plan (HAP) recognises the need to support IDPs and host communities. In mid-2008, the Comité Provincial Inter-Agences du Nord Kivu developed a draft strategy to assist IDPs and host families (OCHA, 16 July 2008).

In February 2008, The Representative of the Secretary General on the Human Rights of IDPs Mr. Walter Kälin paid a ten-day working visit to the DRC. This visit took him to Kinshasa, Goma, Bukavu and Bunia. The RSG/IDPs met with State representatives, representatives of the UN Country Team, the Diplomatic Corps, and concerned individuals as well as Representatives of human rights and humanitarian NGOs.

The RSG/IDPs called upon governmental authorities to commit themselves to protecting the IDPs by speedily enacting a legislative framework for the protection of the IDPs. He also urged the GoDRC to guarantee incorporation into national legislation of the Protocol on the Protection and Assistance to IDPs contained in the Nairobi Pact of 15 December 2006 on Security, Stability, and Development on the Great Lakes Region. He further called on the international community, including UN agencies to assist the GoDRC in fulfilling its international obligations with regard to IDPs (HRC, 16 May 2008).

For more information on the clusters in the DRC see:

UNHCR, 28 September 2007, Real time evaluation of UNHCR's IDP operation in the Democratic Republic of Congo [[Internet](#)]

[OCHA/ICVA Mission to the DRC to Support Implementation the Cluster Approach \(6-18 March 2006\)](#), Internal Displacement Division (IDD), 18 March 2006

The Journal of Humanitarian Assistance (JHA), 5 October 2007, Responsibility to protect: A policy recommendation based on the protection Cluster's implementation in South Kivu, DRC [[Internet](#)]

In July 2006, the Security Council extended the scope of possible sanctions in the DRC to "political and military leaders recruiting and using children in armed conflict in violation of applicable law" and to "individuals committing serious violations of international law involving the targeting of children in situations of armed conflict," including forced displacement. Resolution 1698 also empowered the Sanctions Committee on the DRC to include named individuals responsible for such violations on the list of persons subject to targeted sanctions, such as travel bans and asset freeze (UNSC, 31 July 2006).

In September 2006 and again in September 2007, The UN Emergency Relief Coordinator went to eastern DRC to draw attention to the plight of IDPs, and to advocate for the respect of humanitarian space to allow the delivery of humanitarian assistance. (MONUC, 6 September 2006; OCHA, 13 September 2007).

See also: OCHA, 11 September 2007, Briefing to the Security Council by John Holmes, Under-Secretary-General for Humanitarian Affairs and Emergency Relief Coordinator on mission to DR Congo, 03 - 08 Sept 2007 [[Internet](#)]

The UN High Commissioner for Human Rights, Louise Arbour, went to the DRC in May 2007. During her visit in the East, she called upon provincial government authorities to commit themselves to preventing and combating impunity and sexual violence (MONUC, 19 June 2007). In June 2007, High Commissioner for Operations Judy Cheng-Hopkins on Wednesday became the most senior UNHCR official to visit IDPs in North Kivu. The goal of her visit was to review support operations for the displaced and to examine the feasibility of refugee returns (UNHCR, 13 June 2007).

UN and NGO activities

UN agencies, national and international NGOs and the International Committee of the Red Cross (ICRC) are providing emergency assistance to people recently displaced in eastern DRC, as well as transport assistance and return packages to returning IDPs.

The humanitarian community in eastern DRC struggled to respond the needs of hundreds of thousands new displaced in North and South Kivu, following clashes between Congolese troops and followers of dissident general Nkunda. UN, NGOs and ICRC provided food and non-food items, seeds and tools, health care, and emergency education. The goal is to integrate IDPs and returning IDPs into the schools of host communities. Projects include the rehabilitation of schools and the distribution of school kits in host communities (RI, 21 May 2008, "education"). UNICEF leads five of the ten clusters established in the DRC since 2006: water and sanitation, nutrition, education, non-food items/emergency shelter, and emergency telecommunications. UNICEF is the child protection focal point for the protection cluster and participates actively in the health, early recovery and logistics clusters (UNICEF, 29 January 2007). ICRC reported that it continued to organise awareness-raising sessions on the basic principles of IHL for all parties, including armed non-state actors. (ICRC, 23 February 2007).

In May 2008, WFP warned that it had to decrease food rations to IDPs and other vulnerable people due to the global food crisis (WFP, 13 May 2008).

One of the major problems in DRC is the lack of operational capacity to assist vulnerable groups, like IDPs and returnees. Due to the shortage of operational partners, when humanitarian assistance does arrive in favour of vulnerable groups, it rarely meets international standards, such as those outlined in the Minimum Standards in Disaster Response (SPHERE Project). Also, some provinces receive less attention than others. It is particularly the case of the Provinces of Maniema, Oriental and of the Tankanyika district in Katanga Province.

Humanitarian activities related to the return of IDPs have until now focused mainly on transport assistance and the distribution of return packages, mainly for lack of funding for other projects, such as the rebuilding of infrastructure and basic services in return areas. With the activation of the cluster approach in 2006, UNHCR took on enhanced responsibilities for protection and early recovery, with a particular focus on the humanitarian response in the east of the country (UNHCR, 28 September 2007). Since the worsening of the displacement crisis in North Kivu in late August 2007, UNHCR has sent a several emergency teams and launched a camp coordination and camp management coordination group which manage 13 IDP sites. IDP assistance efforts have included building new camp sites, IDP registration, and distribution of items of first necessity (UNHCR, 9 June 2008). UNHCR also issued a supplementary appeal seeking \$ 23.5 million for IDPs in the DRC (UNHCR, 29 January 2008). For the first half of 2008, over 137 000 displaced, returning or otherwise vulnerable families were assisted with non-food items (OCHA, 16 July 2008).

For more information on UNHCR's assistance to IDPs in the DRC, please see:

UNHCR, 31 May 2007, UNHCR's Contribution to the Inter-agency Response to IDP Needs: Summary of Activities under the Supplementary Appeal, May 2007 [[Internet](#)]

The Programme of Expanded Assistance to Returns (PEAR) project launched by UNICEF has been instrumental in assessing and responding to the needs of returning IDPs (OCHA, 17 July 2007). In North Kivu, the Norwegian Refugee Council has developed a project that links rapid reconstruction of village infrastructure through a public works project that will provide returnees with income, with specific measures to protect them from violence in the still-volatile area (RI, 17 October 2006, p21). MONUC has also placed a role in helping displaced people return to their

villages of origin. MONUC patrols in places such as Malumbi or Tshushubo (North Kivu) have given the population enough confidence to leave their temporary camps and begin rebuilding their lives in the villages. It is however essential that MONUC maintain close contact with humanitarian actors in planning for such operations in order to avoid instances of forced, politicised, or uninformed returns (OXFAM, 16 February 2007).

According to OCHA, in North Kivu, assistance to zones hosting IDPs where many people are returning to is difficult, as most of the assistance is directed towards IDPs, angering returnees (OCHA, 15 August 2008).

According to OCHA, there is a real gap in terms of addressing return and reintegration needs of IDPs in DRC. IDPs have been returning home in areas throughout eastern DRC, but they continue to be confronted with problems related to insecurity and lack of basic services. Without adequate reintegration support, they could soon be forced to leave their homes yet again. Returnees need help with reconstructing homes, rehabilitating health and education infrastructure, and resuming agricultural activities.

A Rapid Response Mechanism (RRM), managed by UNICEF and OCHA, supports vulnerable communities hosting large numbers of displaced families, by providing emergency assistance for three months (RI, 21 May 2008, "Key facts assistance"). The project also supports IDP returnees in the case where they were not served during the period of displacement, or when needs are severe and life-threatening (OCHA, 13 February 2006). The mechanism is largely implemented by two operational INGO focal points: Solidarités and the International Rescue Committee (IRC) (OCHA., 12 September 2008). Agencies helped some 488,000 IDPs between January and April 2007 through the RRF (OCHA, 17 July 2007).

Since 2004, a joint initiative to address sexual violence has brought together UN agencies, ministries, and NGOs under the leadership of UNFPA. This initiative promotes a holistic response to sexual violence, which includes prevention, capacity-building of partners, medical and psychosocial care, livelihood support, legal assistance for victims and the strengthening of the legal framework and its application (UNSC, 28 June 2007).

UNICEF and the Office of the Special Representative of the Secretary-General for Children and Armed Conflict (SRSG-CAAC), with other national and international partners, are also implementing UNSC resolution 1612 to monitor and report on violations against children in 7 countries, including in the DRC. This work focuses on six categories: the killing and maiming of children, abduction, attacks on schools and hospitals, sexual violence, child recruitment, and the denial of humanitarian access in conflict areas.

For more information on the monitoring and reporting mechanism on children in armed conflict in the DRC, see:

Watchlist, January 2008, Getting It Done and Doing It Right, Implementing the Monitoring and Reporting Mechanism on Children and Armed Conflict in The Democratic Republic of Congo
[\[Internet\]](#)

ICRC launched in July 2008 its largest relief operation in the country since 2006, in order to reach 40,000 beneficiaries, primarily returning IDPs in North Kivu (ICRC, 29 July 2008). In IDP camps around Beni, North Kivu, a local NGO—Programme de Soins de Santé Primaire (PPSSP)—focuses on provision of primary health care to displaced communities. Their programme focuses on public health education, water and sanitation, distribution of mosquito nets, trauma counselling and enhancing the capacity of local health centres/hospitals. Education for peace and reconciliation is part of the trauma-counselling component. Children are also brought together through games that help them keep busy and joyful. Solidarite Feminine Pour La Paix et Le

Development Integral (SOFEPADI) focuses on promoting women and children's rights, democracy, peace education, HIV/AIDS and STI prevention and socio-economic empowerment.

Other NGOs, such as, Cooperazione e Sviluppo (CESVI), MSF, Merlin, Oxfam, Samaritan Purse, Norwegian Refugee Council (NRC), Save the Children (UK), and Faith Based Organisations are providing a range of services including distribution of food and non food items, education, water and sanitation, child protection, vaccination and medical treatment to internally displaced people including children. Centre Resolution Conflict (CRC) implements activities that include peace education for communities, conflict prevention and management, supporting reconciliation processes, trauma counselling and promotion of human rights (WVI, 27 February 2007).

Local human rights group have been monitoring human rights abuses against IDPs and other civilians. They also offer counseling and assistance. Most operate with almost no money and work in incredibly dangerous conditions. Human rights activists in eastern DRC have been beaten, detained and killed. In addition, international agencies rely increasingly on local NGOs, particularly the Catholic Church and its network (RI, 17 October 2006).

In July 2008, a coalition of 64 aid agencies and human rights groups - the Congo Advocacy Coalition was created to focus attention on the protection of civilians as part of the peace process in eastern Congo. It called on the international community to put further pressure on armed groups and the Congolese government to make real their promises to protect civilians (HRW, 29 July 2008).

See also:

IRIN, 30 Jun 2008, DR Congo: Humanitarians pick up the pieces as insecurity persists in North Kivu [\[Internet\]](#)

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Donor Response

The major constraint in implementing emergency activities in the DRC has been a combination of both low response to funding appeals and extraordinary levels of need throughout the country. In order to strengthen the response to the crisis in the DRC, the humanitarian community is requesting some \$736 million through its DR Congo 2008 Humanitarian Action Plan (OCHA, 16 July 2008). Two of the main objective of the plan are to protect and assist IDPs, and to facilitate return and reintegration (OCHA, 10 December 2007). The main funding source for this plan is a mechanism called the "Pool Fund", a multi-donor humanitarian fund. DRC is the country getting the largest amount of money \$55 million for the first half of 2008, as part of its grants for under-funded emergencies (OCHA, 30 July 2008). In mid-2008, the "Pool Fund" allocated \$60 million to

humanitarian projects by UN and NGOs throughout the DRC. So far \$205 million from the Pooled Fund has supported more than 400 projects in the country, reaching 20 million of the most vulnerable people (UN News, 7 May 2008).

For more information on the Pooled Fund in the DRC, see:

OCHA, 31 March 2008, DRC Pooled Fund Annual Report 2007 [\[Internet\]](#)

[http://www.reliefweb.int/rw/RWFiles2008.nsf/FilesByRWDocUnidFilename/EDIS-7EGQ8V-full_report.pdf/\\$File/full_report.pdf](http://www.reliefweb.int/rw/RWFiles2008.nsf/FilesByRWDocUnidFilename/EDIS-7EGQ8V-full_report.pdf/$File/full_report.pdf)

The Pooled Fund, DRC's multi-donor humanitarian fund, aims to strengthen coordination and increase the extent to which funding is allocated to priority humanitarian needs. The mechanism is consistent with the principles of the Good Humanitarian Donorship (GHD) initiative for which the DRC is a pilot country, and is also part of wider humanitarian reforms.

Funding decisions result from a participatory process. Provincial CPIAs (Inter-Agency Standing Committees) supported by clusters, recommend projects for funding based on provincial strategies and priorities. The projects are then reviewed by national-level clusters to verify that they ensure maximum possible impact on the national humanitarian situation, while avoiding overlapping or duplication. Finally, the Humanitarian Coordinator asks the Pooled Fund Board, a joint initiative with NGO, UN and donor membership, to provide advice on the final shortlist, before taking the final funding decision.

OCHA's Planning Unit and UNDP are in charge of the overall management of the Pooled Fund. Further information on the Pooled Fund can be obtained at:

www.rdc-humanitaire.net/pooledfund/pooledfund.htm

For an evaluation of the Pooled Fund in the DRC and a similar mechanism in Sudan, see:

ICVA, 25 January 2008, Evaluation of common/pooled humanitarian funds in DRC and Sudan [\[Internet\]](#)

<http://www.reliefweb.int/rw/rwb.nsf/db900sid/ASIN-7B7STP?OpenDocument&rc=1&cc=cod>

The largest donor of humanitarian aid to DRC is the European Union's Humanitarian Aid Office, ECHO.

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles (as of September 2008)

- Reference to the Guiding Principles in the national legislation
- Other References to the Guiding Principles (in chronological order)
- Availability of the Guiding Principles in local languages
- Training on the Guiding Principles (in chronological order)

Reference to the Guiding Principles in the national legislation

While there is no reference to the Guiding Principles in the DR Congo legislation, DRC is one of the states part of the International Conference on the Great Lakes Region, which established a series of protocols, including an IDP protocol. The DRC Parliament adopted the **Great Lakes**

Pact on security, stability and economic development on October 2, 2007. The Pact entered into force in June 2008. For more information, see the following documents (links below):

- Internal Displacement Monitoring Centre, September 2008, The Great Lakes Pact and the Rights of Displaced People: A Guide for Civil Society
- African Union, Report of the Chairperson of the Commission on the International Conference Process on the Great Lakes Region, 13 March 2007-04-25
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- Protocol on the Protection and Assistance of IDPs, October 2005

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OCHA IDP Unit undertook mission in December 2002 to assess training needs on the Guiding Principles
Date: October 2002
Documents: IDP Unit Mission to the Democratic Republic of Congo, 7-10 October 2002 [Link below]

UN Inter-agency mission focuses on IDPs and emphasises the training needs on the Guiding Principles within the humanitarian community and authorities
Date: February 2003
Documents: Inter-agency mission on internal displacement in the Democratic Republic of Congo (DRC) 26 January – 8 February, 2003 [Link below]

Availability of the Guiding Principles in local languages

The GP are available in Swahili (DRC)
Document: GP in Swahili [Internet] http://www.idpproject.org/training/guiding_principles/Guiding_principles_Swahili_DRC.pdf

Training on the Guiding Principles

Protection cluster organises training on the Guiding Principles for Congolese armed forces

Date: 2006

A regional seminar on internal displacement was convened in Gaborone, Botswana, hosted by the Government of Botswana and co-sponsored by the Office of the United Nations High Commissioner for Refugees (UNHCR), the Representative of the United Nations Secretary-General on the Human Rights of Internally Displaced Persons (IDPs), and the Brookings Institution-University of Bern Project on Internal Displacement. It was the first seminar of its
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kind focused on internal displacement in the Southern African Development Community (SADC) region.

The purpose of the seminar was to discuss the phenomenon of internal displacement in the SADC region, the needs of the displaced, and effective national, regional and international responses. The meeting brought together over 100 participants representing: the SADC member states; the SADC Secretariat; the African Union; the African Commission on Human and Peoples' Rights; national human rights institutions; local, regional and international non-governmental organizations; the United Nations (UN) and other international organizations; and donor governments; as well as experts from research institutions.

The meeting resulted in a set of recommendations for action at the national, regional and international levels to improve responses to internal displacement in the region.

Date: 24-26 August 2005

Documents: Regional Seminar on Internal Displacement in the Southern African Development Community [Internet] http://www.brook.edu/fp/projects/idp/SADC_rpt.pdf

NRC and OCHA IDP Unit have undertaken a training program on the Guiding Principles for authorities, UN agencies, international and local NGOs, and IDPs. See list of sources for NRC document containing conclusions and recommendations. Since then, NRC has continued the diffusion of the Guiding Principles to authorities, churches, NGOs, local populations and international agencies.

Date: 2003-Present

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IDP Unit and NRC, Workshop on Internal Displacement and the Guiding Principles, Kinshasa, 26-28 May 2003 [Link below]

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